

COMPLETE LEARNING SESSION

Social and Political Ideals - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Social and Political Ideals - Complete Learning Session

Syllabus, verbatim: *Social and Political Ideals : Equality, Justice, Liberty.* - UPSC Philosophy Paper II, Section A, item 1. □ The printed paper carries the typographic slip "Ideals" and a space before the colon; both are preserved only inside a verbatim quotation of the syllabus. Three ideals are printed and only three: **equality, justice and liberty**. Democracy, rights and duties, sovereignty, political obligation, welfare programmes, recognition theory and reservation policy appear here only where they execute the triad, and their full theories belong to later owners.

Evidence discipline: FACT: marks doctrine on which the standard sources converge, ANALYSIS: marks analytical reconstruction for exam use, and CAUTION: marks a live scholarly dispute or a contested attribution. Model answers below are independent learner practice and are **never** official UPSC keys: UPSC publishes no descriptive model answer for Philosophy Paper II. Named theories are cited by author and, where the repository verifies it, by year only - **Mill 1859 and 1869, Berlin 1958, Rawls 1971, Nozick 1974, Pettit 1997, Skinner 1998** - with no invented quotation, page number, edition or statistic. **Terminology rule:** the English concept leads and the technical term follows immediately in parentheses - *equal moral worth (equal concern and respect)*, *equality before the law (formal or legal equality)*, *a fair starting line (equality of opportunity)*, *a fair finishing line (equality of outcome)*, *need-sensitive differential treatment (equity)*, *differences of body and talent (natural or physical inequality)*, *differences made by convention (moral, political or artificial inequality)*, *freedom from interference (negative liberty)*, *freedom to be one's own master (positive liberty)*, *freedom as a secured standing (non-domination)*, *acts whose main effects fall on the agent (self-regarding acts)*, *acts that injure others (other-regarding acts)*, *what a person is actually able to do and to be (capability)*, *consistent application of announced rules (formal justice)*, *fairness of the deciding process (procedural justice)*, *justice of the standard or distribution itself (substantive justice)*, *shares tracking a relevant criterion (distributive justice)*, *restoring a balance after wrong (corrective or rectificatory justice)*, *shares proportioned to relevant desert (proportional equality)*, *equal units restored to each side (arithmetic equality)*, *the fair choice situation (original position)*, *ignorance of one's own advantages (veil of ignorance)*, *inequality allowed only if it helps the worst-off (difference principle)*, *justice judged by how holdings arose (historical or entitlement theory)*, *justice judged by the shape of the final distribution (patterned principles)*, *correctness of institutions and rules (nīti)*, *justice as it is actually realised in people's lives (nyāya)*, *mutual adjustment of principles and firm judgements (reflective equilibrium)*, *the fellow-feeling that makes equal citizenship real (fraternity)*. A technical term may sharpen an English explanation; it may never replace one.

What this package contains

Component	Count
Progressive teaching sessions in the Basic block	20
Original diagnostic MCQs - 24 core plus 8 remedial drills	32
Question-specific option explanations	128
Unique examiner traps	32
Directly owned verified PYQs solved in full, 2018-2025	14
Original solved Mains models - two each at 10, 15 and 20 marks	6
Consolidated register parts	14 (A-N)
ASCII master flow panels authored	12

BASIC LEARNING SESSION

CONCEPT SPINE - ENGLISH FIRST, TECHNICAL TERM IMMEDIATELY AFTER

THE ONE THING THIS CLAUSE IS ABOUT
INSTITUTIONS HAND OUT STATUS, CHOICE, BURDENS AND BENEFITS. EQUALITY AND
LIBERTY EACH GENERATE A CLAIM ON THAT HANDING-OUT. NEITHER CLAIM CAN SETTLE
ITSELF, BECAUSE NEITHER SAYS *WHICH* LIBERTIES ARE BASIC OR *WHICH* EQUALITY
COUNTS. JUSTICE IS THE IDEAL THAT SUPPLIES THE ORDERING RULE.

+-----+ THE THREE QUESTIONS +-----+		
+-----+ EQUALITY 'IN WHAT RESPECT MUST PERSONS COUNT AS EQUALS?' +-----+	+-----+ LIBERTY 'WHAT MAY I DO WITHOUT INTERFERENCE -- AND WITH WHAT CAPACITY?' +-----+	+-----+ JUSTICE 'WHAT IS DUE TO EACH, BY WHICH RULE, THROUGH WHICH PROCEDURE?' +-----+
+-----+ PIVOT: EQUAL MORAL WORTH; EQUAL CONCERN +-----+	+-----+ PIVOT: FREEDOM FROM INTERFERENCE vs FREEDOM TO SELF- DIRECT vs FREEDOM AS SECURED STANDING +-----+	+-----+ PIVOT: FAIRNESS, DUE PROPORTION, ENTITLEMENT, CAPABILITY, PUBLIC JUSTIFIABILITY +-----+
+-----+ DANGER IF ABSOLUTISED: MECHANICAL LEVELLING, LOSS OF INDIVIDUALITY +-----+	+-----+ DANGER IF ABSOLUTISED: LICENCE, DOMINATION BY THE STRONG, OR PATERNAL COERCION 'FOR YOUR REAL SELF' +-----+	+-----+ DANGER IF ABSOLUTISED: FAIR- LOOKING RULES THAT PRESERVE INJUSTICE, OR OUTCOMES IMPOSED ARBITRARILY +-----+

THE MOVE THAT CARRIES MARKS IN ALMOST EVERY QUESTION HERE
LIBERTY AND EQUALITY REINFORCE EACH OTHER AT THE LEVEL OF *BASIC LIBERTIES
AND EQUAL CIVIC STANDING*; THEY COLLIDE ONLY BEYOND THAT THRESHOLD, AND
JUSTICE ADJUDICATES THE COLLISION. WRITE THE THRESHOLD, NOT A SLOGAN.

+-----+ THE SIX NAMES YOU CANNOT AVOID AND WHAT EACH IS FOR ROUSSEAU ... natural vs artificial inequality (2021 Q1(b)) MILL salient features of equality; harm principle (2025) MARX equity vs equality; distribution by need (2022) PLATO justice as each doing one's own work (2024, 2019) RAWLS justice as fairness (2019, 2021, 2023) NOZICK entitlement, not pattern (2021 Q1(a)) + SEN nīti / nyāya; capability (2021 Q2(a)) + AMBEDKAR political democracy needs social democracy (2018,2025) +-----+

Caption: the whole clause on one screen. Three questions, three pivots, three characteristic failures, and the one adjudication move that lifts almost every answer in this cluster.

ANSWER-WORTHINESS - WHAT EARNS MARKS AND WHAT DOES NOT

Move	Earns marks	Loses marks
Defining the ideal	Naming the ideal's own technical vocabulary - <i>proportional equality, harm principle, natural against artificial inequality, entitlement, non-domination</i> - inside the first three lines	Opening with "Since ancient times, man has desired freedom..."
Handling the triad	Showing that liberty and equality are each indeterminate about their own variants , and that justice supplies the ordering criterion	Writing three disconnected mini-essays on three ideals
Handling conflict	Locating the threshold : complementary at basic liberties and equal standing, rivalrous beyond it	Asserting flatly that liberty and equality always conflict, or never do
Using a thinker	One doctrine reconstructed as numbered premises, with the distinction only a reader of the doctrine could make	A parade of six names with one adjective each
Using India	One dated constitutional provision or statute, classified accurately, with the caution that legal status is not philosophical proof	Turning a philosophy answer into a policy or reservation-debate essay
Closing	A graded verdict that concedes something to the losing side	"Thus we can say that both are important."

HOW TO READ THIS SESSION

1. **Every session opens with a picture.** Read the diagram or table before the prose; the visual carries the argument's shape, and the prose only names its parts.
2. **Read the Basic block straight through.** It is deliberately answer-complete: after Session 20 you can write any of the fourteen owned previous-year parts without the Advanced block.
3. **Do not import the Advanced block into a core answer.** It sits at the end, clearly fenced, and exists for one added debate or one sharper objection in a 15- or 20-marker.
4. **Treat the answer-grabbing line and the paragraph demonstration as drills.** Copy the demonstration's four-move shape - claim -> named evidence -> analysis -> qualification - and refill it with your own words until the shape is automatic.
5. **The consolidated register notes come last on purpose.** They are compressed recall, not a second reading of the teaching.

ORIGIN AND CHRONOLOGY - THE MINIMUM NEEDED TO AVOID ANACHRONISM

A full institutional timeline is not meaningful for a conceptual clause; what *is* examinable is the order in which the positions were stated, because several traps are simply anachronisms. ANALYSIS: The rail below fixes the sequence and nothing more.

ANCIENT -----	EARLY MODERN -----	19th CENTURY -----	20th CENTURY -> -----
PLATO justice as each part doing its own work 	HOBBS liberty = absence of impediments; free where the law is silent 	MILL 1859 'On Liberty': harm principle MILL 1869 'The Subjection of Women' 	BERLIN 1958 'Two Concepts of Liberty': negative / positive
ARISTOTLE distributive (proportional) vs corrective (arithmetic) justice	LOCKE liberty under known law; anti-arbitrary 	MARX 'Critique of the Gotha Programme': ability / need 	RAWLS 1971 'A Theory of Justice'
	ROUSSEAU natural vs artificial inequality; obeying a law one gives oneself	T. H. GREEN liberty as the positive power to do something worth doing	NOZICK 1974 'Anarchy, State and Utopia'
			SEN 'The Idea of Justice': nīti / nyāya
			PETTIT 1997 non-domination SKINNER 1998 historical recovery
		AMBEDKAR: political democracy is unstable without social democracy -- liberty, equality, fraternity	

Caption: the order of the positions, not a history of institutions. Three anachronism traps live here.

ANALYSIS: The three anachronisms this rail prevents. (i) Plato and Aristotle are not answering the modern distributive question about the basic structure of society, so "Plato's difference principle" is nonsense; (ii) Rousseau's *natural* inequality is a claim about bodies and talents, not a claim that some people naturally lack rights; (iii) republican non-domination is a **twentieth-century normative theory** (Pettit, **1997**) recovering a pre-liberal tradition (Skinner, **1998**), so it may not be attributed to Berlin, and Pettit's theory must never be merged with Skinner's intellectual history.

EXACT OWNERSHIP BOUNDARY AND INDISPENSABLE BRIDGES

The printed owner is deliberately narrow: **equality, justice and liberty**. The concepts below appear here only where they execute that triad; their complete positive theories belong to later syllabus owners, and importing those theories is the fastest way to write an off-target answer.

Concept	What this owner must teach	Canonical boundary
Citizenship and democracy	Equal civic standing, equal political liberty, and the exact 2018 bridge asking whether liberty and equality are distinctive of democracy	Theories and institutional forms of democracy belong to Forms of Government
Rights and duties	Rights as protected claims or basic liberties, and duties only as the correlative limit that stops one person's liberty becoming another's subjection	The full rights-duties-accountability architecture belongs to Individual and State
Authority and legitimacy	The burden of justifying coercion, and the difference between a legally valid rule and a morally justified one	Sovereign authority belongs to Sovereignty ; political obligation belongs to Individual and State
Welfare	Aggregate welfare as the utilitarian criterion, and enabling provision as one possible condition of effective liberty	Welfare is not a fourth printed ideal here; development questions belong to Development and Social Progress
Recognition and social standing	Humiliation, stigma and second-class status as failures of social equality and of justice	Taylor, Fraser and Honneth, and the recognition-redistribution debate, belong to Humanism, Secularism and Multiculturalism
Affirmative action	The general compensatory principle only	Reservation policy, the reverse-discrimination argument and the Indian caste record belong to Caste Discrimination: Gandhi and Ambedkar

The individual and the social side of each ideal

Ideal	Individual dimension	Social and institutional dimension	Controlling warning
Equality	Each person has equal moral worth and may demand equal concern	Laws, offices, resources and social status must not reproduce arbitrary hierarchy	Equal worth does not imply identical treatment or identical outcome
Liberty	A protected sphere of choice, thought and self-direction	Background conditions and freedom from arbitrary power decide whether formal options are usable	Effective freedom must not slide into perfectionist coercion
Justice	Each person is owed reasons, due treatment and rectification of wrong	Procedures, distributions and status relations must be publicly justifiable	Fair procedure and fair outcome are distinct, and neither alone is sufficient

ONE-SCREEN ROUTE MAP

Unit	Session	What it settles	Previous-year part it directly serves
1	The clause, the triad and the ordering problem	Why justice is architectonic	2025 Q4(a)
2	Equality I - equal moral worth and the four forms	Legal, political, social, economic equality	2024 Q2(b)
3	Equality II - opportunity against outcome	Formal against fair opportunity	2024 Q2(b); 2019 Q4(b)
4	Equality III - Rousseau	Natural against artificial inequality	2021 Q1(b)
5	Equality IV - Mill	The salient features of equality	2025 Q1(e)
6	Equality V - Marx	Equity against equality; distribution by need	2022 Q2(c)
7	Equality VI - "equality of what?"	Sen, Cohen, Dworkin on the metric	2021 Q2(a)
8	Liberty I - Berlin	Negative against positive liberty	2022 Q1(d); 2024 Q2(b)
9	Liberty II - Mill	The harm principle and its instability	2025 Q1(e); 2022 Q1(d)
10	Liberty III - Hobbes, Locke, Rousseau, Green	Four rival specifications of freedom	2020 Q1(a); 2024 Q2(b)
11	Liberty IV - liberty and equality	Where they conflict, where they reinforce	2019 Q4(b); 2022 Q1(d)
12	Liberty V - technological society	Whether liberty is realisable now	2020 Q1(a)
13	Liberty VI - non-domination	Freedom as a secured standing	2019 Q4(b); 2018 Q2(a)
14	Justice I - the three forms and four dimensions	Formal, procedural, substantive justice	2025 Q4(a)
15	Justice II - Plato and Aristotle	Functional justice; proportional and arithmetic equality	2024 Q1(a); 2019 Q1(a)
16	Justice III - the criteria problem	Need, desert, merit, contribution, compensation	2022 Q2(c); 2025 Q4(a)
17	Justice IV - utilitarian justice and Rawls	Aggregation objection; justice as fairness	2023 Q1(a); 2019 Q1(a)
18	Justice V - Nozick	Entitlement against pattern; minimal state	2021 Q1(a)
19	Justice VI - Sen and Ambedkar	Comparative justice; social democracy	2021 Q2(a); 2018 Q2(a)
20	Synthesis - debates, criticisms, traps, exam craft	The ordering verdict and the answer spine	every part

SESSION 1 - THE PRINTED CLAUSE, THE IDEALS TRIAD AND THE ORDERING PROBLEM

The picture first

THE TRIANGLE -- THREE CORNERS, THREE DIFFERENT QUESTIONS

```

LIBERTY <----- tension AND support -----> EQUALITY
"what may I do                                "in what respect
without interference,                          must persons
and with what capacity?"                     count as equals?"

      \      /
       \    /
        \  /
         \ /
          V
        JUSTICE
"what is due to each,
by which rule, through
which procedure?"

```

LIBERTY and EQUALITY raise the claims.
JUSTICE decides which claim wins, on what ground, and how far.

WHY NEITHER CAN SETTLE ITSELF

liberty is silent about WHICH liberties are basic
equality is silent about WHICH equality is owed
-> the ordering criterion must come from somewhere else
-> that "somewhere else" is what justice names

Caption: the triad is one argument, not three essays. The bottom two lines are the whole reason justice is called the ordering or architectonic ideal.

In plain words

Give people unlimited freedom and the strong will end up owning the weak. Force everyone into identical shares and you crush the individuality that made freedom worth having. Each ideal, pushed alone, destroys something we also wanted. What we actually need is a rule that tells us **where to stop** - which freedoms are so important that they may not be traded away, and which inequalities are tolerable because they do some defensible work. That rule is what the third word on the syllabus, *justice*, supplies.

The doctrine, exactly

FACT: **Equality** is the demand that persons be treated as having **equal moral worth (equal concern and respect)**, so that hierarchies of birth, caste, race, sex or inherited privilege require justification instead of being presumed.

FACT: **Liberty** is a protected sphere of action and thought, and, in richer accounts, the power of self-direction or self-realisation. FACT: **Justice** concerns what is due to each person, and the principles governing distribution, rectification, rights and the moral structure of institutions.

ANALYSIS: The working thesis of the whole clause, in three lines:

1. Liberty without limits protects the freedom of the already powerful and erodes the conditions of equal citizenship;
2. equality that refuses to discriminate among *relevant* differences becomes mechanical levelling and injures individuality or excellence;
3. justice supplies the **criterion of adjudication** - which inequalities are justified, which liberties are basic, and what arrangements preserve dignity for all.

ANALYSIS: The minimum answer-formula. For nearly every question in this cluster: (i) define the ideal in its strongest form; (ii) state the strongest objection or the rival ideal; (iii) give a reconciliatory verdict, normally through justice, fair opportunity or basic liberties. **Define -> Object -> Reconcile.**

Named evidence you can cite

- **Ambedkar FACT:** - political democracy is unstable without **social democracy** resting on liberty, equality and **fraternity**; one vote each can coexist with deep civic humiliation.
- **Rawls, 1971 FACT:** - the **lexical priority** of equal basic liberties shows that liberty need not be traded away for aggregate welfare, which is exactly the "ordering" claim in institutional form.
- **Articles 14-16 of the Constitution of India FACT:** - equality before the law, prohibition of discrimination and equality of opportunity in public employment sit together, with **enabling clauses** in Articles 15 and 16 permitting

special provision for specified disadvantaged classes. ANALYSIS: An enabling clause is a **permission**, not a philosophical justification.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Equality and liberty are indispensable but each is **indeterminate about its own variants** - neither says which liberties are basic or which equality is owed - and justice is architectonic precisely because it supplies the criterion that ranks their competing claims.

MUST-WRITE KEYWORDS

equal moral worth · basic liberties · indeterminacy of each ideal taken alone · ordering or architectonic criterion · threshold of complementarity · fraternity · graded verdict

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Liberty and equality cannot adjudicate their own conflict, because each is silent about which of its variants should prevail. **Named evidence.** Rawls (1971) has to introduce a *lexical priority rule* to protect equal basic liberties, and Ambedkar has to add *fraternity* to liberty and equality before political democracy becomes stable - in both cases a third element does the ordering work. **Analysis.** The pattern is not accidental: an ideal can tell us what it values, but a ranking between two values must be stated from outside either one, and that external ranking is what "justice" names in this clause. **Qualification.** This does not make justice a neutral referee, since rival theories of justice already privilege different liberties and equalities; what it does establish is that the ordering rule must be made explicit and publicly defensible rather than smuggled in.

Objection -> reply -> residual limit

- **Objection.** Justice cannot order the other two, because every theory of justice already contains a conception of liberty and of equality - so the "referee" is a player.
- **Reply ANALYSIS:.** The mediation claim is **procedural, not neutral**: it says the ordering criterion must be stated openly and defended by public reasons, not that some theory-free vantage point exists.
- **Residual limit CAUTION:.** The dispute is genuine and survives the reply. Never write that justice *mechanically harmonises* every conflict; name the contested criterion, defend a graded ordering, and concede what the rival criterion still explains better.

Examiner traps on this session

1. Writing three unconnected mini-essays because the syllabus prints three words. The relation *is* the question in 2018 Q2(a), 2019 Q4(b), 2024 Q2(b) and 2025 Q4(a) - four of the fourteen owned parts.
2. Importing democracy's institutional forms. Even 2018 Q2(a), which mentions democracy, asks whether **liberty and equality** are its distinctive features; the forms of government belong elsewhere.
3. Treating "how far" as "yes or no". Every "how far" stem in this clause is asking for a **degree** judgement with stated conditions.

Mini recap

Three questions, three pivots, one adjudication. Liberty and equality generate claims; justice ranks them; the ranking must be argued, not assumed. Carry **Define -> Object -> Reconcile** into every answer in this cluster.

SESSION 2 - EQUALITY I: EQUAL MORAL WORTH AND THE FOUR FORMS

The picture first

THE FOUR FORMS OF EQUALITY -- A LADDER, NOT A LIST	
ECONOMIC EQUALITY	reduction of unjust disparities in wealth, resources and life chances [WARY] objection: may weaken incentive or need coercion reply: some redistribution protects fair freedom
SOCIAL EQUALITY	absence of status hierarchy, stigma and humiliation secures: equal civic respect objection: law alone cannot deliver it reply: needs education, social reform, fraternity
POLITICAL EQUALITY	equal citizenship, equal vote, eligibility for office secures: a non-oligarchic public standing objection: wealth still distorts real influence reply: curb domination, widen participation
FORMAL / LEGAL EQUALITY	equality before the law; equal protection of the laws secures: the rule against legal privilege objection: paper equality in a deeply unequal society reply: must be backed by substantive opportunity
FOUNDATION	EQUAL MORAL WORTH: persons count equally, so arbitrary hierarchy needs justification rather than presumption WARNING: equality of WORTH is not identity of talent, desire, capacity or outcome

Caption: read upward. Each rung secures something real, each is vulnerable alone, and the objections get harder as you climb.

In plain words

"Equal" does not mean "the same". Two people can be wildly different in strength, taste and talent and still be owed the same standing before the law, the same vote, the same freedom from humiliation. Equality is a claim about **how institutions must treat people**, not a false report that people are identical. Once that is clear, the real work begins: equality of *what*, and at which of the four levels?

The doctrine, exactly

FACT: **Basic meaning.** Equality means recognition of equal moral worth and the demand that institutions treat persons with equal concern - not sameness of persons in all respects. FACT: **The argument.** If all persons count morally, then arbitrary hierarchies of birth, caste, race, sex or inherited privilege stand in need of justification rather than enjoying presumption. FACT: **The presupposition.** Human beings are moral agents whose dignity does not vary with social rank. FACT: **The controlling distinction.** Equality of worth $\neq$ identity of talent, desire, capacity or outcome.

Form of equality	Statement	What it secures	Main objection	Standard reply
Formal / legal FACT:	Equality before the law and equal protection of the laws	The rule against legal privilege	Can be merely paper equality where society is deeply unequal	Must be supported by substantive opportunity
Political FACT:	Equal citizenship, equal vote, eligibility for office	Non-oligarchic public standing	Wealth may distort actual influence	Institutions must curb domination and widen participation
Social FACT:	Absence of status hierarchy and stigma	Equal civic respect	Hard to secure through law alone	Requires social reform, education and fraternity
Economic ANALYSIS:	Reduction of unjust disparities in resources, wealth and life chances	Fair background conditions	May weaken incentive or require coercive redistribution	Defenders argue some redistribution protects fair freedom

Named evidence you can cite

- FACT: **Equality before the law does not entail equal income**, but it does rule out legal privilege by status - the cleanest one-line illustration of why "equality is not sameness".
- FACT: **Articles 14-16** of the Constitution of India put the first two rungs into constitutional form: equality before the law and equal protection, prohibition of discrimination, and equality of opportunity in public employment.
- FACT: **Ambedkar** supplies the third rung's sharpest statement: a society may grant one vote to each citizen and still preserve deep civic humiliation and exclusion, which is why social equality is not a decorative addition to political equality.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Equality is best read not as sameness of share but as **equal moral standing** - and the four forms of equality are best read as a ladder, because each rung is genuinely secured only when the rung below it stops being merely formal.

MUST-WRITE KEYWORDS

equal moral worth · equal concern · formal or legal equality · political equality · social equality · economic equality · arbitrary hierarchy · paper equality

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Formal equality is necessary but is the weakest of the four forms, because it can be perfectly satisfied in a society that remains radically unequal. **Named evidence.** Equality before the law rules out legal privilege by status - Articles 14 to 16 give it constitutional form - yet it says nothing about who can realistically prepare for the office that is formally open. **Analysis.** The reason is structural: formal equality regulates the *rule*, while political, social and economic equality regulate the *conditions* under which the rule operates, so identical rules applied to unequally situated persons can reproduce the very hierarchy the rule forbids. **Qualification.** This is an argument for supplementing formal equality, not for discarding it: without the rule against legal privilege, substantive measures lose the standard by which they can be criticised in turn.

Objection -> reply -> residual limit

- **Objection.** Natural differences make equality unreal - people simply are not equal.
- **Reply FACT:.** Political equality does not deny difference; it denies that natural difference **by itself authorises domination**. The claim is normative, about the standing institutions must accord, not descriptive.
- **Residual limit ANALYSIS:.** The reply concedes that once we ask *which* differences are relevant to *which* good, the argument moves to the criteria problem in Session 16, and no appeal to "equal worth" alone settles it.

Examiner traps on this session

4. Reducing equality to "sameness" and then refuting the caricature. Equality means equal worth, status, concern, rights, opportunity or capability - not identical outcomes.
5. Treating the four forms as four synonyms. Each secures a different thing and dies of a different objection; a table with those two columns earns more than a paragraph of praise.
6. Writing "equality" without ever saying **equality of what**. The metric question is the modern form of the topic and it appears again in Sessions 6, 7 and 16.

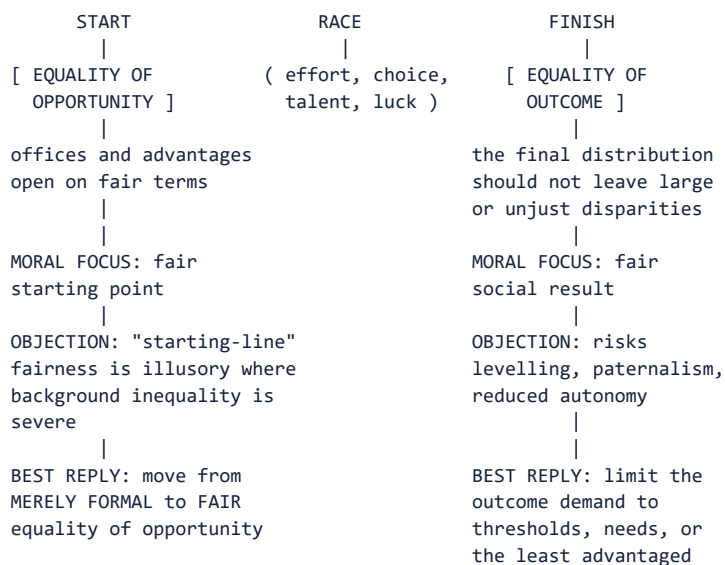
Mini recap

One foundation - equal moral worth. Four forms - legal, political, social, economic - each with its own gain and its own failure. One warning - worth is not identity.

SESSION 3 - EQUALITY II: A FAIR STARTING LINE OR A FAIR FINISHING LINE?

The picture first

TWO PLACES YOU CAN PUT THE DEMAND FOR FAIRNESS



THE TEST THAT SEPARATES THEM

"Open competition for an office is not fully fair where only one class can realistically prepare for it."

Caption: the same word "equality" is doing two different jobs. Say which job you mean before you evaluate it.

In plain words

Everybody agrees the race should be fair. The quarrel is about *where* fairness is measured. One camp measures it at the starting line: no one may be barred by birth. The other camp says a starting line means nothing if some children arrive after twelve years of good schooling and others after twelve years of hunger - so fairness must also show up in the results. Both positions have a real point, and both have a real cost.

The doctrine, exactly

FACT: Modern theory distinguishes **equality of opportunity** - offices and advantages should be open on fair terms - from **equality of outcome** - the distribution should not leave large or unjust final disparities.

Axis	Equality of opportunity	Equality of outcome
Core claim	Offices and advantages open on fair terms	Final distribution should not leave unjust disparities
Moral focus	Fair starting point	Fair social result
Liberal appeal	Respects effort and choice	Corrects structural disadvantage and inherited power
Main objection	"Starting-line" fairness is illusory where background inequality is severe	Risks levelling, paternalism and reduced autonomy
Best reply	Move from merely formal to fair equality of opportunity	Limit the outcome demand to thresholds, needs or the least advantaged

ANALYSIS: The argument that carries the section. Opportunity language dominates liberal societies because it appears to combine fairness with personal responsibility. But if children inherit grossly unequal education, health, culture and social networks, then opportunity is equal only in form. That is why the serious egalitarian move is not from opportunity to outcome, but from *formal* opportunity to **fair** equality of opportunity - a distinction Rawls (1971) writes into his second principle.

ANALYSIS: The reply that saves the outcome view from caricature. Most egalitarians do not demand identical outcomes. They demand **ceilings on avoidable deprivation and floors of decent capability** - which is why the

honest objection is not "you want everyone identical" but "your threshold is unspecified".

Named evidence you can cite

- **FACT: The preparation example:** open competition for public office is not fully fair where only one class can realistically prepare for it - the shortest available proof that formal openness is not fairness.
- **FACT: Rawls's second principle (1971)** contains **fair equality of opportunity** as a distinct requirement, ordered *before* the difference principle - evidence that a major liberal theory itself concedes that formal openness is insufficient.
- **ANALYSIS: Rousseau's diagnosis** (Session 4) explains why the starting line is uneven in the first place: convention converts natural difference into durable dependence.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

The real dispute is not opportunity **against** outcome but the distance between *formal* and **fair** equality of opportunity - because a starting line drawn across grossly unequal ground is a formality, not a fairness.

MUST-WRITE KEYWORDS

equality of opportunity · equality of outcome · formal against fair opportunity · background inequality · capability floor · avoidable deprivation · levelling objection

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Equality of opportunity is defensible only in its *fair*, not its merely formal, version. **Named evidence.** Open competition for an office is not fully fair where one class alone can realistically prepare for it; Rawls (1971) accordingly writes **fair** equality of opportunity into his second principle and ranks it *ahead* of the difference principle. **Analysis.** The formal version asks only whether a barrier is written into the rule, whereas the fair version asks whether persons of similar talent and willingness have similar prospects regardless of social origin - which converts opportunity from a property of the rule into a property of the background conditions. **Qualification.** The correction has its own cost: the more one equalises background conditions, the closer the doctrine moves to outcome-regulation, so the fair-opportunity position must state where its remedy stops.

Objection -> reply -> residual limit

- **Objection.** Outcome-based thinking abolishes incentive.
- **Reply ANALYSIS:.** Many egalitarians ask not for identical outcomes but for **ceilings on avoidable deprivation and floors of decent capability**; the incentive objection defeats flat levelling, not threshold egalitarianism.
- **Residual limit CAUTION:.** The threshold is genuinely under-specified. An answer that concedes this and then names its own threshold - subsistence, health, basic education - is stronger than one that pretends the problem does not exist.

Examiner traps on this session

7. Assuming "equality of opportunity" is automatically the moderate, safe answer. Merely formal opportunity is compatible with an almost perfectly closed society.
8. Presenting equality of outcome as the demand that everyone hold identical amounts. That is the caricature the levelling objection defeats; the defensible version is threshold-based.
9. Forgetting that **fair** equality of opportunity is a *named Rawlsian element* with a place in his ordering, not a general adjective.

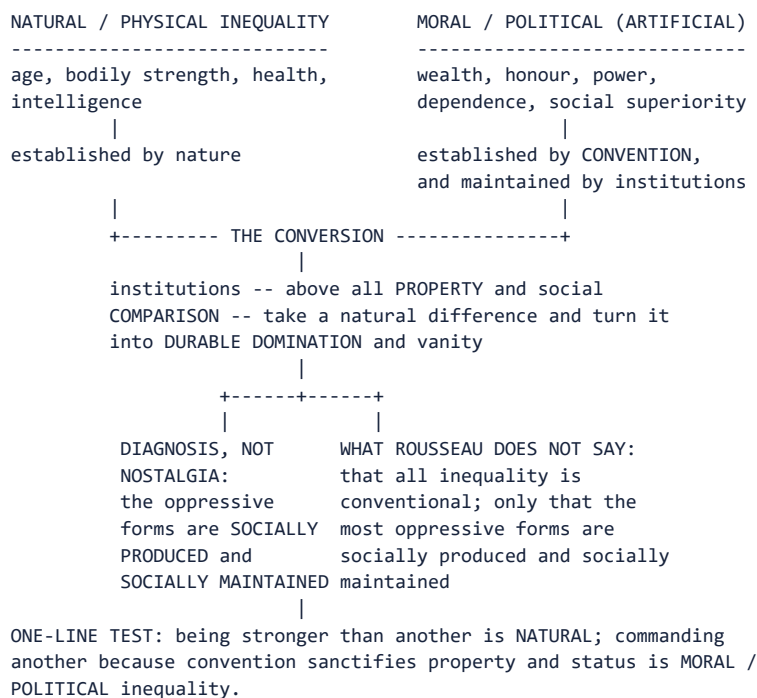
Mini recap

Fairness at the start, fairness at the finish, or fairness in the conditions that make the start meaningful. Say which you mean; then defend a threshold instead of a slogan.

SESSION 4 - EQUALITY III: ROUSSEAU ON NATURAL AND ARTIFICIAL INEQUALITY

The picture first

ROUSSEAU'S TWO KINDS OF INEQUALITY -- AND WHY ONE BECOMES POLITICAL



Caption: the distinction is a diagnostic instrument. Its power is in the arrow marked "the conversion".

In plain words

Some differences between people just happen: one is taller, one healthier, one quicker. Other differences are made - by property, rank, titles, offices and the habit of comparing ourselves with our neighbours. Rousseau's claim is that the second kind is the politically dangerous kind, and that it is not a natural fact at all but a social product, maintained by the very institutions that pretend to be discovering it.

The doctrine, exactly

FACT: Rousseau distinguishes **natural or physical inequality** - differences of age, strength, health or intelligence - from **moral or political inequality**, often called **artificial** inequality, which is established by convention: wealth, honour, power, dependence and social superiority. FACT: **The argument**. Natural differences become politically toxic when social institutions convert them into durable domination and vanity. Civil society - above all property and comparison - deepens dependence. FACT: **The presupposition**. Human beings in the state of nature are not yet trapped by the comparative social passions that later produce hierarchy. FACT: **The distinction that examiners reward**. Rousseau is **not** saying that all inequality is created by convention; he is saying that the most oppressive forms are socially produced and socially maintained.

Named evidence you can cite

- FACT: **The command example**. One person being stronger than another is natural; one person **commanding** another because convention sanctifies property and status is moral or political inequality. This single contrast is enough to carry the 2021 Q1(b) answer.
- ANALYSIS: **The institutional link**. Property and social comparison are the two named mechanisms of conversion - cite them by name rather than gesturing at "society".
- ANALYSIS: **The forward link**. Rousseau's diagnosis is what makes the *fair-opportunity* argument of Session 3 more than an assertion: if the starting line is a social artefact, then correcting it is not interference with nature.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Rousseau's distinction is **diagnostic, not pastoral**: its point is not that nature was kind, but that institutions magnify and then *legitimise* inequalities far beyond anything natural difference could support.

MUST-WRITE KEYWORDS

natural or physical inequality · moral, political or artificial inequality · convention · dependence · property and comparison · conversion of difference into domination · diagnostic, not pastoral

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Rousseau's distinction matters politically because it relocates the burden of proof: inequalities of rank must justify themselves, since they are conventional rather than natural. **Named evidence.** He separates differences of age, strength, health and intelligence, which nature establishes, from differences of wealth, honour, power and dependence, which convention establishes - and he names property and social comparison as the mechanisms that convert the first into the second. **Analysis.** Once the conversion is visible, the standard defence of hierarchy collapses, because that defence works by presenting a socially manufactured ranking as a discovery about nature. **Qualification.** Rousseau is not claiming that natural difference is politically irrelevant or that all inequality is conventional; the thesis is that the *oppressive* forms are socially produced and socially maintained, which is why they are also socially remediable.

Objection -> reply -> residual limit

- **Objection.** Rousseau romanticises nature and understates the inevitability of social ranking.
- **Reply ANALYSIS:.** The force of the distinction is diagnostic: whatever we conclude about the state of nature, institutions demonstrably magnify and legitimise inequalities far beyond natural difference.
- **Residual limit CAUTION:.** A genetic account of how inequality arose is not by itself a justification of any particular remedy - the diagnosis licenses scrutiny, not a specific redistribution.

Examiner traps on this session

10. Confusing Rousseau's *natural* inequality with natural **rightlessness**. Natural inequality is about bodies and talents; it never implies that some persons naturally lack standing.
11. Writing the answer as a history of the state of nature. The 2021 stem asks how he **distinguishes** the two, so the contrast and the conversion mechanism are the marks.
12. Attributing "forced to be free" to this distinction. That formula belongs to his account of liberty and the general will (Session 10), not to the inequality distinction.

Mini recap

Two inequalities: one natural, one conventional. One mechanism: property plus comparison. One verdict: the oppressive kind is made, therefore it must justify itself.

SESSION 5 - EQUALITY IV: J. S. MILL'S SALIENT FEATURES OF EQUALITY

The picture first

```
MILL'S EQUALITY -- SIX FEATURES, ONE LIMIT
=====

(1) EQUAL WORTH IN MORAL ACCOUNTING
    each person counts; no one is discounted for birth or station
    |
(2) EQUALITY BEFORE LAW AND OF CITIZENSHIP
    privilege by status is indefensible
    |
(3) WOMEN'S EQUALITY                                <-- the radical edge
    'The Subjection of Women' (1869): legal and social
    subordination is a relic of domination, not of nature
    |
(4) EQUALITY COMPATIBLE WITH INDIVIDUALITY
    the goal is free self-development, not sameness
    |
(5) HOSTILITY TO CUSTOM-MADE HIERARCHY
    inherited subordination blocks BOTH utility AND justice
    |
(6) QUALIFIED ECONOMIC CONCERN                        [ ! ]
    open to reforming property and labour conditions,
    NOT to extinguishing all differences by coercive equalisation
=====
THE LIMIT THAT MUST BE STATED: Mill is a liberal egalitarian
IN A QUALIFIED SENSE. Equal status and equal chance -- yes.
Crude levelling that suppresses individuality -- no.
```

Caption: features 1-5 are the positive doctrine; feature 6 and the closing limit are what turn a list into an evaluation.

In plain words

Mill wants every person to count the same in the moral ledger and to stand the same before the law - and he is willing to follow that principle further than almost any liberal of his century, all the way to the legal and social subordination of women, which he calls a relic of an older regime of domination. But he does not want a society of identical lives. The whole point of removing hierarchy, for Mill, is to release individuality, not to replace one uniform with another.

The doctrine, exactly

FACT: The position. Mill is a liberal egalitarian *in a qualified sense*: he affirms equal moral standing, equal civic and legal status, and especially **gender equality**, while resisting crude levelling that suppresses individuality.

The six salient features - the answer skeleton for 2025 Q1(e):

1. **Equal worth in moral accounting** FACT: - each person counts, and no one is discounted for birth or station.
2. **Equality before the law and equal citizenship** FACT: - privilege by status is indefensible.
3. **Women's equality** FACT: - in *The Subjection of Women (1869)*, legal and social subordination of women is attacked as a relic of domination rather than a dictate of nature.
4. **Equality compatible with individuality** FACT: - sameness is not the goal; free self-development is.
5. **Hostility to custom-made hierarchy** FACT: - inherited social subordination blocks both utility and justice.
6. **Qualified economic concern** ANALYSIS: - Mill is open to reforming property relations and labour conditions, but not to extinguishing all differences by coercive equalisation.

FACT: The supporting argument. A society that excludes half its members, or that attaches rights to status, wastes human capacities and violates utility properly understood - so for Mill the egalitarian and the utilitarian case converge rather than compete. **FACT: The presupposition.** Human flourishing requires individuality and experimentation in living. **FACT: The distinction.** Equality of status and chance $\neq$ uniformity of life plan.

Named evidence you can cite

- **FACT: The feminist argument, stated precisely.** The subordination of women is not justified by nature, because the "nature" appealed to is itself **socially manufactured through subjection** - the appeal to women's nature is evidence produced by the very system under examination.

- **FACT: The utility-plus-justice convergence.** Excluding half the population wastes capacities; this is why Mill can criticise custom-made hierarchy on both utilitarian and justice grounds without changing his premises.
- **ANALYSIS: The comparison that adds depth.** Set feature 6 beside Marx (Session 6): Mill radicalises equality *within* liberalism, chiefly in social relations and gender, while conceding the ground on structural economic transformation.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Mill's equality is best described as **equal status without uniformity**: he removes hierarchy in order to release individuality, which is why the same doctrine that makes him a radical on the subjection of women makes him a moderate on economic levelling.

MUST-WRITE KEYWORDS

equal moral standing · equality before the law · the subjection of women (1869) · individuality and experiments in living · custom-made hierarchy · qualified economic concern · socially manufactured "nature"

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Mill's most distinctive egalitarian contribution is to extend equality beyond formal rights into social relations, above all in the case of women. **Named evidence.** In *The Subjection of Women* (1869) he argues that the legal and social subordination of women is a relic of an older regime of domination, and that the appeal to women's "nature" is worthless as evidence because that nature has been produced by subjection itself. **Analysis.** This converts a supposed natural fact into a social artefact, so the burden of justification shifts back onto the hierarchy - the same manoeuvre Rousseau performs for rank, now performed for sex. **Qualification.** The extension has a boundary: Mill remains committed to individuality and to reform rather than transformation of property relations, so his equality is one of status and chance, not of condition - which is precisely the point at which Marx presses him.

Objection -> reply -> residual limit

- **Objection.** Mill remains too individualistic to address structural economic inequality.
- **Reply ANALYSIS:.** True as far as it goes; but within liberalism he radicalises equality by carrying it beyond formal rights into social relations, especially gender - a move his contemporaries mostly refused.
- **Residual limit CAUTION:.** The concession is real. Where the question is about the *material* limits of formal equality, Marx and not Mill is the stronger authority, and an answer that says so is more credible than one that defends Mill on every front.

Examiner traps on this session

13. Reducing Mill to laissez-faire licence. He defends liberty through the harm principle, insists on individuality, and is strongly committed to women's equality.
14. Listing five features and omitting the qualification. The 2025 stem says "salient features", and the feature that separates a good script from an average one is the **limit** on coercive equalisation.
15. Dating the feminist argument to *On Liberty*. *On Liberty* is **1859**; *The Subjection of Women* is **1869**.

Mini recap

Six features, one limit. The radical edge is gender; the moderate edge is economics; the connecting thread is individuality.

SESSION 6 - EQUALITY V: MARX ON EQUALITY, EQUITY AND NEED

The picture first

EQUITY vs EQUALITY IN THE MARXIAN FRAME

FORMAL EQUALITY UNDER CAPITALISM	MARXIAN EQUITY / COMMUNIST PRINCIPLE
DISTRIBUTION RULE equivalent exchange among legal equals	DISTRIBUTION RULE distribution BY NEED in higher communism
HIDDEN REALITY class power shapes production and appropriation	SOCIAL PRODUCTION organised for human flourishing
LABOUR RELATION the wage contract APPEARS free and equal	alienation and exploitation are overcome
MORAL DEFECT the same legal rule applied to unequals reproduces class domination	unequal NEEDS justify differentiated shares
THE FORMULA: 'From each according to his ability, to each according to his need.'	
THE ONE-LINE CONTRAST FOR THE EXAM	
EQUALITY = the same measure applied to all	
EQUITY = differentiated treatment responsive to need and actual condition	
WHY 'EQUAL RIGHT' CAN BE A RIGHT OF INEQUALITY	
one common standard + unequal needs, burdens, families and starting positions = unequal effect	

Caption: the left column is not a description of law's intentions but of its effects; the bottom box is the sentence that answers 2022 Q2(c).

In plain words

Two workers do the same hours for the same wage. That looks like equality. But one supports four dependants and the other none; one began with property and the other with debt. Applying one identical measure to unequally placed people produces unequal outcomes - so an "equal right", measured by a common standard, can be a right of inequality. Marx's deeper claim goes further: the wage relation itself is structurally exploitative, so the trouble is not only the measure but the system that requires it.

The doctrine, exactly

FACT: **The position.** Marx is suspicious of merely formal equality under capitalism because formally equal exchange can conceal material exploitation. FACT: **The canonical formula** - from the *Critique of the Gotha Programme*: "From each according to his ability, to each according to his need." FACT: **The argument.** Bourgeois equality abstracts from class structure. Equal right, measured by a common standard, can still be a right of inequality, because persons differ in need, burden, family condition and starting position. FACT: **The presupposition.** Human beings are socially formed producers; justice cannot be reduced to market exchange between isolated possessors. FACT: **The controlling distinction - the exact answer to 2022 Q2(c).** Equality = the same measure for all; equity = differentiated treatment responsive to need and actual condition.

Theme	Formal equality under capitalism	Marxian equity / communist principle
Distribution rule	Equivalent exchange among legal equals	Distribution by need in higher communism
Hidden reality	Class power shapes production and appropriation	Social production organised for human flourishing
Labour relation	The wage contract appears free and equal	Alienation and exploitation are overcome
Moral defect	The same legal rule applied to unequals reproduces class domination	Unequal needs justify differentiated shares

Named evidence you can cite

- **FACT: The dependants example.** Equal wages for equal hours may still be inequitable if one worker supports dependants and another does not - with the immediate corrective that Marx's deeper claim is about the wage relation itself, not merely about pay scales.
- **FACT: The two-stage structure.** The need-based formula belongs to a **higher** stage of social cooperation, after alienated labour and scarcity are transformed; it is not proposed as a salary rule for market societies. Missing this stage-distinction is the commonest error in the 2022 answer.
- **ANALYSIS: The boundary.** Marxism as a political ideology - historical materialism, class struggle, the theory of the state - is owned by **Political Ideologies**. This owner uses Marx only for the equity/equality distinction and the critique of formal equality.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

For Marx an **equal right can be a right of inequality**, because one common standard applied to persons with unequal needs, burdens and starting positions guarantees unequal effect - which is precisely why equity, and not equality, is the demanding ideal.

MUST-WRITE KEYWORDS

formal equality · equity as need-sensitivity · equal right as a right of inequality · ability and need · alienation · exploitation concealed by equivalent exchange · higher stage of communism

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The Marxian objection is not that capitalist law fails to be equal, but that its equality is exactly the problem. **Named evidence.** In the *Critique of the Gotha Programme* the distributive formula is "from each according to his ability, to each according to his need", and the accompanying argument is that a right measured by one common standard is applied to persons who differ in need, burden and family condition. **Analysis.** Equality is therefore reinterpreted as a *measure*, and once it is a measure it inherits the defect of all single measures - it abstracts from precisely the differences that decide whether a share is adequate, which is why equity, defined as differentiated treatment responsive to actual condition, is the more demanding ideal. **Qualification.** The formula is explicitly tied to a higher stage of social cooperation in which alienated labour and scarcity have been transformed, so it is a normative projection rather than a demonstrated historical law, and it should not be quoted as an immediate policy rule.

Objection -> reply -> residual limit

- **Objection.** Need-based distribution is vague and may weaken incentive.
- **Reply ANALYSIS:.** Marx's principle concerns a higher stage of social cooperation where alienated labour and scarcity are transformed; it is not offered as a market-time salary rule, so the incentive objection misses its intended domain.
- **Residual limit CAUTION:.** The two-stage structure is a normative projection, not a demonstrated law of history - say so, and the answer gains rather than loses credibility.

Examiner traps on this session

16. Turning the 2022 answer into an essay on Marxism. The demanded concept is **equity against equality**; Marx supplies the frame, and the ideology owner supplies the rest.

17. Quoting the ability/need formula as a proposal for present wage policy, and then refuting it as unworkable. The formula is indexed to the higher stage.
18. Saying Marx "rejects equality". He rejects the sufficiency of *formal* equality under capitalism; the communist principle is itself an egalitarian ideal on a different metric.

Mini recap

Equality is one measure for all; equity is treatment answering to actual need. The trap is applying one standard to unequally placed people and calling the result fair.

SESSION 7 - EQUALITY VI: "EQUALITY OF WHAT?" - SEN, COHEN AND DWORKIN

The picture first

```

THE MODERN QUESTION IS NOT WHETHER TO VALUE EQUALITY, BUT
=====
      E Q U A L I T Y   O F   W H A T ?
=====

SEN -- CAPABILITY                | WHY RESOURCES ARE NOT ENOUGH
what persons are actually ABLE   | the same bundle of resources
TO DO AND TO BE                  | yields different real freedoms
                                | because of disability, age,
resources != capabilities         | gender, climate, health and
possession != effective freedom  | social position
-----
COHEN -- WELFARE? OPPORTUNITY FOR ADVANTAGE? ACCESS TO ADVANTAGE?
presses the question further, and adds a second target:
if the talented DEMAND extra reward to contribute, is the
resulting inequality justice -- or moral bargaining power?
-> institutional justice can be undermined by an anti-egalitarian
    ETHOS, so personal choices matter, not only institutions
-----
DWORKIN -- EQUALITY OF RESOURCES, NOT OF WELFARE
neutralise BRUTE LUCK; respect responsible CHOICE
    brute luck ..... misfortune one did not choose
    option luck ..... the outcome of a risk one chose
device: auction and insurance thought-experiments
-----
THE SHARED PAYOFF: naming the METRIC converts a vague
'equality is important' answer into an examinable position.

```

Caption: three answers to one question. In the exam, state the metric first; every evaluation follows from it.

In plain words

Once we agree people should be equal in *something*, we still have to say in what. Equal money? Equal happiness? Equal chances? Sen's answer is: equal in what you can actually do and be, because the same money buys very different lives for a disabled person, a pregnant worker and a healthy young man. Dworkin's answer is: equal in resources, with insurance against the bad luck you did not choose but no compensation for risks you did. Cohen's answer is a question back: are we sure the inequality we tolerate is justice rather than the bargaining power of the talented?

The doctrine, exactly

Sen - capability FACT:

- Equality should focus neither only on utility nor only on primary goods, but on **capabilities**: what persons are actually able to do and to be.
- **Argument FACT**:: the same bundle of resources yields different real freedoms for different persons because of disability, age, gender, climate, health and social position.
- **Presupposition FACT**:: persons are diverse in how they convert resources into functioning.
- **Distinctions FACT**:: resources $\neq$ capabilities; possession $\neq$ effective freedom.
- **Example ANALYSIS**:: two persons with the same income may not have the same real mobility or educational possibility.

Cohen - the metric and the ethos FACT:/ANALYSIS:

- Cohen presses whether equality should concern welfare, opportunity for advantage, access to advantage, or broader community-sensitive conditions.
- **Argument ANALYSIS::** if justice is compromised by the incentives demanded by the talented, then unequal outcomes are not fully excused merely because institutions are just at the level of the basic structure.
- **Presupposition ANALYSIS::** personal choices and social ethos matter, not only institutions.
- **Distinction ANALYSIS::** institutional justice against an egalitarian social ethos.
- **Example ANALYSIS::** if the talented demand extra reward in order to contribute, Cohen asks whether that reflects justice or moral bargaining power.

Dworkin - resource egalitarianism FACT:

- Dworkin argues for **equality of resources**, not equality of welfare.
- **Argument FACT::** justice should neutralise **brute luck** while respecting responsible choice; his auction and insurance thought-experiments are devices for showing how equal concern can coexist with personal responsibility.
- **Distinction FACT::** brute luck against **option luck**.
- **Example ANALYSIS::** society may insure against misfortune people did not choose without compensating every outcome of a risky voluntary choice.

ANALYSIS: **Interim verdict on equality (carry this into any equality answer).** Equality is strongest when treated as **equal status, fair opportunity and protection against arbitrary domination**, while remaining alert to need, capability and historical oppression. The deepest debates are not "equality or no equality" but *which metric, what scope, and how far equality may justify differential treatment*.

Named evidence you can cite

- FACT: **Sen's conversion point:** equal income does not produce equal mobility or equal educational possibility where bodily condition or social norms differ - the single most transferable example in this session, and the bridge to 2021 Q2(a).
- ANALYSIS: **Cohen's incentives challenge:** the demand for extra reward by the talented is treated as a candidate case of moral bargaining power rather than of desert.
- FACT: **Dworkin's luck/choice line:** insurance against unchosen misfortune, no compensation for chosen risk - a compact statement of how equality can respect responsibility.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

The modern egalitarian question is not *whether* to value equality but **equality of what** - and naming the metric, whether capability, resources, welfare or access to advantage, is what turns an approving paragraph about equality into an examinable position.

MUST-WRITE KEYWORDS

equality of what · capability · conversion of resources into functioning · effective freedom · brute luck against option luck · equality of resources, not welfare · egalitarian ethos · moral bargaining power

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The capability metric is superior to a resource metric wherever human diversity is significant. **Named evidence.** Sen's point is that the same bundle of resources yields different real freedoms depending on disability, age, gender, climate, health and social position, so two persons with identical incomes may not enjoy the same mobility or educational possibility. **Analysis.** The metric therefore shifts the evaluative question from *what a person holds* to *what a person can do and be*, which is the only way to register the fact that conversion rates differ systematically and predictably between people. **Qualification.** The gain is bought at a price: capability lists are indeterminate, and Sen deliberately leaves the specification to public reasoning rather than fixing a final list - a choice that is defensible for plural societies but leaves comparative rankings less determinate than a resource metric would.

Objection -> reply -> residual limit

- **Objection (against Sen).** Capability lists can be indeterminate.
- **Reply FACT:.** Sen deliberately leaves room for **public reasoning** rather than legislating a rigid final list, because the relevant capabilities differ across societies.
- **Objection (against Cohen).** His standard is too demanding of personal virtue.
- **Reply ANALYSIS:.** He reveals something institutions cannot fix on their own - that institutional equality is undermined by anti-egalitarian attitudes and incentive demands.
- **Objection (against Dworkin).** Separating luck from choice is often impossible in practice.
- **Reply ANALYSIS:.** Even imperfect, the distinction clarifies why egalitarianism need not equalise every preference-satisfaction.
- **Residual limit CAUTION:.** All three replies concede indeterminacy at exactly the point where policy has to act; an answer that names this shared weakness is more credible than one that champions a single metric.

Examiner traps on this session

19. Explaining Sen only as welfare economics. In philosophy answers stress **nīti and nyāya** (Session 19), comparative justice, capability and public reasoning.
20. Merging Dworkin's *equality of resources* with Sen's *capability*. They are rival answers to the same question, and the difference is exactly the conversion problem.
21. Presenting Cohen as a Rawlsian ally. His challenge is directed at the sufficiency of institutional justice, which is why he is a second-order critic of Rawls, not a supporter.

Mini recap

One question - equality of what? Three answers - capability, resources, and access to advantage under an egalitarian ethos. One shared weakness - indeterminacy where policy must decide.

SESSION 8 - LIBERTY I: THE MEANING OF LIBERTY AND BERLIN'S TWO CONCEPTS

The picture first

BERLIN'S TWO CONCEPTS -- TWO DIFFERENT QUESTIONS, NOT TWO DEGREES

=====

NEGATIVE LIBERTY 'Within what area am I left alone?'	POSITIVE LIBERTY 'Who governs me? By what self am I directed?'
-----+-----	
BASIC SENSE freedom FROM interference	BASIC SENSE freedom TO be one's own master
-----+-----	
TYPICAL LINEAGE Hobbes, Locke, Mill, classical liberalism	TYPICAL LINEAGE Rousseau, Kantian autonomy, Hegel, Green
-----+-----	
MAIN VALUE protection against coercion and paternalism	MAIN VALUE self-mastery, rational agency, self-realisation
-----+-----	
BERLIN'S WARNING ABOUT IT too little positive concern may ignore actual incapacity	BERLIN'S WARNING ABOUT IT may justify coercing the 'lower self' for the 'real self'

=====

THE MECHANISM OF THE DANGER

split the person into REAL SELF and EMPIRICAL SELF

|
let the ruler claim to know the real self's true interest
|

coercion is now redescribed as LIBERATION

=====

WHAT BERLIN DOES *NOT* SAY: he does not deny the human appeal of self-mastery, and he does not claim that social preconditions of freedom are irrelevant.

Caption: the danger is not positive liberty as an ideal but the political move in the lower box - read the three arrows in order.

In plain words

Ask "how free am I?" and you may be asking one of two quite different things. You may be asking how large the area is in which nobody blocks you. Or you may be asking who is really in charge of your life - you, or your addictions, your ignorance, your poverty, or somebody claiming to act in your name. Berlin's argument is that both questions are real, but the second one has a political history: when a ruler claims to know your true self better than you do, coercion can be sold as emancipation.

The doctrine, exactly

FACT: **Liberty, basic meaning.** Liberty refers to a protected sphere of action and thought, and in richer accounts to the power of self-direction or self-realisation. FACT: **Argument.** A person is not fully human if every act depends on another's permission. FACT: **Distinction.** Liberty $\neq$ mere power. A tyrant has power, not a right to liberty. FACT: **Reply to the sceptic.** "No one is ever absolutely unconstrained" is true and irrelevant: liberty theory concerns **justified and unjustified constraints**, not metaphysical limitlessness.

FACT: **Berlin's distinction.** *Negative liberty* answers "within what area am I left alone?"; *positive liberty* answers "who governs me, and by what self am I directed?". FACT: **Berlin's actual claim.** He does not deny the attraction of positive liberty; he warns that when rulers claim to know a person's "true" interests better than the person herself, coercion can masquerade as emancipation. FACT: **The mechanism of the danger.** The split between a "real self" and an "empirical self" is what permits authoritarian paternalism. FACT: **Berlin's own background commitment.** *Value pluralism*: human goods are many and not always harmonisable - which is why he distrusts any single overriding political project. FACT: **The distinction that saves him from caricature.** Enabling conditions for freedom are one thing; a doctrine authorising forced perfection is another.

Named evidence you can cite

- FACT: **The illustration Berlin's warning is built for:** a state that silences dissent "for citizens' true freedom" - the exact structure the real-self / empirical-self split makes available.
- FACT: **The standard objection:** pure negative liberty ignores poverty, addiction, illiteracy and dependency - and the standard reply, that Berlin's distinction need not deny social preconditions but warns against totalising political projects undertaken in the name of liberation.
- ANALYSIS: **Forward link:** Session 13 adds a third family - freedom as **non-domination** - which is neither of Berlin's two and which reopens the liberty-equality question.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Berlin's two concepts are not two quantities of one thing but two different questions - *how large is my unobstructed area* and *who is really directing me* - and the political danger he identifies lies in the second question's power to redescribe coercion as liberation.

MUST-WRITE KEYWORDS

negative liberty · positive liberty · freedom from interference · self-mastery · real self against empirical self · value pluralism · enabling conditions against forced perfection

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Berlin's target is not positive liberty as an ideal but a specific political inference drawn from it. **Named evidence.** He identifies the move that splits the person into a "real" and an "empirical" self, so that a ruler claiming knowledge of the real self's interests can present coercion of the empirical self as emancipation; his own background commitment to value pluralism is what makes him suspicious of any single overriding project. **Analysis.** The argument is therefore about a licensing structure rather than about a definition: once the split is granted, no independent check remains on who speaks for the real self, and the language of liberation becomes available to precisely the power it was meant to restrain. **Qualification.** This leaves the strongest objection standing - that purely negative liberty ignores poverty, addiction, illiteracy and dependency - and Berlin's distinction does not require denying those preconditions, so the honest verdict is that he identifies a danger in one route to enabling freedom rather than refuting the goal.

Objection -> reply -> residual limit

- **Objection.** Pure negative liberty serves the already powerful, because it counts only obstacles and not incapacities.
- **Reply ANALYSIS:.** The charge succeeds if negative liberty is isolated from fair background conditions; it fails when negative liberty is combined with equal basic rights and safeguards against arbitrary power.
- **Residual limit CAUTION:.** Whether "enabling conditions" can be supplied without the paternalism Berlin fears is exactly what Green (Session 10) and Pettit (Session 13) dispute - and it remains open.

Examiner traps on this session

22. Writing that Berlin "supports negative liberty and rejects positive liberty". He distinguishes them and warns about the authoritarian misuse of the second; he does not deny its human appeal.
23. Treating the two concepts as more and less of the same freedom. They answer different questions, which is why a person can score high on one and low on the other.
24. Confusing liberty with power. The tyrant's unlimited power is not an instance of liberty; liberty is a normative standing, not a measure of capacity to act.

Mini recap

Two questions, two lineages, two dangers. The mechanism to remember is the real-self split; the concession to remember is that enabling conditions are not automatically paternalism.

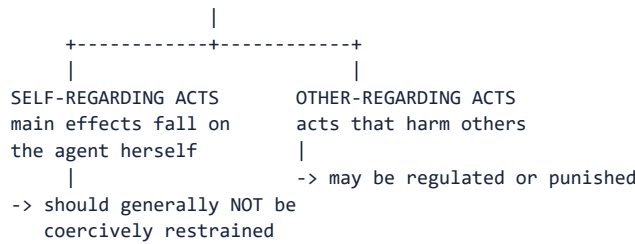
SESSION 9 - LIBERTY II: MILL'S HARM PRINCIPLE

The picture first

MILL'S HARM PRINCIPLE ('On Liberty', 1859)

=====

THE ONLY LEGITIMATE GROUND FOR COERCING AN ADULT AGAINST HER WILL
IS TO PREVENT HARM TO OTHERS.



WHY: individuality, experimentation and freedom of discussion are essential BOTH for truth AND for human development

THE LINE THAT IS ALWAYS TESTED
OFFENCE or DISAPPROVAL $\neq$ HARM
moral dislike alone is NOT a ground for coercion

THE TWO STANDARD OBJECTIONS	MILL'S DEFENSIBLE POSITION
1. few acts are cleanly self-regarding; private conduct has social spillovers	the principle is a PRESUMPTION for liberty, not a denial of all
2. 'harm' is itself contestable -- is moral corruption, dependency or public incency a harm?	regulation: the BURDEN OF PROOF lies on coercion, and paternalism stays exceptional

Caption: the principle is a rule about who must prove what. Read the bottom two rows together or the objections look fatal.

In plain words

Mill's rule is short: the only reason society may force an adult to do or not do something is to stop harm to other people. Not because the majority finds it distasteful. Not because it is bad for her. The rule is attacked from two sides - almost nothing is purely private, and "harm" is itself a contested word - and Mill's best defence is that he was never claiming a clean boundary. He was claiming that coercion must argue its case, and that being offended is not an argument.

The doctrine, exactly

FACT: **The principle.** In *On Liberty* (1859), the only legitimate reason for coercing an individual against her will is to prevent **harm to others**. FACT: **Self-regarding acts.** Actions whose primary effects fall on the agent herself should generally not be coercively restrained. FACT: **Other-regarding acts.** Actions harming others may be regulated or punished. FACT: **The supporting argument.** Individuality, experimentation and freedom of discussion are essential both for truth and for human development. FACT: **The presupposition.** Competent adults are generally the best judges of their own good. FACT: **The distinction that is always tested.** Offence or disapproval $\neq$ harm; moral dislike alone is not a sufficient ground for coercion. FACT: **The illustration.** Heterodox opinion should not be suppressed merely because the majority finds it false or offensive.

FACT:/ANALYSIS: **The two standard objections, stated at full strength.** (i) Many acts are not cleanly self-regarding, since private conduct can have social spillovers; (ii) *harm* is itself contestable - are moral corruption, dependency or public indecency harms? ANALYSIS: **The reply that keeps the doctrine alive.** Mill's doctrine is a **presumption for liberty**, not a denial of all regulation. The burden of proof lies on coercion, and paternalism must remain exceptional.

Named evidence you can cite

- FACT: **The heterodox-opinion case** is Mill's own, and it does double duty: it shows why free discussion serves truth, and it shows that unpopularity is not harm.
- FACT: **The link to equality (Session 5)**. The same commitment to individuality that grounds the harm principle grounds Mill's insistence that equality must not become uniformity - which is why the 2025 stem on "salient

features of equality" can legitimately cite *On Liberty* alongside *The Subjection of Women*.

- ANALYSIS: **The boundary caution.** The harm principle is a liberty doctrine, not a theory of criminalisation; questions on punishment belong to **Crime and Punishment**.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

The harm principle is best defended not as a clean boundary between private and public but as a **rule about the burden of proof** - coercion must justify itself by pointing to harm, and the fact that a majority is offended is not such a justification.

MUST-WRITE KEYWORDS

harm principle · self-regarding acts · other-regarding acts · offence is not harm · presumption for liberty · burden of proof on coercion · individuality and experiments in living

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The instability of Mill's self-regarding/other-regarding line damages his classification but not his principle. **Named evidence.** In *On Liberty* (1859) the only legitimate ground for coercing an adult is prevention of harm to others, and Mill insists that offence or moral disapproval is not harm - as when heterodox opinion is suppressed merely because the majority finds it false. **Analysis.** Critics are right that few acts are purely self-regarding and that "harm" is contested; but both objections attack the *sorting* of acts, whereas the principle's real work is to allocate the burden of proof, so that a regulation must show an injury rather than a distaste. **Qualification.** Read this way the principle permits regulation while keeping paternalism exceptional, and its residual weakness is honest rather than fatal: it cannot itself settle whether dependency or public indecency counts as harm, and that further argument must be made on separate grounds.

Objection -> reply -> residual limit

- **Objection.** The self-/other-regarding distinction is unstable, so the principle is unusable.
- **Reply ANALYSIS:.** It remains a valuable **presumption** that places the burden of proof on coercion - an allocation rule survives even where the classification blurs.
- **Residual limit CAUTION:.** What counts as harm is genuinely contested, and Mill's own qualifications about who falls within the principle's scope are contested too; note the limitation instead of concealing it.

Examiner traps on this session

25. Turning Mill into a defender of licence. The harm principle *permits* regulation of other-regarding conduct; it restricts the *grounds*, not the possibility.
26. Treating "offence" as a species of harm in order to make the principle workable. That collapses the distinction Mill's whole argument rests on.
27. Citing the harm principle as a theory of punishment. It is a criterion for legitimate interference; the justification of punishment is another owner's question.

Mini recap

One rule, two categories, one contested word. Defend the rule as a burden-of-proof allocation, and concede that the categories blur.

SESSION 10 - LIBERTY III: HOBBS, LOCKE, ROUSSEAU AND GREEN

The picture first

FOUR SPECIFICATIONS OF FREEDOM -- WHAT EACH GAINS, WHAT EACH RISKS

=====	
HOBBS	liberty = absence of external impediments; under law, one is free WHERE THE LAW IS SILENT presupposition: security is primary; fear defines the state of nature GAIN: a strong state ends civil war RISK: liberty becomes thin, a residual gap left by power
LOCKE	liberty is NOT licence: it is freedom under known law preserving life, liberty and property presupposition: natural rights pre-exist government GAIN: constitutional limits and consent RISK: property-centred liberty may mask inequality
ROUSSEAU	true liberty is obedience to a law one prescribes to oneself as part of the GENERAL WILL presupposition: freedom requires participation and moral autonomy GAIN: citizens become self-legislating RISK: the general will may be misread in majoritarian or authoritarian ways
T. H. GREEN	liberty is the POSITIVE POWER to do or enjoy something worth doing or enjoying; tied to self-realisation presupposition: the self has higher capacities that conditions can foster or deform GAIN: names disabling conditions, not just coercion RISK: the state may impose a preferred conception of the good

=====

THE AXIS THE FOUR ARE ARRANGED ON

WHAT IS THE ENEMY OF FREEDOM?

Hobbes: disorder ... Locke: arbitrary power ...

Rousseau: dependence on another's private will ...

Green: incapacity

Caption: read the last box first. Four thinkers, four different enemies - which is why they specify freedom differently.

In plain words

If you think the real enemy of freedom is chaos, you will define freedom as whatever the law leaves alone, and you will want a strong state. If you think the enemy is arbitrary power, you will define freedom as life under known, limited law. If you think the enemy is being subject to somebody else's private will, you will want citizens to make the laws they obey. And if you think the enemy is being unable to do anything worth doing, you will call education and health part of freedom itself.

The doctrine, exactly

Thinker	Statement of liberty	Presupposition	Main gain	Main risk or objection
Hobbes FACT:	Liberty is absence of external impediments; under law, one is free where the law is silent	Security is primary; fear defines the state of nature	A strong state ends civil war	Liberty becomes thin and subordinated to sovereign order
Locke FACT:	Liberty is not licence; it is freedom under known law preserving life, liberty and property	Natural rights pre-exist government	Constitutional limits and consent	Property-centred liberty may mask inequality
Rousseau FACT:	True liberty is obedience to a law one prescribes to oneself as part of the general will	Freedom requires participation and moral autonomy	Citizens become self-legislating	The general will may be misread in majoritarian or authoritarian ways
Green FACT:	Liberty is the positive power to do or enjoy something worth doing or enjoying, tied to self-realisation	The self has higher capacities that conditions can foster or deform	Names disabling conditions, not only coercion	The state may paternalistically impose a preferred conception of the good

FACT: **Hobbes, in detail.** Liberty is the absence of impediments to motion; politically, subjects are free where the sovereign has not prohibited action. Without order, liberty is insecure because all fear violent death. **Objection ANALYSIS::** this reduces liberty to a residual gap tolerated by power. **Reply ANALYSIS::** Hobbes's point is that stable freedom presupposes peace.

FACT: **Locke, in detail.** Liberty exists under law, not outside it; arbitrary power is the enemy of freedom. Since persons have natural rights, government is fiduciary and limited. **Objection ANALYSIS::** the emphasis on property privileges possessive individualism. **Reply ANALYSIS::** Locke nonetheless grounds liberty in anti-arbitrariness and consent, which is decisive for constitutionalism.

FACT: **Rousseau, in detail.** Civil liberty and moral freedom arise when each, in obeying the general will, obeys a law one gives oneself collectively. Mere appetite is slavery; autonomy requires participation in a common rational will. **Objection ANALYSIS::** "forced to be free" invites an authoritarian reading. **Reply ANALYSIS::** defenders insist the doctrine concerns legitimate collective self-rule, not private domination by rulers.

FACT: **Green, in detail.** Mere non-interference is hollow where persons are crippled by ignorance, addiction, destitution or social subordination. **Distinction FACT::** coercion is not the only enemy of freedom; disabling conditions also matter. **Example ANALYSIS::** education can enhance liberty because it equips agency rather than merely leaving persons alone. **Objection ANALYSIS::** the state may paternalistically impose a preferred conception of the good. **Reply ANALYSIS::** Green's strongest reading is *enabling*, not perfectionist: institutions should enlarge the effective capacity for worthwhile action.

Named evidence you can cite

- FACT: **Green's education example** is the cleanest case where a positive-liberty measure is plainly enabling rather than perfectionist, and it is the safest illustration in any answer defending positive freedom.
- FACT: **Berlin against Green** (Session 20) is the classic pairing: Berlin's anxiety is coercion in the name of a higher freedom; Green's anxiety is formal liberty without the power to use it.
- ANALYSIS: **The Rousseau caution.** "Forced to be free" must be reported as a contested formula with its defenders' reading attached, never quoted as a slogan of authoritarianism.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Hobbes, Locke, Rousseau and Green differ less about the value of freedom than about **its enemy** - disorder, arbitrary power, dependence on another's private will, and incapacity - and each definition is best read as a remedy tailored to the enemy it fears.

MUST-WRITE KEYWORDS

absence of external impediments · free where the law is silent · liberty under known law · arbitrary power · general will · self-legislation · positive power to do something worth doing · enabling against perfectionist

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Green's redefinition of liberty is defensible in its enabling form and indefensible in its perfectionist form.

Named evidence. Green calls liberty the positive power to do or enjoy something worth doing or enjoying, and his standing example is education, which equips agency instead of merely leaving persons alone; his critics answer that a state authorised to identify what is "worth doing" may impose a preferred conception of the good. **Analysis.** The distinction that decides the case is between enlarging a person's effective capacity, which leaves the choice with her, and prescribing the ends she must adopt, which relocates the choice to the state - and only the second attracts Berlin's objection. **Qualification.** The line is easier to state than to police, so a careful answer concedes that enabling programmes can drift into prescription, and makes contestability and reversibility the test rather than intention.

Objection -> reply -> residual limit

- **Objection.** Positive liberty invites paternalism, so freedom should be defined negatively and left there.
- **Reply ANALYSIS:.** The danger is real, but enabling conditions such as education expand freedom without dictating a single life-plan; the objection defeats perfectionism, not enablement.
- **Residual limit CAUTION:.** Whether any institution can supply enabling conditions without also shaping ends is genuinely unresolved, and Session 13's non-domination test is one attempt to answer it.

Examiner traps on this session

28. Turning Hobbes into an enemy of liberty. His claim is that stable freedom presupposes peace; the objection is that this leaves liberty as a residual gap.
29. Reading Locke's "freedom under law" as a restriction of freedom. For Locke, known law is what *prevents* arbitrary power, which is the actual enemy.
30. Presenting Rousseau's general will as majority rule. The reply on record is that it concerns legitimate collective self-rule, not the numerical will of all.

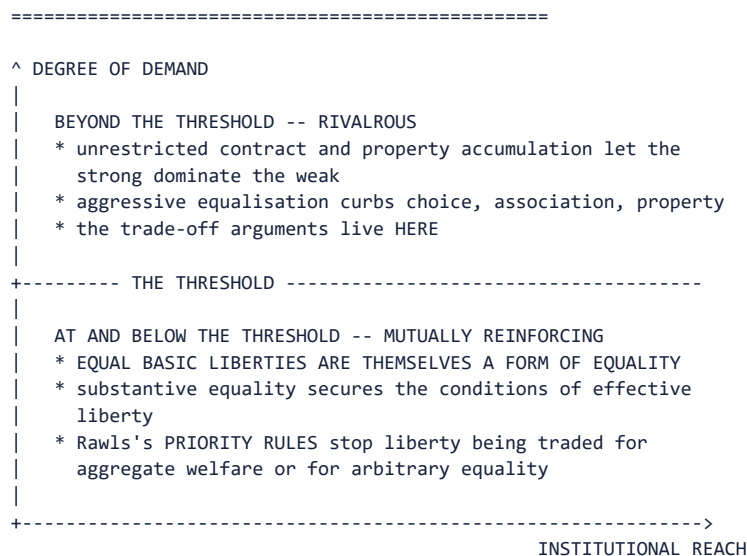
Mini recap

Four thinkers, four enemies of freedom, four remedies. Learn the enemy first; the definition then explains itself.

SESSION 11 - LIBERTY IV: LIBERTY AND EQUALITY - CONFLICT AND COMPLEMENTARITY

The picture first

WHERE THEY HELP EACH OTHER AND WHERE THEY COLLIDE



THE THREE CONFLICT CLAIMS AND THEIR ANSWERS

1 unrestricted liberty GENERATES inequality	[true beyond the threshold]
2 aggressive equalisation CURBS liberty	[true beyond the threshold]
3 the social bases of freedom are UNEQUALLY distributed -- formal liberty means little without education, health, resources	[true at every level: this is the strongest claim]

Caption: the threshold is the mark-bearing idea in 2019 Q4(b), 2022 Q1(d), 2024 Q2(b) and 2018 Q2(a). Draw it before you argue.

In plain words

The standard exam question asks whether liberty and equality are enemies. The honest answer is: it depends how much of each you are demanding. Free speech for everyone is *both* a liberty and an equality - nobody has to choose. But an unlimited freedom to accumulate, or an unlimited drive to equalise, will each start eating the other. So the question is not "which one wins" but "at what point do they begin to compete, and who decides".

The doctrine, exactly

ANALYSIS: The thesis. Liberty and equality are often presented as rivals, but they are plausibly rivals only **beyond a certain threshold**; at the level of **basic liberties** they are mutually reinforcing.

Why they conflict

1. **FACT:** Unrestricted liberty can generate inequality - freedom of contract, property accumulation or market power may let the strong dominate the weak.
2. **FACT:** Aggressive equalisation can curb liberty - heavy control of choice, association or property may suppress individuality.
3. **ANALYSIS:** The social bases of freedom are unequally distributed - formal liberty means little where persons lack education, health or resources.

Why they complement

1. **FACT:** Equal basic liberties are themselves a form of equality.
2. **ANALYSIS:** Substantive equality may secure the conditions for effective liberty.
3. **FACT:** Rawlsian priority rules show that liberty need not be traded away for aggregate welfare or for arbitrary equality.

Claim	Strong version	Counter-position	Balanced verdict
Liberty limits equality	Too much equalisation kills initiative and choice	Without background equality, liberty is class privilege	Some inequalities may remain, but only on fair terms
Equality limits liberty	Redistributive control invades the private domain	Basic inequalities also coerce, through dependence	Basic liberties must be secured for all before market advantage expands
They are complementary	Equal civic standing sustains freedom	Complementarity may break at higher distributive demands	Complementarity is strongest at the level of rights and opportunities

Named evidence you can cite

- **FACT: The speech example.** Freedom of speech *for all* is simultaneously a liberty and an equality of civic standing - the single cleanest demonstration that the two ideals are not zero-sum at the base.
- **FACT: Rawls's priority rules (1971).** Basic liberties cannot be reduced for greater social or economic advantage, and fair equality of opportunity precedes the difference principle. This is what "ordering" looks like when it is institutionalised.
- **ANALYSIS: The dependence argument.** If deprivation places persons under another's power, some redistribution *protects* rather than negates freedom - the bridge to Session 13.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Liberty and equality are complementary at the level of **basic liberties and equal civic standing**, and rivalrous only beyond that threshold - so the examiner's real question is never "which ideal wins" but "where does the threshold lie, and who is authorised to move it".

MUST-WRITE KEYWORDS

threshold of complementarity · equal basic liberties · social bases of freedom · priority rules · freedom of contract · dependence as coercion · fair terms

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Liberty limits equality only beyond a threshold, and below that threshold the two ideals secure one another. **Named evidence.** Freedom of speech for all is at once a liberty and an equality of civic standing, and Rawls's priority rules (1971) forbid trading basic liberties for economic advantage while placing fair equality of opportunity ahead of the difference principle. **Analysis.** The reason the base is harmonious is structural: a *basic* liberty is defined as one held equally by all, so securing it is simultaneously an act of equalisation - the competition appears only when liberty is extended into unequal market advantage or when equality is pressed into the control of choice and association. **Qualification.** This is a conditional verdict, not a proof of harmony: the threshold's location is itself contested, and any answer that asserts it without naming the criterion - basic liberties, fair opportunity, or protection from domination - has evaded the hard part of the question.

Objection -> reply -> residual limit

- **Objection.** Any redistribution violates liberty, because it takes from persons what they were free to hold.
- **Reply ANALYSIS:.** If deprivation places persons under domination, some redistribution *protects* rather than negates freedom - the objection assumes what it must prove, namely that only state action can be freedom-reducing.
- **Residual limit CAUTION:.** The reply works cleanly on the republican reading of Session 13 and less cleanly on a strict negative reading, so name the conception of liberty you are using before you deliver the verdict.

Examiner traps on this session

31. Answering "does liberty limit equality?" with a flat yes or no. Both 2019 Q4(b) and 2022 Q1(d) are degree questions, and the degree is the mark.
32. Producing the trade-off as though it applied at every level. Equal basic liberties refute it at the base.

33. Citing Rawls only for the difference principle in a liberty answer. In this session his usable contribution is the **priority rule**, which is a liberty-protecting device.

Mini recap

Below the threshold they reinforce; above it they compete; justice decides where the threshold lies. Say so, and then defend your threshold.

SESSION 12 - LIBERTY V: IS LIBERTY REALISABLE IN A TECHNOLOGICAL SOCIETY?

The picture first

```
TECHNOLOGY AND FREEDOM -- THE TWO-SIDED LEDGER
=====

WHAT TECHNOLOGY EXPANDS      | WHAT TECHNOLOGY THREATENS
-----|-----
knowledge                    | surveillance
mobility                    | manipulation of choice
communication                | concentration of informational
range of available choice    | power
                             | subtle dependence
=====+=====

THE SHIFT THAT MATTERS PHILOSOPHICALLY
  coercion today may be INFRASTRUCTURAL and INFORMATIONAL,
  not only LEGAL
      |
  the classic model looked for a law that FORBIDS
  the new model must look for an architecture that STEERS
      |
THE CONTROLLING DISTINCTION:  CONVENIENCE != AUTONOMY
      |
THE EXAMPLE:  algorithmic nudging can leave every formal option
              open while shaping which option is taken
              |
THE VERDICT (a degree judgement, never a yes/no)
  liberty IS realisable in technological society, but only under
  vigilance: TRANSPARENCY, ACCOUNTABILITY, and protected zones
  of non-domination
```

Caption: the middle box is the philosophical content; the ledger above it is only the setting.

In plain words

Technology gives and takes away. It puts a library, a market and a public square in your pocket - and it also records what you read, learns what moves you, and quietly arranges what you see first. Nothing forbids you from choosing otherwise; you simply never consider it. That is why the old test for freedom, "is there a law against it?", no longer catches what is happening.

The doctrine, exactly

ANALYSIS: **The thesis.** Liberty is realisable in technological society, but only under vigilance against surveillance, manipulation and the concentration of informational power. ANALYSIS: **The argument.** Technology can expand knowledge, mobility, communication and choice, yet also create subtle dependence and behavioural steering.

ANALYSIS: **The presupposition.** Coercion today may be **infrastructural and informational**, not only legal.

ANALYSIS: **The controlling distinction.** Convenience $\neq$ autonomy. ANALYSIS: **The example.** Algorithmic nudging may leave formal options open while shaping choices invisibly. ANALYSIS: **Objection -> reply.** *Objection:* modern complexity requires pervasive management. *Reply:* even where coordination is needed, liberty demands transparency, accountability and zones of non-domination.

ANALYSIS: **Why the Berlin apparatus is not enough here, and what to use instead.** A purely negative test counts interferences; a purely positive test asks who directs the self. Behavioural steering evades the first (no option is removed) and is ambiguous on the second (the person does choose). The republican test of Session 13 catches it directly: what matters is that someone else holds an unaccountable capacity to shape the terms on which you choose. Bringing that test into a 2020-style answer is the single most effective depth move available.

Named evidence you can cite

- ANALYSIS: **Algorithmic nudging** - the canonical case of formal options preserved and effective choice steered.
- FACT: **The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013** replaces unchecked workplace discretion with rule-governed duties and complaint machinery - a dated Indian illustration of the *form* a transparency-and-accountability remedy takes. ANALYSIS: Enactment is not implementation, and this establishes nothing about any particular workplace.
- ANALYSIS: **The distinction to state explicitly**: a system that *forbids* is visible and contestable; a system that *steers* may be neither, which is why transparency is a liberty demand and not merely an administrative virtue.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Liberty remains realisable in a technological society, but the threat has migrated: it is no longer principally the law that forbids, but the architecture that steers - so freedom now depends on transparency, accountability and protected zones free of arbitrary informational power.

MUST-WRITE KEYWORDS

infrastructural and informational coercion · behavioural steering · algorithmic nudging · convenience is not autonomy · surveillance · concentration of informational power · transparency and contestability

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Technological society changes the *form* of the threat to liberty rather than making liberty unrealisable. **Named evidence.** Technology expands knowledge, mobility, communication and choice while simultaneously enabling surveillance, manipulation and the concentration of informational power; algorithmic nudging is the standing example, since it leaves every formal option open while shaping which option is actually taken. **Analysis.** This defeats a purely negative test of freedom, which counts removed options and finds none removed, and it is why the operative distinction becomes convenience against autonomy - a person may have more choices and less control over the terms on which she chooses. **Qualification.** The verdict must be graded rather than apocalyptic: coordination in a complex society will require large systems, so the demand is not their abolition but transparency, accountability and zones insulated from arbitrary informational power, and the extent to which those demands are met is an empirical matter this answer does not settle.

Objection -> reply -> residual limit

- **Objection.** Modern complexity requires pervasive management, so the demand for non-domination is nostalgic.
- **Reply ANALYSIS:.** Even where coordination is needed, liberty demands transparency, accountability and zones of non-domination - the argument is about *how* systems are governed, not whether they exist.
- **Residual limit CAUTION:.** How much steering is compatible with autonomy is unresolved, and no philosophical argument here settles the empirical question of how far any particular society has already crossed the line.

Examiner traps on this session

34. Answering 2020 Q1(a) with a list of technologies. The stem asks whether liberty is **realisable**, which is a conceptual and degree question.
35. Asserting that technology has abolished freedom. That is not a graded verdict, and it forfeits the "explain" directive's marks.
36. Inventing statistics, company names or incidents to make the answer topical. Nothing beyond the concept and one dated, accurately classified Indian legal illustration is required.

Mini recap

The ledger has two columns. The philosophy is in the migration of coercion from law to architecture. The verdict is conditional: realisable, under vigilance.

SESSION 13 - LIBERTY VI: REPUBLICAN LIBERTY AS NON-DOMINATION

The picture first

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THE THIRD FAMILY -- FREEDOM AS A SECURED STANDING
=====

THE CASE THAT MAKES THE POINT
  a kind master, an indulgent husband, an unusually generous
  employer, a benevolent ruler -- who happen NOT to interfere
      |
  on the NEGATIVE count she is free (no interference occurred)
      |
  yet she must flatter, anticipate, self-censor and live at
  another's discretion, because the other RETAINS THE POWER
  to interfere ARBITRARILY and WITH IMPUNITY
      |
  -> this dependence is a real unfreedom that an
      interference-count cannot register
      |
  -> therefore liberty is a SECURED STATUS -- NON-DOMINATION --
      not an event-count of non-interference
=====

THE CONTROLLING DISTINCTION
  INTERFERENCE is an ACT.          DOMINATION is a STANDING CAPACITY
                                   to interfere arbitrarily.

  law that tracks the interests of the governed and remains
  publicly contestable can INTERFERE WITHOUT DOMINATING
  a master's forbearance can DOMINATE WITHOUT INTERFERING
=====

THE CONSEQUENCE FOR LAW
  NEGATIVE VIEW : every law is prima facie a subtraction from
                  liberty, justified only as a lesser evil
  REPUBLICAN VIEW: law of the right kind is FREEDOM-CONSTITUTING,
                  because it strips private persons of arbitrary
                  power
=====

ATTRIBUTION -- KEEP THE TWO ROLES SEPARATE
  PETTIT (1997) supplies the normative THEORY
  SKINNER (1998) supplies the historical RECOVERY of the
                  pre-liberal republican tradition
```

Caption: five numbered steps, one distinction, one consequence, one attribution rule. The attribution box is where marks are lost.

In plain words

Imagine a slave with a kind owner who never gives an order. Is she free? On a strict count of interferences, yes - nothing was done to her. But she watches his mood, flatters him, keeps her opinions to herself, and knows that everything depends on his continuing goodwill. Something is plainly wrong with a theory of freedom that has to call her free. The republican answer is that freedom is a *standing*, not a tally: you are free when nobody holds unaccountable power over you, whether or not they use it.

The doctrine, exactly

ANALYSIS: The position. A **third family** of liberty, irreducible to Berlin's pair, defines freedom as **non-domination**: not being subject to another agent's *capacity* for arbitrary interference, whether or not that capacity is currently exercised. The normative theory belongs to **Philip Pettit**, *Republicanism: A Theory of Freedom and Government* (1997); the historical recovery of the pre-liberal republican tradition belongs to **Quentin Skinner**, *Liberty before Liberalism* (1998). **WRONG:** Do not quote either, and do not attach page, chapter or edition detail.

The reconstructed argument ANALYSIS::

1. the negative conception measures freedom by *actual* interference with an agent's options;
2. consider a person under a kind master, an indulgent husband, an unusually generous employer, or a benevolent ruler who happens not to interfere;
3. that person is not interfered with, so on the negative count she is free;

4. yet she must flatter, anticipate, self-censor and live at another's discretion, because the other retains the power to interfere **arbitrarily and with impunity**;
5. this dependence is a real unfreedom that an interference-count cannot register;
6. therefore liberty is best specified as a **secured status** - non-domination - rather than as an event-count of non-interference.

ANALYSIS: **Presupposition.** Freedom is a social and institutional standing, not a description of an agent's momentarily unobstructed path; unexercised power is still power. ANALYSIS: **Controlling distinction.** *Interference* is an act; *domination* is a standing capacity to interfere arbitrarily. Law that tracks the interests of those it governs and remains publicly contestable can **interfere without dominating**; a master's forbearance can **dominate without interfering**. ANALYSIS: **Consequence for the liberty-law relation.** On the negative view, every law is *prima facie* a subtraction from liberty, justified only as a lesser evil. On the republican view, law of the right kind is **freedom-constituting**, because it strips private persons of arbitrary power. State this explicitly in any liberty answer that reaches 15 or 20 marks.

Diagnostic question	Negative liberty	Positive liberty	Republican non-domination
What destroys freedom?	External obstruction by others	Internal disorder, ignorance, want of enabling conditions	Another's arbitrary and unaccountable power
Is an un-interfered-with slave free?	ANALYSIS: Yes, to that extent	ANALYSIS: Contested - depends on self-mastery	ANALYSIS: No, and unfree as a <i>slave</i>
Is law a loss of freedom?	ANALYSIS: Yes, requiring justification	ANALYSIS: May be freedom-enabling	ANALYSIS: Non-arbitrary law is freedom-constituting
Institutional demand	Restrain the state	Develop capacities and provide conditions	Contestability, publicity, review, interest-tracking
Named anchors	ANALYSIS: Berlin's negative pole; Mill's harm principle	ANALYSIS: Green's enabling freedom; Rousseau's moral freedom	ANALYSIS: Pettit (1997); Skinner (1998)

Named evidence you can cite

- ANALYSIS: **The relation to the trade-off.** Non-domination reframes the classic liberty-equality dispute of Session 11. On the negative reading, redistributive or regulatory equality subtracts liberty. On the republican reading, material **dependence is itself a source of domination**, so certain equalising measures *increase* freedom rather than trading against it - a decisive line for 2019 Q4(b), 2022 Q1(d) and 2024 Q2(b).
- FACT: **Indian illustrations of the form of a non-domination remedy, with legal-status caution.** The **Bonded Labour System (Abolition) Act, 1976** legally attacks a relation of personal dependence; the **Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013** replaces unchecked workplace discretion with rule-governed duties and complaint machinery; and Gazette notification **S.O. 5322(E), 21 November 2025** brought the relevant provisions of the **Code on Wages, 2019**, including its repeal-and-savings framework, into force. ANALYSIS: Enactment or commencement is not implementation, and none of these establishes that domination has ended.
- ANALYSIS: **Exam placement.** This is the strongest depth marker available on any liberty question, and it is also usable as a supplement in 2018 Q2(a) on liberty and equality as democratic features.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Freedom is better specified as a **secured standing than as an event-count**: the un-interfered-with dependant is unfree precisely as a dependant, which is why non-arbitrary, contestable law can interfere without dominating, while a kind master can dominate without ever interfering.

MUST-WRITE KEYWORDS

non-domination · arbitrary interference · freedom as status · the benevolent master · interference against domination · contestability · interest-tracking law · freedom-constituting law

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The republican conception identifies an unfreedom that the negative conception cannot register. **Named evidence.** Pettit's theory (1997), with Skinner's historical recovery of the tradition (1998), turns on the case of a person under a kind master or benevolent ruler who does not interfere, yet who must flatter, anticipate and self-censor because the other retains the capacity to interfere arbitrarily and with impunity. **Analysis.** The example separates an act from a standing: interference is something done, domination is a power held, and only the second explains why the dependant's own conduct changes even when nothing is done to her - which also reverses the standard view of law, since non-arbitrary and contestable law removes private arbitrary power and is therefore freedom-constituting. **Qualification.** Two costs must be conceded: the criterion of "arbitrary" is specified procedurally, through interest-tracking and effective contestation, which reduces but does not eliminate its indeterminacy; and the conception sits outside Berlin's familiar pair, so it must be introduced as a third family rather than smuggled in as a version of positive liberty.

Objection -> reply -> residual limit

- **Objection 1 - redundancy.** Everything non-domination names could be redescribed as a high *probability* of future interference, so the third family adds a label, not a concept.

Reply ANALYSIS:. Probability of interference is contingent and can be low precisely where dependence is total; the republican point concerns the *standing* of the relation, and it also explains why the dependant's own conduct - deference, anticipation, self-silencing - changes, which an interference-count cannot explain.

- **Objection 2 - indeterminacy of "arbitrary".** Who decides which interferences are arbitrary? The theory risks smuggling in a substantive conception of the common good.

Reply ANALYSIS:. Republicans specify arbitrariness procedurally: interference is non-arbitrary when it is forced to track the avowable interests of the governed and remains open to effective contestation.

- **Residual limit CAUTION:.** The second reply reduces but does not eliminate the indeterminacy. The residual problem is genuine and should be conceded. **ANALYSIS:** At 10 marks use one objection, not both.

Examiner traps on this session

37. Attributing non-domination to Berlin, or presenting it as a variety of positive liberty. It is a third family, and Berlin's pair does not contain it.
38. Merging Pettit and Skinner. Pettit supplies the theory (1997); Skinner supplies the intellectual history (1998).
39. Using the Indian statutes as evidence that domination has ended. They illustrate the *form* of a remedy; enactment and commencement are not implementation.

Mini recap

One case - the kind master. One distinction - act against standing. One reversal - law can constitute freedom. One attribution rule - Pettit theory, Skinner history.

SESSION 14 - JUSTICE I: FORMAL, PROCEDURAL AND SUBSTANTIVE JUSTICE, AND THE FOUR DIMENSIONS

The picture first

THREE QUESTIONS THAT ARE ROUTINELY CONFUSED

=====

FORMAL JUSTICE	'Are the announced principles applied impartially and consistently to like cases?' DEMAND: generality, consistency, no personal favour FAILS ALONE: an UNJUST principle can be applied perfectly consistently
PROCEDURAL JUSTICE	'Is the decision produced by fair rules, hearing, publicity, impartiality, no cheating?' DEMAND: a process excluding arbitrary power FAILS ALONE: a fair-looking procedure can run on a grossly unequal background
SUBSTANTIVE JUSTICE	'Are the governing principles, the distribution and the social relations themselves just?' DEMAND: rights, fair life-chances, protection from deprivation and status subordination FAILS ALONE: an outcome imposed without due process becomes arbitrary

=====

THE CONCLUSION THE THREE FORCE ON US

justice requires FAIR PROCEDURE *PLUS* A DEFENSIBLE

SUBSTANTIVE CRITERION -- neither alone will do

=====

AND FOUR DIMENSIONS OF WHAT JUSTICE EVALUATES

- LEGAL impartial administration AND whether the law
itself answers to justice
- POLITICAL equal citizenship, voice, non-arbitrary public
power
- SOCIO-ECONOMIC distribution of benefits, burdens and real
opportunities
- RECOGNITION ... whether institutions reproduce stigma,
/ STATUS humiliation or second-class standing

Caption: three forms answering three different questions, then four dimensions naming four different objects of evaluation. Confusing the two lists is the commonest structural error in a justice answer.

In plain words

Suppose a rule is applied to everyone without favour. That is one kind of fairness - but the rule itself might be vicious. Suppose the hearing was proper, both sides spoke, nobody cheated. That is a second kind of fairness - but one side may have arrived with a lawyer and the other without literacy. Suppose the outcome is one we think decent. That is a third kind - but if it was simply imposed, we have replaced one arbitrariness with another. Justice needs all three, and a good answer says which one it is talking about.

The doctrine, exactly

FACT: **Basic meaning.** Justice concerns what is due to each person and the principles that govern distribution, rectification, rights and the moral structure of institutions. FACT: **Argument.** Social cooperation creates benefits and burdens; justice decides their proper terms. FACT: **Presupposition.** Persons are owed **reasons**, not merely outcomes. FACT: **Distinction.** Legality ≠ justice; a law may be valid yet unjust. FACT: **Example.** Equal legal punishment for unequal wrongdoing would violate corrective fairness.

Form	Exact question	Core demand	Failure if isolated
Formal justice FACT:	Are the announced principles applied impartially and consistently to like cases?	Generality, consistency and absence of personal favour	An unjust principle can still be applied consistently
Procedural justice FACT:	Is the decision or allocation produced by fair rules, hearing, publicity, impartiality and non-cheating?	A just process that excludes arbitrary power and lets relevant claims be considered	A fair-looking procedure can operate against a grossly unequal background
Substantive justice FACT:	Are the governing principles, distribution and social relations themselves just?	Rights, fair life-chances, protection against deprivation and status subordination	A desired outcome imposed without due process can itself become arbitrary

FACT: **The controlling distinction.** Formal justice concerns consistent *application*; procedural justice concerns the fairness of the decision-producing *process*; substantive justice concerns the justice of the *standard, distribution or social relation produced*. The terms overlap in some texts but are not interchangeable.

ANALYSIS: **The reconstructed argument that yields the verdict:**

1. a procedure can be impartial while starting positions remain radically unequal;
2. the resulting outcome can therefore satisfy a rule and still preserve domination or deprivation;
3. but substantive correction without publicity, hearing and consistent limits can itself become arbitrary;
4. justice consequently requires **fair procedure plus a defensible substantive criterion**.

ANALYSIS: **Where Rawls and Nozick sit on this map.** Rawls uses a fair choice situation and a just basic structure to discipline permissible outcomes; Nozick asks whether acquisition, transfer and rectification followed a just history. Neither view licenses the inference that any outcome produced by any procedure is automatically just.

Dimension	What justice evaluates	Triad connection	Boundary
Legal justice FACT:	Impartial administration and whether the law itself answers to justice	Equal legal status and protected liberty	Detailed constitutional doctrine is not owned here
Political justice FACT:	Equal citizenship, voice, participation and non-arbitrary public power	Political equality plus civic liberty	Forms of government belong to the democracy owner
Socio-economic justice FACT:	Distribution of benefits, burdens and real opportunities	Substantive equality and effective liberty	Development and welfare programmes are later-topic applications
Recognition / status justice ANALYSIS:	Whether institutions reproduce stigma, humiliation or second-class standing	Social equality and Ambedkar's fraternity-based criticism	Full recognition theory belongs to the multiculturalism owner

ANALYSIS: **The legality-legitimacy bridge.** Legality identifies a rule's valid place in a legal system; legitimacy asks whether the exercise of authority is morally justified to those subject to it. Justice supplies the critical standpoint, while the complete theories of sovereign authority and political obligation remain with their own owners.

Named evidence you can cite

- FACT: **Source control.** This taxonomy is corroborated by O. P. Gauba, *An Introduction to Political Theory*, searchable local PDF pp. 442-445; *Socio-Political Philosophy*, searchable local PDF pp. 40 and 47-54; and Robert Audi (ed.), *The Cambridge Dictionary of Philosophy*, searchable local PDF pp. 489-490.
- FACT: **The unequal-punishment example** shows that even a perfectly consistent rule can be corrective injustice
 - the fastest demonstration that formal justice is not sufficient.
- ANALYSIS: **The Ambedkar link.** Recognition/status justice is where his criticism bites: a polity can satisfy legal and political justice while reproducing humiliation.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Justice is not one question but three - is the rule applied consistently, was the process fair, and is the standard itself defensible - and the mark-bearing move is to show that a fair-looking procedure operating on an unequal background can satisfy the first two while failing the third.

MUST-WRITE KEYWORDS

formal justice · procedural justice · substantive justice · legality against legitimacy · legal, political, socio-economic and recognition dimensions · publicity and hearing · defensible substantive criterion

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Procedural fairness is necessary but cannot by itself vindicate a distribution. **Named evidence.** Formal justice requires only that announced principles be applied consistently to like cases, and procedural justice only that the deciding process be impartial and open - so equal legal punishment imposed for unequal wrongdoing can satisfy both while violating corrective fairness. **Analysis.** The gap arises because both forms evaluate the *route* to a decision and neither evaluates the *standard* being routed, which is why a procedure inherited from unequal starting positions can convert background injustice into formally impeccable results. **Qualification.** The corrective must not overshoot: substantive justice pursued without publicity, hearing and consistent limits becomes a second arbitrariness, so the defensible position demands fair procedure *and* a publicly defensible criterion rather than the replacement of one by the other.

Objection -> reply -> residual limit

- **Objection (procedural).** Fair rules are enough, so outcomes need no further moral test.
- **Reply ANALYSIS:.** Procedures inherit unjust starting conditions; substantive scrutiny remains necessary.
- **Objection (substantive).** Outcome-correction may ignore due process and plural conceptions of the good.
- **Reply ANALYSIS:.** Substantive justice is defensible only when pursued through rights-bound, public and contestable procedures.
- **Residual limit CAUTION:.** The two replies constrain each other rather than resolving the tension; naming that permanent balance is the honest verdict.

Examiner traps on this session

40. Collapsing justice into law or into fair procedure. Legality may diverge from legitimacy, and procedural regularity can coexist with substantive injustice.
41. Using "formal justice" and "procedural justice" as synonyms. Formal concerns consistent application; procedural concerns the fairness of the process.
42. Mixing the three *forms* with the four *dimensions*. Forms answer "which question about justice"; dimensions answer "justice about what".

Mini recap

Three forms, four dimensions, one conclusion: fair procedure plus a defensible criterion. Neither half is optional.

SESSION 15 - JUSTICE II: PLATO AND ARISTOTLE

The picture first

```
PLATO -- JUSTICE AS EACH DOING ONE'S OWN WORK
=====
THE CITY                                THE SOUL
-----                                -----
RULERS      rule      <-->  REASON    governs
AUXILIARIES defend    <-->  SPIRIT    supports
PRODUCERS   provide   <-->  APPETITE  obeys
      |                                |
JUSTICE = each part performs its OWN proper function
          without usurping another's role
      |
INJUSTICE = appetite ruling reason; a class intruding into
           a function for which it is not suited
      |
POINT: justice is not merely external distribution --
      it is INNER AND CIVIC RIGHT-ORDER

ARISTOTLE -- TWO JUSTICES, TWO EQUALITIES
=====
DISTRIBUTIVE JUSTICE | CORRECTIVE / RECTIFICATORY
shares should track relevant | restore the balance after a
merit or contribution      | wrong or an unfair gain/loss
-> PROPORTIONAL EQUALITY   | -> ARITHMETIC EQUALITY
e.g. offices or honours by | e.g. compensation, restitution,
    relevant desert         | punishment
objection: what counts as   | objection: may ignore the
merit is disputed           | structural context
=====
THE RULE BOTH SHARE
    treat equals equally and unequals unequally -- but ONLY when the
    basis of comparison is RELEVANT
=====
THE HOLE THIS LEAVES (see Session 16)
    'relevant' is not specified -> the criteria problem
```

Caption: Plato supplies an order, Aristotle supplies two measures, and the bottom box names the gap that the whole modern debate rushes to fill.

In plain words

Plato's picture is of a well-run whole: each part of the city, and each part of the soul, doing its own job and not another's. Aristotle asks a sharper question - how much should each person get? - and answers with two different measures. When you are handing out honours or offices, shares should be proportioned to something relevant. When you are repairing a wrong, you restore what was taken, unit for unit, and the parties' merits are irrelevant. Both agree that fairness means treating like cases alike. Neither tells us which likeness counts.

The doctrine, exactly

Plato FACT:

- Justice is a principle of **order and harmony** in both soul and city: each part performs its own proper function without usurping another's role.
- **Argument FACT::** disorder comes when appetite rules reason, or when classes intrude into functions for which they are not suited; justice coordinates plurality into a harmonious whole.
- **Presupposition FACT::** human beings and the polis have natural functional differentiation.
- **Distinction FACT::** justice is not merely external distribution; it is inner and civic right-order.
- **Example FACT::** rulers rule, auxiliaries defend, producers provide; correspondingly, reason should govern spirit and appetite.
- **Objection ANALYSIS::** Plato subordinates individuality to fixed hierarchy. **Reply ANALYSIS::** defenders say his aim is not arbitrary privilege but a norm of competence and organic harmony.

Aristotle FACT:

Type	Principle	Equality involved	Example	Objection
Distributive justice FACT:	Shares should track relevant merit or contribution	Proportional equality	Offices or honours allocated by relevant desert	Disputes over what counts as merit
Corrective / rectificatory justice FACT:	Restore balance after wrong or unfair gain or loss	Arithmetic equality	Compensation, restitution, punishment	May ignore structural context

- **Argument FACT::** treating equals equally and unequals unequally is just only when the basis of comparison is relevant.
- **Presupposition FACT::** the political community has an end, and offices have functions.
- **Distinction FACT::** proportional equality $\neq$ simple sameness.
- **Objection ANALYSIS::** merit is socially biased. **Reply ANALYSIS::** the framework still matters, because it shows why justice cannot be reduced to one flat formula.

Named evidence you can cite

- FACT: **The three-class / three-part correspondence** is the whole of Plato's answer for a 10-mark stem: rulers-reason, auxiliaries-spirit, producers-appetite, and justice as each doing its own work.
- FACT: **Aristotle's two equalities** - proportional in distribution, arithmetic in correction - are the highest-value pair of technical terms in this session. *Nicomachean Ethics* Book V and the *Politics* are the standard locations.
- ANALYSIS: **The comparison the 2019 stem needs.** Rawls continues Plato only in the very broad sense that justice structures a well-ordered society; he departs radically in method, in egalitarian citizenship and in the rejection of fixed functional hierarchy (developed in Session 20).

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Plato makes justice an **order** and Aristotle makes it a **measure** - and Aristotle's formula that shares should track relevant desert is formally correct but materially empty until someone names the relevant basis, which is precisely the gap the modern theories were written to fill.

MUST-WRITE KEYWORDS

each doing one's own work · functional differentiation · harmony of soul and city · distributive justice · corrective or rectificatory justice · proportional equality · arithmetic equality · relevant basis of comparison

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Aristotle's account of justice is two accounts, and confusing them produces the standard bad answer. **Named evidence.** Distributive justice allocates shares in proportion to a relevant criterion and therefore embodies *proportional* equality, as when offices or honours are allocated by relevant desert, whereas corrective justice restores a balance after a wrong and therefore embodies *arithmetic* equality, as in compensation, restitution or punishment. **Analysis.** The difference is not one of degree but of function: in distribution the parties' relevant qualities are precisely what the rule attends to, while in correction those qualities are deliberately ignored so that the wrong itself, not the wrongdoer's standing, determines the remedy. **Qualification.** The framework is powerful but incomplete, since it does not say which qualities are relevant to which good, and it is that silence - not any error - that generates the whole modern dispute over need, desert, merit and contribution.

Objection -> reply -> residual limit

- **Objection.** Plato's functional justice freezes hierarchy and subordinates the individual.
- **Reply ANALYSIS::** Its enduring value lies in the idea of harmony and appropriate function, not in rigid class closure.
- **Residual limit CAUTION::** The reply rescues the idea but not the institution: a modern reader can accept "competence should govern function" while rejecting Plato's claim that classes are naturally fixed. Say both.

Examiner traps on this session

43. Attributing modern distributive concerns to Plato. His question is about right-order in soul and city, not about the basic structure's distribution of primary goods.
44. Merging Aristotle's two justices into "Aristotle's theory of justice". The two equalities are the answer; merging them loses the technical vocabulary.
45. Reading "treat unequals unequally" as a licence for hierarchy. The clause is conditional on the basis of comparison being **relevant**.

Mini recap

Plato: order, function, harmony. Aristotle: two justices, two equalities, one unfilled blank called "relevant".

SESSION 16 - JUSTICE III: THE CRITERIA PROBLEM AND THE COMPENSATORY PRINCIPLE

The picture first

WHICH CRITERION GOVERNS WHICH GOOD?

CRITERION	FORMULA	BEST JUSTIFIED FOR
NEED	to each according to need	subsistence, health care, basic education, disability support
DESERT (moral)	to each according to effort, sacrifice or virtue	honours, recognition, praise and blame
MERIT (qualification)	to each according to demonstrated competence for a role	public offices, admissions, professional appointments
CONTRIBUTION / ENTITLEMENT	to each according to productive value or voluntary transfer	wages, exchange, property titles
EQUAL SHARE	to each equally	civil and political rights; one person, one vote
COMPENSATION	to each according to unjustified prior loss	rectification of wrongful harm and structural disadvantage

THE THESIS: justice is PLURALIST ABOUT CRITERIA BUT NOT ARBITRARY -- each good has an internal logic identifying its proper basis of distribution

INJUSTICE = EXPORTING A CRITERION OUT OF ITS SPHERE
wealth purchasing political influence
caste rank governing access to office

MERIT vs DESERT -- THE DISTINCTION EXAMINERS REWARD
DESERT is BACKWARD-looking and moralised (what a person has done or suffered)
MERIT is FORWARD-looking and functional (who will discharge the office well)
-> a candidate may have great desert and little merit, or great merit and no desert

Caption: six criteria, one thesis, one diagnosis of injustice, one distinction. This grid is the fastest way to lift a justice answer above narration.

In plain words

"Give each person their due" sounds decisive until you ask what makes something due. Effort? Ability? Need? Whatever you freely bought? Simply being a citizen? The trick is that different goods answer to different criteria. Votes go equally to everyone because the good in question is civic standing. Surgical posts go to the competent because the good in question is a job that must be done well. Medicine goes by need. Trouble starts when a criterion escapes its sphere - when money starts buying votes, or birth starts deciding who may hold office.

The doctrine, exactly

FACT: Aristotle's proportional formula - shares should track *relevant* desert - is **formally correct but materially empty** until the relevant basis is named. Almost every modern distributive controversy is a dispute about which criterion governs which good.

Criterion	Formula	Best justified for	Strongest objection
Need FACT:	To each according to need	Subsistence, health care, basic education, disability support	Needs are elastic and contested; may weaken incentive and responsibility
Desert (moral) FACT:	To each according to effort, sacrifice or virtue	Honours, recognition, praise and blame	Effort is unobservable and is itself shaped by unchosen advantage
Merit (qualification) FACT:	To each according to demonstrated competence for a role	Public offices, admissions, professional appointments	Measured merit encodes prior access to nutrition, language, coaching and networks
Contribution / entitlement FACT:	To each according to productive value or voluntary transfer	Wages, exchange, property titles	Market price tracks scarcity and bargaining power, not moral worth
Equal share FACT:	To each equally	Civil and political rights; one person, one vote	Flattens relevant difference outside the political sphere
Compensation FACT:	To each according to unjustified prior loss	Rectification of wrongful harm and structural disadvantage	How far back, whose loss, and who bears the cost

ANALYSIS: The reconstructed argument:

1. justice requires treating like cases alike and unlike cases differently;
2. "likeness" must be assessed against some criterion;
3. no single criterion fits every social good - political rights answer to equal status, offices to competence, subsistence to need, honours to desert;
4. therefore justice is **pluralist about criteria but not arbitrary**: each good has an internal logic identifying its proper basis of distribution;
5. injustice typically consists in **exporting a criterion out of its proper sphere** - allowing wealth to purchase political influence, or letting caste rank govern access to office.

ANALYSIS: **Presupposition.** Goods have social meanings, and those meanings constrain what may count as a relevant reason for unequal shares. ANALYSIS: **Merit against desert.** *Desert* is backward-looking and moralised; *merit* is forward-looking and functional. Collapsing the two produces the standard bad answer that "merit is a moral entitlement".

Corrective justice extended: the compensatory principle

FACT: Aristotle's corrective justice is **transactional**: it restores an arithmetic balance between two parties after a wrongful gain or loss, without regard to their merit. It is the conceptual ancestor of damages, restitution and, on retributive readings, of punishment.

ANALYSIS: **The extension problem.** Corrective justice as stated presupposes (i) an identifiable wrongdoer, (ii) an identifiable victim, and (iii) a discrete transaction. Structural disadvantage satisfies none cleanly: the harm is cumulative, the beneficiaries diffuse, and the wrong embedded in institutions rather than in a single act.

ANALYSIS: The compensatory principle, reconstructed:

1. a group has suffered systematic, historically identifiable and legally sanctioned exclusion from land, education, office and honour;
2. that exclusion continues to depress present capability, not only past holdings - it transmits through wealth, networks, schooling, health and social confidence;
3. formal equality from today onward therefore *ratifies* an unequal starting line rather than correcting it;
4. corrective justice, generalised from transactions to structures, requires positive measures that offset the transmitted disadvantage;
5. therefore compensatory measures are demanded **by** equality, not as an exception to it.

ANALYSIS: **Presupposition**. Disadvantage caused by institutions can be traced with sufficient reliability to justify a group-directed remedy - a factual premise that must be argued, not assumed.

Named evidence you can cite

- ANALYSIS: **The sphere-violation examples** - wealth purchasing political influence; caste rank governing access to office - give a criterion-based definition of injustice that examiners rarely see.
- FACT: **Articles 14-16** establish equality before the law, prohibition of discrimination and equality of opportunity in public employment, and **Articles 15 and 16 contain enabling clauses** permitting special provision for specified disadvantaged classes. ANALYSIS: An enabling clause is a **permission**, not a philosophical justification; the argument for using it must still be made on one of the criteria above.
- ANALYSIS: **Ownership routing**. This owner teaches the **general principle** of compensatory justice as a criterion of distribution. The affirmative-action debate proper - its competing justifications, the reverse-discrimination objection and the Indian constitutional and judicial record - belongs to **Caste Discrimination: Gandhi and Ambedkar**. State the principle and route; do not duplicate the policy argument.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Distributive justice is **criterion-plural and sphere-sensitive**: the examiner's real question is almost never "is this equal?" but "which criterion governs this good, and why" - and injustice is most precisely defined as a criterion escaping the sphere in which it belongs.

MUST-WRITE KEYWORDS

need · desert · merit · contribution · equal share · compensation · sphere-sensitivity · morally arbitrary advantage · transmitted disadvantage · merit is forward-looking, desert backward-looking

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Compensatory measures are demanded by equality rather than being exceptions to it. **Named evidence.** Corrective justice restores a balance after wrongful loss, and where exclusion from land, education, office and honour was systematic and legally sanctioned, its effects transmit through wealth, networks, schooling, health and social confidence; Articles 15 and 16 accordingly contain enabling clauses permitting special provision for specified disadvantaged classes. **Analysis.** The inference turns on step three of the reconstruction: if disadvantage is transmitted, then formal equality applied from today onward ratifies an unequal starting line instead of correcting it, so the apparent conflict between equality and compensation dissolves once equality is read as equality of prospects rather than of rules. **Qualification.** Two concessions are owed: an enabling constitutional clause is a permission and not a justification, and the principle must state its own terminus - it lapses when the transmitted disadvantage it targets no longer operates - while over-inclusion of the already advantaged within a beneficiary group remains a genuine difficulty.

Objection -> reply -> residual limit

- **Objection (Rawlsian).** Desert-based distribution is unjustified because natural talent, family advantage and even the capacity for effort are **morally arbitrary**; nobody deserves the starting position from which effort is exerted.

Reply FACT:. Rawls's own reply is not that desert is meaningless but that it cannot be the *foundational* principle of institutional design; legitimate expectations generated **within** just institutions remain valid, and honour and gratitude remain intelligible responses to effort.

- **Objection (Nozickian).** Any patterned criterion - need, desert, merit - requires continuous interference with voluntary transfers.

Reply ANALYSIS:. Patterns need only be maintained at the level of background institutions, not transaction by transaction; and Nozick's own rectification principle concedes that a historical entitlement theory still needs a criterion for correcting past injustice.

- **Objection (to compensation).** It imposes a cost on present individuals who committed no wrong and treats persons as group-members.

Reply ANALYSIS:. The claim is not that present individuals are guilty but that they are **unjustly advantaged** by a continuing distribution; and where the disadvantage itself was inflicted group-wise, an individualised remedy cannot reach it.

- **Residual limit CAUTION:.** Over-inclusion within a beneficiary group is real, which is exactly why an internal filter is defended; and refusal to measure whether the targeted disadvantage still operates is a policy failure rather than a defect of the principle.

Examiner traps on this session

46. Treating "merit" as a moral entitlement. Merit is functional and forward-looking; desert is moral and backward-looking.
47. Answering an equity question with the single word "fairness". Name the criterion - need, desert, merit, contribution, equal share or compensation - and say which good it governs.
48. Turning the compensatory principle into a reservation-policy essay. The policy debate and the Indian judicial record belong to the caste owner.

Mini recap

Six criteria, each with a proper sphere. Injustice is a criterion out of place. Compensation generalises correction from transactions to structures - and owes an account of its own terminus.

SESSION 17 - JUSTICE IV: UTILITARIAN JUSTICE AND RAWLS'S JUSTICE AS FAIRNESS

The picture first

FROM AGGREGATION TO FAIRNESS

=====

UTILITARIAN JUSTICE

institutions are just if they
MAXIMISE overall welfare
rightness is CONSEQUENCE-based,
not prior-rights-based

THE AGGREGATION OBJECTION

utilitarianism can sacrifice
the claims of individuals,
minorities or the least
advantaged if total utility
rises

|
|

|
|

+-----+ REPLY -----+-----+

rule- and indirect-utilitarian strategies protect rights by
showing that secure liberties and stable rules maximise
welfare OVER TIME

CRITICS: those protections remain CONTINGENT

=====

RAWLS'S ANSWER: BUILD FAIRNESS INTO THE CHOICE SITUATION

=====

ORIGINAL POSITION + VEIL OF IGNORANCE

parties choose principles for the BASIC STRUCTURE without
knowing their class, gender, race, natural talents, religion
or conception of the good

|

-> nobody can tailor principles to personal fortune

-> a DEVICE OF REPRESENTATION, not a historical contract

|

+-----+-----+-----+-----+-----+

FIRST PRINCIPLE	equal claim to a fully
equal BASIC LIBERTIES	adequate scheme,
[LEXICALLY PRIOR]	compatible for all

+-----+-----+-----+-----+-----+

SECOND PRINCIPLE (a)	FAIR EQUALITY OF OPPORTUNITY
	[prior to (b)]
SECOND PRINCIPLE (b)	DIFFERENCE PRINCIPLE:
	inequalities just only if
	they benefit the LEAST
	ADVANTAGED

+-----+-----+-----+-----+-----+

|

JUSTIFICATION METHOD: REFLECTIVE EQUILIBRIUM -- mutual
adjustment between principles and considered judgements

|

ONE-SENTENCE VERDICT: a DEONTOLOGICAL LIBERAL EGALITARIANISM --
liberty is basic; inequality is tolerated only under fair
opportunity and benefit to the least advantaged

*Caption: the aggregation objection is the problem; the veil is the device; the ordering of the principles is the answer.
Reproduce the order, not just the names.*

In plain words

If justice just means "the greatest total happiness", then in principle a large enough gain for the many can justify crushing the few - and most of us think that is exactly what justice forbids. Rawls's move is ingenious: instead of arguing about outcomes, he changes the conditions under which the rules are chosen. Suppose you had to pick society's basic rules without knowing whether you would be born rich or poor, able or disabled, majority or minority. Whatever you chose then would be fair, because you could not rig it in your own favour.

The doctrine, exactly

Utilitarian justice FACT:

- Utilitarianism judges arrangements by aggregate happiness or utility; institutions are just if they maximise overall welfare.
- **Presupposition FACT::** social choice can be guided by the greatest good of the greatest number.
- **Distinction FACT::** rightness is consequence-based, not prior-rights-based.
- **Example ANALYSIS::** a policy raising total welfare may be preferred even where some persons lose significantly.

- **Objection FACT:** - the **aggregation objection**: utilitarianism can sacrifice the claims of individuals, minorities or the least advantaged if doing so increases total utility.
- **Reply ANALYSIS::** rule-utilitarian and indirect utilitarian strategies protect rights by showing that secure liberties and stable rules maximise welfare over time; critics answer that these protections remain **contingent**.

Rawls FACT:

- **The construction.** Principles of justice are derived from a fair choice situation - the **original position** under a **veil of ignorance**.
- **The original position FACT::** parties choose principles for the basic structure without knowing their class, gender, race, natural talents, religion or conception of the good.
- **Argument FACT::** ignorance of arbitrary advantages yields fairness, because no one can tailor principles to personal fortune.
- **Distinction FACT::** this is a **device of representation**, not an actual historical contract.
- **Example ANALYSIS::** not knowing whether one will be rich or poor encourages principles that are safe for the least advantaged.

Principle	Content	Priority	Why it matters
First principle FACT:	Each person has an equal claim to a fully adequate scheme of equal basic liberties , compatible with the same scheme for all	Lexically prior to the second principle	Liberty cannot be traded away for economic gain
Second principle (a) FACT:	Fair equality of opportunity	Prior, within the second principle, to the difference principle	Offices must be genuinely open, not merely formally open
Second principle (b) FACT:	Difference principle: inequalities are just only if they benefit the least advantaged	Applies after fair equality of opportunity	Permits inequality only under a justificatory burden

- **Priority rules FACT::** basic liberties cannot be reduced for greater social or economic advantage; fair equality of opportunity precedes the difference principle.
- **Reflective equilibrium FACT::** justification involves mutual adjustment between general principles and considered judgements. **Argument FACT::** political philosophy should neither start from raw intuitions alone nor impose principles insensitive to our firmest moral judgements. **Distinction FACT::** equilibrium is not mere compromise; it seeks principled fit. **Example ANALYSIS::** if a principle licenses slavery or caste despite our deepest judgements against them, revision is required. **Objection ANALYSIS::** considered judgements may reflect bias. **Reply ANALYSIS::** public reason, criticism and coherence-testing purge many distortions.
- **ANALYSIS: Rawls in one evaluative sentence: a deontological liberal egalitarianism** - liberty is basic, and inequality is tolerated only under fair opportunity and benefit to the least advantaged.

Named evidence you can cite

- **FACT: The lexical priority of liberty (1971)** is the single most useful Rawlsian fact across this clause, because it answers liberty-versus-equality stems as well as justice stems.
- **FACT: Fair equality of opportunity** is a *named element* ranked ahead of the difference principle - cite the ordering, not just the phrase.
- **ANALYSIS: The anti-aggregation point.** Rawls's construction is designed precisely so that the least advantaged cannot be traded off, which is why he is the standard reply to the aggregation objection.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Rawls does not abolish inequality; he **civilises** it - subjecting it first to equal basic liberties, then to fair equality of opportunity, and only then permitting it on condition that it improves the position of the least advantaged.

MUST-WRITE KEYWORDS

aggregation objection · original position · veil of ignorance · device of representation · equal basic liberties · lexical priority · fair equality of opportunity · difference principle · reflective equilibrium · basic structure

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Justice as fairness is best understood as a procedural answer to the aggregation objection. **Named evidence.** Utilitarianism judges institutions by aggregate welfare and can therefore sacrifice individuals or minorities when total utility rises; Rawls (1971) replies by having principles chosen in an original position behind a veil of ignorance, and by giving equal basic liberties lexical priority over the second principle, within which fair equality of opportunity precedes the difference principle. **Analysis.** The device works because it removes the information that would let a chooser gamble on someone else's loss, so the resulting principles must be acceptable from every social position - which converts "do not sacrifice the few" from an intuition into a constraint built into the method. **Qualification.** The construction is abstract by design, and the standard objection that the chooser is socially unencumbered has force; Rawls's answer is that the abstraction is methodological, filtering morally arbitrary facts rather than describing real persons, and Sen's separate objection that institutional design can neglect realised outcomes is taken up in the next session.

Objection -> reply -> residual limit

- **Objection.** The chooser in the original position is too abstract and socially unencumbered to yield principles for real societies.
- **Reply FACT:.** The abstraction is methodological, designed to filter morally arbitrary facts, not to describe an actual person.
- **Objection.** Rawls is too abstract and insufficiently historical.
- **Reply ANALYSIS:.** Abstraction is a fairness-device, and many real injustices can still be judged through his principles.
- **Residual limit CAUTION:.** The institutional focus can neglect *realised* freedom, which is Sen's criticism, and the treatment of the family and of unchosen social starting points remains contested.

Examiner traps on this session

49. Writing Rawls as if equality were his first principle. **Equal basic liberties** are lexically prior; distributive principles come after.
50. Naming the difference principle and omitting fair equality of opportunity. The ordering between them is itself examinable.
51. Describing the original position as a historical contract. It is a device of representation.

Mini recap

The aggregation objection sets the problem. The veil supplies fairness. The order - liberties, then fair opportunity, then the difference principle - supplies the answer.

SESSION 18 - JUSTICE V: NOZICK'S ENTITLEMENT THEORY AND THE MINIMAL STATE

The picture first

```
NOZICK -- JUSTICE IS HISTORICAL, NOT PATTERNED
=====

THREE PRINCIPLES OF JUSTICE IN HOLDINGS
  1 JUSTICE IN ACQUISITION  how previously unowned things may be
                             justly acquired
  2 JUSTICE IN TRANSFER     voluntary exchange, gift, transfer
  3 JUSTICE IN RECTIFICATION correction of past injustice
-----
PATTERNED PRINCIPLE        | HISTORICAL PRINCIPLE
'does the CURRENT distribution | 'did each holding ARISE through
fit a preferred pattern --    | just acquisition and transfer?'
equality, need, merit?'      |
main criticism: requires     | respects side-constraints and
CONTINUOUS INTERFERENCE to   | self-ownership
maintain the pattern         |
-----

THE WILT CHAMBERLAIN ARGUMENT
  start from ANY distribution you consider just
      |
  many people freely pay a small sum to watch one performer
      |
  the pattern is now broken -- by voluntary acts alone
      |
  -> either the new distribution is just, or liberty must be
      continuously restricted to preserve patterns
-----

MINIMAL STATE: limited to protection against force, theft and
fraud, and to enforcement of contracts; anything more violates
rights
=====

THE OBJECTION THAT MUST APPEAR IN A 'CRITICALLY DISCUSS' ANSWER
  starting distributions are rarely clean: historical injustice,
  power asymmetry and coercive necessity undermine voluntariness
  -> Nozick includes RECTIFICATION, but critics say he
      UNDER-SPECIFIES it
```

Caption: three principles, one contrast, one argument, one state - and one under-specified remedy, which is where the criticism lands.

In plain words

Nozick's question is not "is the final distribution the right shape?" but "how did each holding come about?" If you got what you have by fair acquisition or free exchange, it is yours, however unequal the total picture looks. His famous illustration is simple: start from whatever distribution you consider perfectly just, let a million people each freely pay a little to watch one gifted performer, and the pattern is gone - destroyed by nothing but voluntary choices. Either you accept the result, or you must keep interfering forever.

The doctrine, exactly

FACT: **The position.** Nozick rejects patterned distributive justice and defends a **historical** account of justice in holdings.

The three components FACT:

1. **Justice in acquisition** - how previously unowned things may be justly acquired.
2. **Justice in transfer** - voluntary exchange, gift and transfer.
3. **Justice in rectification** - correction of past injustice.

Nozick's contrast	Patterned principle	Historical principle
Question asked	Does the current distribution fit a preferred pattern - equality, need, merit?	Did each holding arise through just acquisition and transfer?
Main criticism	Requires continuous interference to maintain the pattern	Respects side-constraints and self-ownership
Famous example	Wilt Chamberlain argument FACT:	Voluntary exchanges upset any fixed pattern

- **Argument FACT::** if people are entitled to their holdings, then redistributive taxation for pattern-maintenance partly appropriates their labour.
- **Presupposition FACT::** individuals have strong self-ownership rights.
- **Distinction FACT::** *patterned* principles judge by end-state shape; *historical* principles judge by process.
- **Example FACT::** in the Wilt Chamberlain case many people freely pay to watch him; the resulting inequality is just if the transfers were voluntary.
- **Minimal state FACT::** the state should be limited to protection against force, theft and fraud, and to enforcement of contracts; anything more violates rights.
- **Objection ANALYSIS::** starting distributions are rarely clean - historical injustice, power asymmetry and coercive necessity undermine voluntariness. **Reply ANALYSIS::** Nozick includes rectification, though critics say he under-specifies it and that real societies cannot bypass background injustice so easily.

Named evidence you can cite

- FACT: **The Wilt Chamberlain argument** is the answer to 2021 Q1(a); reproduce its *structure* - start from a just distribution, allow only voluntary transfers, watch the pattern dissolve - rather than merely naming it.
- FACT: **Self-ownership and side-constraints** are the moral engine; without them the argument is merely an observation about markets.
- ANALYSIS: **The rectification gap** is the strongest internal criticism, because it is raised by Nozick's own third principle rather than imported from outside.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Nozick's decisive question is **not what the distribution looks like but how it came about** - and the Wilt Chamberlain argument shows that if voluntary transfer is permitted at all, any preferred pattern can be maintained only by continuous interference.

MUST-WRITE KEYWORDS

entitlement theory · justice in acquisition, transfer and rectification · patterned against historical principles · self-ownership · side-constraints · Wilt Chamberlain · minimal state · end-state shape against process

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The entitlement theory's power lies in its shift from the shape of a distribution to the history of each holding. **Named evidence.** Nozick's three principles govern acquisition, transfer and rectification, and the Wilt Chamberlain case begins from any distribution the reader considers just, permits only voluntary payments to watch one performer, and ends with the pattern broken. **Analysis.** The argument is a dilemma rather than an observation: if the transfers were legitimate then so is the outcome, and if the outcome is illegitimate then the transfers must be curtailed - which shows that patterned principles carry a standing commitment to interference that their defenders rarely acknowledge. **Qualification.** The dilemma is only as strong as its starting point, and here the theory is weakest: actual acquisitions are entangled with conquest, exclusion and coercive necessity, so Nozick's own third principle - rectification - must do enormous work, and he leaves it substantially under-specified.

Objection -> reply -> residual limit

- **Objection.** The theory ignores structural injustice and unfair starting points.

In plain words

Sen's complaint is that political philosophy spent a century describing a perfectly just society nobody will ever build, while remediable injustices - famine, exclusion, preventable illiteracy - went unaddressed. We do not need to agree on paradise to agree that this is worse than that. Ambedkar makes the same point from inside Indian society: you can write a flawless constitution and still leave a citizen who is legally equal and socially humiliated. Rules are not the whole of justice; lives are.

The doctrine, exactly

Sen FACT:

- **The shift.** Sen moves the focus from identifying a perfectly just social order to comparing actual arrangements and removing remediable injustice.
- **Nīti FACT::** correctness of institutions, rules and procedures. **Nyāya FACT::** realised justice in social life - how people actually fare.
- **Argument FACT::** a society may have fine rules on paper and yet produce grave injustice in practice; institutional design, though important, is insufficient.
- **Comparative rather than transcendental institutionalism FACT::** Sen criticises approaches that seek the one perfectly just basic structure before making comparative judgements. **Argument FACT::** we can often identify clear injustices and better alternatives without agreeing on a complete ideal theory. **Distinction FACT::** "which arrangement is more just?" differs from "what is the perfectly just society?". **Example ANALYSIS::** one can condemn famine, exclusion or preventable incapability without first solving every problem of ideal institutional design.
- **Capability and public reasoning FACT::** what matters is what people are actually able to be and do, so justice must attend to capabilities and to democratic public reasoning. **Distinctions FACT::** capability ≠ utility; capability ≠ mere income. **Example ANALYSIS::** equal income does not produce equal mobility or voice where bodily condition or social norms differ.
- **Objection ANALYSIS::** comparison without a full ideal lacks firm direction. **Reply ANALYSIS::** public reasoning and manifest injustice supply enough orientation for political action.
- **Objection ANALYSIS::** capability comparison is measurement-heavy and open-ended. **Reply ANALYSIS::** Sen prefers reasoned public assessment to spurious exactness.

Ambedkar FACT:

- **The position.** Political democracy is unstable without **social democracy** rooted in **liberty, equality and fraternity**.
- **Argument FACT::** formal rights are undermined where caste hierarchy denies equal social standing and fraternity.
- **Presupposition FACT::** justice is not merely procedural; it requires the removal of graded inequality and humiliation.
- **Distinction FACT::** constitutional form ≠ lived social democracy.
- **Example ANALYSIS::** a society may grant one vote to each citizen and still preserve deep civic humiliation and exclusion.
- **Objection ANALYSIS::** social-justice talk can subordinate liberty to reformist control. **Reply ANALYSIS::** Ambedkar's point is the reverse - liberty without equal status and fraternity becomes empty for the oppressed.

Named evidence you can cite

- **FACT: The nīti/nyāya pair** is the highest-value technical vocabulary in the 2021 Q2(a) answer, and it should be defined in English first: correctness of institutions, and justice as actually realised.
- **FACT: Ambedkar's one-vote-and-humiliation contrast** converts "social justice" from a slogan into an argument, and it is the anchor for 2018 Q2(a) and 2025 Q4(a).
- **ANALYSIS: The routing caution.** Ambedkar's constitutional record and the annihilation-of-caste argument belong to the **caste** owner; here he functions as the normative foil showing why political equality alone is unstable.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Sen's decisive move is from **nīti** to **nyāya** - from asking whether the rules are correct to asking how people actually fare - and Ambedkar shows the cost of refusing that move, since a polity can distribute one vote to each citizen while distributing humiliation unequally.

MUST-WRITE KEYWORDS

nīti · **nyāya** · comparative against transcendental institutionalism · remediable injustice · capability · public reasoning · social democracy · fraternity · graded inequality

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Sen's reorientation is a genuine advance on ideal institutional theory without being a refutation of it. **Named evidence.** He distinguishes **nīti**, the correctness of institutions and rules, from **nyāya**, justice as realised in people's lives, and argues that manifest injustices such as famine, exclusion or preventable incapability can be identified and ranked without first agreeing on a perfectly just basic structure. **Analysis.** The gain is practical and epistemic at once: comparative judgements are available where agreement on an ideal is not, and the capability metric registers the differences in conversion that a primary-goods metric records only indirectly. **Qualification.** The advance is criterion-relative rather than absolute - comparison without a benchmark can under-determine choice among rival improvements, and institutions remain the indispensable precondition of any realised justice - so the accurate verdict is that Sen improves on Rawls in reach and diagnosis while Rawls retains the advantage in institutional determinacy.

Objection -> reply -> residual limit

- **Objection.** Comparative justice without a full ideal lacks firm direction, so it cannot choose between two rival improvements.
- **Reply ANALYSIS:.** Public reasoning and manifest injustice supply enough orientation for political action; the demand for a complete ideal before acting is itself a source of paralysis.
- **Residual limit CAUTION:.** Under-determination is real. The strongest 2021 answer states the criterion of "improvement" first, then concedes what Rawls still does better - institutional determinacy and the protection of basic liberties by rule.

Examiner traps on this session

55. Presenting Sen as a rejection of Rawls. He criticises transcendental institutionalism while retaining the egalitarian project; the Rawlsian reply that institutions remain indispensable is part of the record.
56. Translating **nīti** and **nyāya** loosely, or using them without English glosses. Define both in English first.
57. Using Ambedkar as a constitutional name-drop. Use him philosophically - as the critic of a social inequality that hollows out liberty and justice.

Mini recap

Two words - **nīti**, **nyāya**. One shift - from ideal design to realised lives. One anchor - Ambedkar's social democracy. One honest concession - institutional determinacy stays with Rawls.

SESSION 20 - SYNTHESIS: DEBATES, CRITICISMS, TRAPS AND THE ANSWER SPINE

The picture first

THE SIX DEBATES YOU CAN BE ASKED TO ADJUDICATE

- 1 HOBBS vs LOCKE vs ROUSSEAU -- is freedom secured by ORDER, by RIGHTS, or by COLLECTIVE AUTONOMY?
- 2 BERLIN vs GREEN -- coercion in the name of higher freedom, or formal liberty with no power to use it?
- 3 RAWLS vs NOZICK -- fair agreement among free and equal persons, or self-ownership and inviolable rights?
- 4 RAWLS vs SEN -- just basic structure and ideal principles, or comparative removal of remediable injustice?
- 5 MILL vs MARX -- individuality and status equality, or the material limits of formal equality?
- 6 PROCEDURE vs SUBSTANCE -- was a fair rule followed, or is the governing principle itself just?

THE ORDERING VERDICT (2025 Q4(a) IN ONE BOX)

LIBERTY ALONE is under-specified: whose liberty, to do what, against whom, with what effect on others?

EQUALITY ALONE is under-specified: equality of status, rights, opportunity, welfare, resources, capabilities or outcome?

JUSTICE supplies the adjudicatory criteria: desert, fairness, entitlement, need, capability, rectification, public reason

THE COMPOSITE EVALUATION

POSITION	STRENGTH	WEAKNESS	VERDICT
LIBERTY-FIRST (Nozickian)	strong protection of self-ownership and anti- paternalism	background injustice hollows out real freedom	insight- ful but incomp- lete
EQUALITY-FIRST LEVELLING	highlights structural oppression	may flatten choice, desert and pluralism	necessary warning, not a sufficient ideal
JUSTICE AS THE ORDERING IDEAL	balances the two by principle	competing theories of justice remain	BEST EXAM VERDICT

Caption: six debates, one ordering verdict, one composite table. This is the session that converts knowledge into an answer.

In plain words

By now the material is in place; what remains is the craft. Examiners in this clause almost never ask you to describe one ideal. They ask you to *adjudicate*: does liberty limit equality, is Sen an improvement on Rawls, are both ideals inadequate without justice, is Rawls continuing Plato. Every one of those is a comparison with a hidden criterion, and the marks go to whoever names the criterion first.

The doctrine, exactly

The six debates, in the form examiners use them

Issue	Berlin	Green
Core anxiety	Coercion in the name of higher freedom	Formal liberty without real power to use it
Preferred emphasis	Negative liberty	Positive freedom and self-realisation
Risk diagnosed	Authoritarian paternalism	Social abandonment and hollow freedom
Best synthesis ANALYSIS:	Preserve a protected sphere against coercion	Add enabling conditions without paternalistic control

Issue	Rawls	Nozick
Moral starting point	Fair agreement among free and equal persons	Self-ownership and inviolable rights
Distribution	Inequalities allowed only if they aid the least advantaged	No end-state pattern required
State	More than minimal, if needed for a just basic structure	Minimal state only
Critique of the other	Entitlement ignores fair background conditions	Patterned principles violate liberty

Issue	Rawls	Sen
Main focus	Just basic structure and ideal principles	Comparative justice and removal of remediable injustice
Metric	Primary goods	Capabilities
Method	Original position; institutional design	Public reasoning; actual social outcomes
Sen's criticism	Too transcendental and institution-focused	-
Rawlsian reply ANALYSIS:	Institutions remain indispensable preconditions of justice	-

Issue	Mill	Marx
Core worry	Suppression of individuality and legal or social subordination	Class exploitation concealed by formal equality
Favoured equality	Equal status, liberty, women's emancipation	Need-sensitive social transformation
View of market society	A reformable liberal order	Structurally exploitative capitalism
Best exam use ANALYSIS:	Defend equal status and individuality	Expose the material limits of merely formal equality

Question	Plato	Aristotle	Rawls
What is justice?	Functional harmony	Proportion and rectification	Fair terms of cooperation
Unit of analysis	Soul and polis	Polis and transactions	Basic structure of society
Equality idea	Role-fitting order, not democratic equality	Proportional equality	Equal basic liberties plus fair opportunity
Exam link	2019 asks whether Rawls continues Plato	Helps compare proportionality	Shows the modern contractarian transformation

ANALYSIS: Analytical verdict for 2019 Q1(a): Rawls continues Plato only in the very broad sense that justice structures a well-ordered society; he departs radically in method, in egalitarian citizenship and in the rejection of fixed functional hierarchy.

Axis	Procedural emphasis	Substantive emphasis	Best synthesis
Primary test	Was a fair rule or historical procedure followed?	Are the governing principle, distribution and status relations just?	Require fair process and publicly defensible outcomes
Strong exemplar	Nozick's acquisition-transfer-rectification history	Rawlsian fair background institutions, capability and social equality	Procedure cannot cleanse unjust starting conditions; outcomes cannot excuse arbitrary means
Central objection	Background inequality can make formally voluntary choice hollow	Officials may impose one contested pattern paternalistically	Preserve due process, rights, contestability and substantive minimums together

The ordering verdict - the direct answer to 2025 Q4(a) ANALYSIS:

1. **FACT: Liberty alone is under-specified:** whose liberty, to do what, against whom, and with what effect on others?

2. **FACT: Equality alone is under-specified:** equality of status, rights, opportunity, welfare, resources, capabilities or outcome?
3. **FACT: Justice supplies adjudicatory criteria:** desert, fairness, entitlement, need, capability, rectification and public reason become the competing standards.

Position	Strength	Weakness	Verdict
Liberty-first (Nozickian)	Strong protection of self-ownership and anti-paternalism	Background injustice and deprivation can hollow out real freedom	Insightful but incomplete
Equality-first levelling	Highlights structural oppression	May flatten choice, desert and pluralism	A necessary warning, not a sufficient ideal
Justice as the ordering ideal	Balances liberty and equality by principle	Competing theories of justice remain	The best exam verdict

The consolidated criticisms and replies ledger

Equality - (i) it ignores natural difference -> political equality concerns status and treatment, not the denial of difference; (ii) equality of outcome destroys incentive -> most egalitarians defend thresholds, fair opportunity, capability floors or least-advantaged gains, not flat sameness; (iii) differential treatment for the disadvantaged violates equality -> equity may be required to make equality substantive rather than merely formal.

Liberty - (i) negative liberty serves the already powerful -> true if isolated from fair background conditions, false when combined with equal basic rights and anti-domination safeguards; (ii) positive liberty invites paternalism -> the danger is real, yet enabling conditions such as education expand freedom without dictating a single life-plan; (iii) Mill's self/other-regarding line is unstable -> it remains a valuable presumption placing the burden of proof on coercion.

Justice - (i) Plato freezes hierarchy -> the enduring value is harmony and appropriate function, not class closure; (ii) Aristotle's merit is contestable -> proportionality still explains why justice is not flat arithmetic in every sphere; (iii) Rawls is too abstract -> abstraction is a fairness-device and many real injustices are still judgeable by his principles; (iv) Nozick ignores structural injustice -> his side-constraint view remains a major warning against overreaching redistribution; (v) Sen is too open-ended -> the openness is deliberate, and comparative assessment suits plural societies; (vi) fair rules are enough -> procedures inherit unjust starting conditions; (vii) outcome-correction ignores due process -> substantive justice is defensible only through rights-bound, public and contestable procedures.

Exam craft: the directive decoder

Directive in the stem	What is actually being scored	Minimum structural obligation	Failure mode that costs marks
Discuss	Controlled exposition plus at least one live tension	Doctrine -> distinction -> one objection -> verdict	Listing views without adjudicating
Explain	Internal logic, not evaluation	Statement -> premises -> key distinction -> example	Inserting criticism the stem did not ask for, at the cost of exposition
Critically discuss / evaluate	The objection-reply layer <i>is</i> the answer	Doctrine -> strongest objection -> best reply -> residual problem -> graded verdict	One-sided demolition, or praise with a token "however"
How far / to what extent	A <i>degree</i> judgement is compulsory	Specify the conditions under which the claim holds and fails	Answering yes or no, or refusing to commit
Compare / distinguish	Shared axes, not two mini-essays	Fix three or four axes, run both thinkers down each, then adjudicate	A sequential biography of two thinkers
Is X an improvement upon Y?	The criterion of improvement must be named first	State the test -> apply it -> concede what Y still does better	Asserting improvement without a standard

The three answer methods

- **ANALYSIS: 10 marks - about 150 words, four moves, roughly 12 minutes.** (1) Exact doctrine in the thinker's own technical vocabulary; (2) argument spine as numbered premises with one distinction only a reader of the doctrine could make; (3) one evidence unit plus its limitation; (4) a graded verdict. **WRONG:** Do not attempt two thinkers, two objections or an Indian illustration unless the stem asks.

- **ANALYSIS: 15 marks - about 220 words, six moves, roughly 18 minutes.** (1) Frame the axis of dispute, not the topic; (2) side A at its strongest, with its presupposition; (3) side B at its strongest, with the presupposition it denies; (4) one fully worked objection-reply pair; (5) two evidence units from different families; (6) a conditional verdict naming when each side wins.
- **ANALYSIS: 20 marks - about 300 words, eight moves, roughly 25 minutes.** (1) Provisional thesis using the stem's own directive verb; (2) concept map defining all ideals or both thinkers, plus the criterion of assessment; (3) strongest case reconstructed as premises; (4) strongest rival in its best form; (5) two objection-reply chains, each ending in a *residual* problem; (6) comparative adjudication on scope, presupposition and institutional reach; (7) one dated Indian illustration, accurately classified, with the caution that legal status is not philosophical proof; (8) a graded verdict conceding something to the losing side.

The selectable evidence bank - one unit at 10 marks, two at 15, four or five at 20

Each unit is **Claim -> Named anchor -> Use for -> Limitation.**

- **E1 · Inequality is historical, not natural.** Most inequality is artificial or moral, arising with property and comparison -> Rousseau -> 2021 Q1(b) and any origin-of-inequality stem -> a genetic account is not by itself a justification of any remedy.
- **E2 · Equality is not sameness of share.** Proportional equality distributes by a relevant criterion; arithmetic equality restores balance -> Aristotle -> any equality or justice stem needing a first distinction -> leaves the relevant criterion unspecified.
- **E3 · The criterion problem.** Need, desert, merit, contribution, equal share and compensation each govern a different sphere -> the criteria grid -> equity-versus-equality and social-justice stems -> sphere boundaries are themselves contested.
- **E4 · Liberty has two poles.** Freedom from interference against freedom to realise a rational self -> Berlin; Green's enabling freedom -> 2020 Q1(a), 2022 Q1(d), 2024 Q2(b) -> Berlin's own warning that the positive pole can be turned into coercion for the "real self".
- **E5 · Liberty as status, not as event-count.** An un-interfered-with dependant is still unfree -> Pettit (1997), with Skinner's historical recovery (1998) -> dissolving the liberty-equality trade-off; the highest-value depth marker on liberty stems -> "arbitrary" remains partly indeterminate, and it sits outside the classic Berlin framing, so flag it as a third family.
- **E6 · Self-regarding against other-regarding.** Society may coerce only to prevent harm to others -> Mill's harm principle -> 2025 Q1(e) and liberty-limits stems -> the boundary of "harm" and the contested scope of the principle.
- **E7 · Justice as fairness.** Principles chosen behind a veil of ignorance yield equal basic liberties, fair equality of opportunity and the difference principle -> Rawls -> 2019 Q1(a), 2023 Q1(a) -> institutional focus can neglect realised freedom.
- **E8 · Entitlement, not pattern.** Justice is historical - acquisition, transfer, rectification - so any patterned end-state requires continuous interference -> Nozick, with the Wilt Chamberlain argument -> 2021 Q1(a) -> rectification is under-specified and actual acquisitions are rarely clean.
- **E9 · Realisation, not only institutional design.** Comparative assessment of actual lives beats the search for perfectly just institutions -> Sen, *The Idea of Justice* -> 2021 Q2(a) -> comparative ranking without an ideal benchmark can under-determine choice among rival improvements.
- **E10 · Equity as need-sensitivity.** "To each according to need" supersedes equal shares only at a later stage -> Marx's *Critique of the Gotha Programme* formula -> 2022 Q2(c) -> the two-stage structure is a normative projection, not a demonstrated historical law.
- **E11 · Political liberty and social democracy.** Political equality without social and economic equality is a contradiction a polity cannot sustain indefinitely -> Ambedkar -> any stem joining democracy to equality -> the constitutional detail is owned by the caste file.
- **E12 · The compensatory principle.** Corrective justice, generalised from transactions to structures, requires positive remedy for transmitted disadvantage -> the compensatory reconstruction -> social-justice stems -> terminus and over-inclusion problems; the affirmative-action debate belongs to the caste owner.
- **E13 · Procedure and substance.** Consistent, impartial rules are necessary, but a fair-looking process can reproduce unjust starting conditions -> the formal/procedural/substantive taxonomy -> any composite justice

answer or legality-legitimacy bridge -> substantive correction must itself remain rights-bound, public and contestable.

Graded verdict formulas - adapt, never reproduce mechanically ANALYSIS:

- **Conditional:** "The claim holds where □condition□ and fails where □condition□; the stem is therefore best answered as a matter of degree rather than of kind."
- **Asymmetric:** "□Thinker A□'s diagnosis survives; the remedy does not."
- **Improvement:** "Judged by □named criterion□, □A□ improves on □B□; judged by □rival criterion□, □B□ retains the advantage - so 'improvement' is criterion-relative and must be stated as such."
- **Ordering:** "Liberty and equality are indispensable but each is indeterminate about which liberties and which equalities matter; justice is the criterion that orders their competing claims."
- **Reconstruction:** "The objection defeats the doctrine's strong form but leaves its reconstructed form standing under □named constraint□."

Named evidence you can cite

- **FACT: The corpus signal.** This clause owns **14 of 112** socio-political question-parts across 2018-2025 - the largest single share in the paper - distributed 2018: 1, 2019: 2, 2020: 1, 2021: 3, 2022: 2, 2023: 1, 2024: 2, 2025: 2.
- **WRONG: The routing rule.** Do not duplicate democracy questions owned by **Forms of Government** or Marxism-as-ideology questions owned by **Political Ideologies**; route by the demanded normative concept, not by the name that appears in the stem.
- **ANALYSIS: The composite-stem rule.** On "liberty and equality inadequate without justice", the mark-bearing move is showing *why* the third ideal is needed - that liberty and equality are each indeterminate about **which** liberties and **which** equalities - and this must be stated explicitly rather than implied.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Every question in this clause is an adjudication with a hidden criterion, and the script that names the criterion in its first three lines - basic liberties, fair opportunity, capability, entitlement or non-domination - has already earned more than the script that spends a page admiring all three ideals.

MUST-WRITE KEYWORDS

axis of dispute · criterion of improvement · conditional verdict · residual problem · lexical priority · sphere-sensitivity · realised justice · graded adjudication

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Liberty and equality are indispensable but insufficient, and justice is required to order them. **Named evidence.** Liberty alone does not say whose liberty, to do what, against whom, or with what effect on others; equality alone does not say equality of status, rights, opportunity, welfare, resources, capabilities or outcome - while justice supplies precisely the competing criteria, from desert and fairness to entitlement, need, capability and rectification, that answer those questions. **Analysis.** The insufficiency is therefore structural rather than practical: each ideal is a *family* of possible demands, and no member of the family is privileged from inside the family, so the ranking must come from a criterion that ranges over both. **Qualification.** This does not deliver a single theory of justice, since Rawls, Nozick and Sen order the same ideals differently; what it establishes is that any defensible political arrangement must make its ordering criterion explicit and publicly defensible - and a script that names its own criterion has answered the question even where the criterion is contestable.

Objection -> reply -> residual limit

- **Objection.** If theories of justice themselves disagree, then calling justice the ordering ideal only relocates the problem.
- **Reply ANALYSIS:.** Relocation is progress: it converts an unanswerable clash of ideals into an argument about criteria, which can be conducted with reasons, evidence and public scrutiny.

- **Residual limit CAUTION:**. The clash of criteria is not thereby settled, and an answer that admits this while still committing to a defended ordering scores higher than one that pretends the problem has vanished.

Examiner traps on this session

58. Answering "is X an improvement on Y" without naming the criterion of improvement. The criterion *is* the question.
59. Writing a "critically evaluate" answer as one-sided demolition, or as praise with a token "however". The objection-reply layer is the answer.
60. Deploying the whole evidence bank. One unit at 10 marks, two at 15, four or five at 20 - selected by the stem's demand.

Mini recap

Six debates, one ordering verdict, one decoder, three methods, thirteen evidence units, five verdict formulas. The Basic block ends here, and it ends **answer-complete**.

BASIC MCQS / REMEDIATION

32 original MCQs - 24 core diagnostics and 8 remedial error-targeting drills

Answer placement: each correct option was fixed **independently**, so the key sequence is unpatterned rather than rotated and no cycle such as ABCD - or its reverse - can be used to guess. Options are matched for length, specificity, grammar and visible formatting so that the answer cannot be spotted by shape alone. Every question carries four question-specific option explanations and one unique examiner trap.

Coverage: the twenty-four core questions run across the whole printed clause - *Equality, Justice, Liberty* - together with the ordering problem, the four forms of equality, formal against fair equality of opportunity and the defensible version of the outcome demand, Rousseau's two inequalities and the conversion mechanism, Mill's six salient features with the qualification that limits them, the Marxian equity/equality contrast and the two-stage structure of the need formula, the "equality of what" dispute across Sen, Cohen and Dworkin, Berlin's two concepts with the real-self mechanism, the harm principle as a burden-of-proof rule, the four rival specifications of freedom arranged by the enemy each fears, the threshold of complementarity, the migration of coercion from law to architecture, the interference/domination distinction and the freedom-constituting reading of law, the three forms and four dimensions of justice, and Aristotle's two equalities. The eight remedial drills attack the errors that cost marks every year on this clause: collapsing merit into desert, ignoring the terminus and over-inclusion problems in compensation, inverting Rawls's priority order, historicising the original position, calling Nozick a patterned theorist while forgetting rectification, translating *nīti* and *nyāya* loosely, misattributing the republican theory and misdating Mill's two books, and importing material owned by Forms of Government, Political Ideologies or the caste file.

MCQ 1. Why justice is called the ordering or architectonic ideal

The syllabus prints three ideals. On the account developed in this package, what exactly makes justice the ordering ideal rather than simply the third item in a list?

- A. Justice is historically the oldest of the three ideals and therefore has priority over the other two.
- B. Justice is the only one of the three that a written constitution is capable of guaranteeing to citizens.
- C. Liberty and equality are each indeterminate about their own variants, so the ranking must be supplied from outside either one.
- D. Justice replaces liberty and equality once institutions become sufficiently developed and stable.

Answer: C.

Option explanations:

- **A:** Incorrect: chronological priority is not normative priority, and the claim would in any case be unusable, since all three ideals are discussed in ancient political thought.
- **B:** Incorrect: constitutions can guarantee legal and political equality and basic liberties too; the argument turns on indeterminacy, not on what a legal text can enact.
- **C:** Correct: liberty does not say *which* liberties are basic and equality does not say *which* equality is owed, so a ranking between them must range over both - and that ranging criterion is what "justice" names here.
- **D:** Incorrect: nothing in the ordering claim is developmental, and justice orders the other two ideals rather than superseding them.

Examiner trap 1: Writing that justice "balances" liberty and equality without saying what makes balancing possible converts a structural argument into a platitude; the marks are in the indeterminacy premise, not in the word "balance".

MCQ 2. What the foundational claim of equality actually asserts

Which statement gives the foundational premise of equality as a political ideal with the precision the paper rewards?

- A. Persons possess equal moral worth, so arbitrary hierarchies require justification rather than presumption.
- B. Persons possess identical talents and capacities, so differential treatment is always without foundation.
- C. Persons should receive identical incomes, since any income difference reflects an arbitrary social hierarchy.
- D. Persons should never have their relevant differences recognised by law, policy or public institutions.

Answer: A.

Option explanations:

- **A:** Correct: the premise is normative, concerning the standing institutions must accord, and its immediate consequence is the shifted burden of justification.
- **B:** Incorrect: equality of worth is expressly distinguished from identity of talent, desire, capacity or outcome; asserting identity makes the ideal refutable by observation.
- **C:** Incorrect: equality before the law does not entail equal income; economic equality is one contested form among four, not the foundational claim.
- **D:** Incorrect: recognising *relevant* difference is required by proportional justice; equality denies that difference by itself authorises domination.

Examiner trap 2: Defining equality as sameness and then refuting the definition wastes half the answer attacking a position no serious egalitarian holds.

MCQ 3. What each of the four forms of equality secures

Match the form of equality with what it is designed to secure. Which pairing is correct?

- A. Formal or legal equality secures equal civic respect by removing stigma and status hierarchy from society.
- B. Political equality secures fair background conditions by reducing disparities of wealth and life chances.
- C. Social equality secures the rule against legal privilege by guaranteeing equal protection of the laws.
- D. Economic equality secures fair background conditions; social equality secures equal civic respect.

Answer: D.

Option explanations:

- **A:** Incorrect: it transfers social equality's function to the legal form; formal equality secures the rule against legal privilege.
- **B:** Incorrect: political equality secures a non-oligarchic public standing through equal citizenship, vote and eligibility for office, not background material conditions.
- **C:** Incorrect: this reverses the pairing again, assigning the legal form's achievement to the social form.
- **D:** Correct: economic equality targets disparities in resources, wealth and life chances, while social equality targets status hierarchy, stigma and humiliation.

Examiner trap 3: Treating the four forms as four synonyms for one ideal loses the analytic structure; each form secures a different thing and fails to a different objection, and a two-column table earns more than a paragraph of praise.

MCQ 4. The move that saves equality of opportunity from its own objection

The objection to equality of opportunity is that "starting-line" fairness is illusory where background inequality is severe. What is the standard reply?

- A. Abandon opportunity language entirely and evaluate institutions by the equality of their final distributions.
- B. Move from merely formal equality of opportunity to fair equality of opportunity, which attends to background conditions.
- C. Restrict the demand for opportunity to political offices, leaving education, health and employment untouched.
- D. Accept that opportunity can never be equal, and therefore treat the ideal as purely aspirational rhetoric.

Answer: B.

Option explanations:

- **A:** Incorrect: the reply preserves opportunity language; it is the outcome camp, not the opportunity camp, that relocates fairness to the finishing line.
- **B:** Correct: the fair version asks whether persons of similar talent and willingness have similar prospects regardless of social origin, which converts opportunity from a property of the rule into a property of background conditions.
- **C:** Incorrect: narrowing the scope concedes the objection wholesale, since the preparation problem bites hardest in exactly the excluded areas.
- **D:** Incorrect: this abandons the ideal rather than repairing it, and it is inconsistent with Rawls's inclusion of fair equality of opportunity as an operative principle.

Examiner trap 4: Treating "equality of opportunity" as automatically the moderate, uncontroversial position ignores that merely formal opportunity is compatible with an almost perfectly closed society.

MCQ 5. The defensible version of the equality-of-outcome demand

Egalitarians are accused of demanding identical outcomes and thereby destroying incentive. What is the defensible form of the outcome demand?

- A. Every person receives an identical share of every social good, irrespective of contribution or need.
- B. Outcomes are equalised across all spheres so that no measurable difference of any kind survives.
- C. Incomes are equalised annually, with any residual difference redistributed by administrative decision.
- D. Ceilings on avoidable deprivation and floors of decent capability, rather than identical final holdings.

Answer: D.

Option explanations:

- **A:** Incorrect: identical shares are the caricature the levelling objection defeats, and almost no egalitarian defends them across all goods.
- **B:** Incorrect: eliminating all measurable difference is neither proposed nor coherent, since goods differ in kind as well as amount.
- **C:** Incorrect: annual administrative equalisation is a policy fantasy, not a philosophical position, and it maximises rather than answers the paternalism objection.
- **D:** Correct: the serious demand is threshold-based - a floor of decent capability and a ceiling on avoidable deprivation - which is why the honest objection is that the threshold is under-specified.

Examiner trap 5: Refuting flat levelling and declaring the outcome view defeated leaves the actual position untouched, and it forfeits the marks available for identifying the threshold problem.

MCQ 6. Rousseau's distinction, stated exactly

How does Rousseau distinguish natural from moral or political inequality?

- A. Natural inequality concerns wealth and rank, while moral inequality concerns strength, health and intelligence.
- B. Natural inequality is unjust and remediable, while moral inequality is just because convention has authorised it.
- C. Natural inequality covers age, strength, health and intelligence; moral inequality is established by convention.
- D. Natural inequality exists only before society, and moral inequality disappears once property is abolished.

Answer: C.

Option explanations:

- **A:** Incorrect: it reverses the two categories exactly, and the reversal makes the political argument unintelligible.
- **B:** Incorrect: Rousseau's point is the opposite - conventional inequality is the form that stands most in need of justification, not the form authorised by convention.
- **C:** Correct: physical differences are established by nature, while wealth, honour, power, dependence and social superiority are established by convention.
- **D:** Incorrect: it adds a claim about abolition that the distinction does not make; the argument is diagnostic about the conversion of difference into domination.

Examiner trap 6: Confusing natural inequality with natural *rightlessness* imports a claim Rousseau never makes; natural inequality concerns bodies and talents, never standing.

MCQ 7. What Rousseau's distinction does not assert

Which statement correctly identifies the limit of Rousseau's claim?

- A. He does not claim that all inequality is conventional, only that the most oppressive forms are socially produced and maintained.
- B. He does not claim that property plays any role in producing dependence, since dependence is a natural human condition.
- C. He does not claim that institutions can magnify natural differences, since institutions merely register what nature supplies.
- D. He does not claim that social comparison matters, because comparison belongs to psychology rather than to politics.

Answer: A.

Option explanations:

- **A:** Correct: the thesis is that oppressive inequality is socially produced and socially maintained, which is precisely what makes it socially remediable.
- **B:** Incorrect: property and social comparison are the two named mechanisms by which civil society deepens dependence.
- **C:** Incorrect: the conversion of natural difference into durable domination by institutions is the core of the argument, not an addition to it.
- **D:** Incorrect: comparison is treated as politically consequential, since it is one of the mechanisms that produce vanity and hierarchy.

Examiner trap 7: Writing the 2021 answer as a narrative of the state of nature misses the demand: the stem asks how he *distinguishes* the two inequalities, so the contrast and the conversion mechanism carry the marks.

MCQ 8. The qualification that completes Mill's account of equality

Mill is described as a liberal egalitarian "in a qualified sense". What is the qualification?

- A. He rejects equality before the law wherever custom has long sanctioned a difference of social station.
- B. He resists crude levelling that suppresses individuality, and stops short of extinguishing all differences by coercive equalisation.
- C. He restricts equal moral standing to citizens who have already achieved a specified level of education.
- D. He accepts inherited social subordination provided that it demonstrably increases aggregate social utility.

Answer: B.

Option explanations:

- **A:** Incorrect: privilege by status is exactly what he calls indefensible; equality before the law is among his affirmed features.
- **B:** Correct: he affirms equal moral standing, equal civic and legal status and women's equality, while treating free self-development rather than sameness as the goal.
- **C:** Incorrect: no educational threshold conditions equal moral standing in the six salient features.
- **D:** Incorrect: he holds that inherited subordination blocks both utility and justice, so the utilitarian route to accepting it is closed.

Examiner trap 8: Listing five features and omitting the limit answers a different question; on a "salient features" stem it is the qualification that separates a good script from an average one.

MCQ 9. The structure of Mill's argument about the subjection of women

Mill argues that the subordination of women is not justified by nature. What is the structure of his reason?

- A. Nature is irrelevant to political questions, so no appeal to nature can support or oppose any social arrangement.
- B. The "nature" appealed to is itself socially manufactured through subjection, so the evidence is produced by the system under examination.
- C. Women's capacities exceed men's in the relevant respects, so the hierarchy inverts the ordering that nature actually supports.
- D. Utility is the only test of institutions, so questions about nature never arise in evaluating the subordination of women.

Answer: B.

Option explanations:

- **A:** Incorrect: this is a general methodological claim Mill does not need; his argument is specific and evidential.
- **B:** Correct: the appeal to women's nature is worthless as evidence precisely because that nature has been produced by the subjection it is invoked to justify.
- **C:** Incorrect: the argument does not assert an inverted natural hierarchy; it disqualifies the evidence on which any such hierarchy is claimed.
- **D:** Incorrect: Mill does argue from utility as well, but the specific answer to the appeal-to-nature defence is the manufactured-evidence point.

Examiner trap 9: Dating the feminist argument to *On Liberty* costs an easy mark: *On Liberty* is **1859** and *The Subjection of Women* is **1869**.

MCQ 10. The Marxian contrast between equity and equality

With reference to Marxian philosophy, which formulation states the difference between equity and equality correctly?

- A. Equality means distribution by need, while equity means the same measure applied to every producer.
- B. Equality means abolishing the wage relation, while equity means preserving it under stricter public regulation.
- C. Equality and equity are interchangeable terms, differing only in the historical period in which each was used.
- D. Equality is the same measure for all; equity is differentiated treatment responsive to need and actual condition.

Answer: D.

Option explanations:

- **A:** Incorrect: it inverts the pair; the need-based formula belongs to equity, and the common standard belongs to formal equality.
- **B:** Incorrect: abolition of the wage relation is part of the wider critique, not the definition of either term.
- **C:** Incorrect: the whole force of the 2022 stem depends on the two terms being distinct.
- **D:** Correct: the same measure applied to persons with unequal needs, burdens and starting positions produces unequal effect, which is why equity is the more demanding ideal.

Examiner trap 10: Answering the equity/equality stem with an essay on historical materialism substitutes the ideology owner's material for the demanded concept.

MCQ 11. "An equal right can be a right of inequality"

What does the Marxian claim that equal right is a right of inequality assert?

- A. One common standard applied to persons differing in need, burden and starting position guarantees unequal effect.
- B. Legal rights are worthless because law is nothing more than an instrument of the economically dominant class.
- C. Rights should be abolished in favour of administrative allocation supervised by producers themselves.
- D. Equality is a bourgeois invention with no application at any stage of social and economic development.

Answer: A.

Option explanations:

- **A:** Correct: the defect is in the measure - a single common standard abstracts from precisely the differences that decide whether a share is adequate.
- **B:** Incorrect: this substitutes a general claim about law for the specific argument about the structure of an equal measure.
- **C:** Incorrect: no such administrative proposal is contained in the equity/equality contrast.
- **D:** Incorrect: the communist principle is itself an egalitarian ideal on a different metric, so equality is reinterpreted rather than discarded.

Examiner trap 11: Quoting the ability-and-need formula as an immediate wage rule ignores its explicit indexing to a higher stage of social cooperation, and invites an easy refutation on incentives.

MCQ 12. Why Sen shifts the metric to capability

What is Sen's central reason for evaluating equality in terms of capabilities rather than resources?

- A. Resources cannot be measured accurately, whereas capabilities admit of an exact and final numerical list.
- B. Resources are unimportant to well-being, since what matters to a person is only her subjective satisfaction.
- C. The same bundle of resources yields different real freedoms because persons differ in how they convert them.
- D. Capabilities are distributed equally by nature, so an equal distribution of them requires no institutional action.

Answer: C.

Option explanations:

- **A:** Incorrect: Sen explicitly declines to fix a rigid final list, preferring public reasoning, so the claim of exactness is the reverse of his position.
- **B:** Incorrect: capability is distinguished from utility as sharply as from income; the argument is not subjectivist.
- **C:** Correct: disability, age, gender, climate, health and social position change the conversion rate from resources into functioning, so equal holdings do not yield equal real freedom.
- **D:** Incorrect: the argument is that conversion differences require institutional attention, not that capabilities arrive equally distributed.

Examiner trap 12: Explaining Sen only as welfare economics loses the philosophical content; in this paper the marks are in nīti and nyāya, comparative justice, capability and public reasoning.

MCQ 13. Dworkin's luck distinction

Dworkin defends equality of resources rather than equality of welfare. Which distinction carries that position?

- A. Brute luck, which a person did not choose, against option luck, which is the outcome of a chosen risk.
- B. Natural talent, which is inherited, against acquired skill, which is developed by deliberate personal effort.
- C. Absolute deprivation, which is measurable, against relative deprivation, which is comparative and subjective.
- D. Primary goods, which institutions distribute, against secondary goods, which markets distribute privately.

Answer: A.

Option explanations:

- **A:** Correct: society may insure against unchosen misfortune without compensating every outcome of a voluntarily accepted risk, which is how equal concern coexists with responsibility.
- **B:** Incorrect: the talent/skill contrast is not the operative distinction, and the inheritance of talent is a Rawlsian rather than a Dworkinian pivot here.
- **C:** Incorrect: the absolute/relative deprivation contrast belongs to a different debate about measurement.
- **D:** Incorrect: primary goods are Rawls's metric, and the primary/secondary division stated here is not a Dworkinian device.

Examiner trap 13: Merging Dworkin's equality of resources with Sen's capability metric erases the conversion problem, which is exactly the point on which the two rivals divide.

MCQ 14. Berlin's actual claim about positive liberty

Which statement reports Berlin's position on positive liberty accurately?

- A. Positive liberty is incoherent, because a person cannot intelligibly be said to be governed by her own better self.
- B. Positive liberty is genuinely attractive, but its real-self doctrine can license coercion presented as emancipation.
- C. Positive liberty is the only defensible concept, since negative liberty ignores poverty, illiteracy and dependency.
- D. Positive liberty and negative liberty are the same concept described in two different philosophical vocabularies.

Answer: B.

Option explanations:

- **A:** Incorrect: Berlin does not deny the human appeal of self-mastery; his target is a political inference, not the concept's coherence.
- **B:** Correct: the warning is that when rulers claim to know a person's true interests better than she does, coercion can masquerade as liberation.
- **C:** Incorrect: that is the standard objection to Berlin, and his distinction need not deny social preconditions of freedom.
- **D:** Incorrect: the two concepts answer different questions - the size of the unobstructed area, and who is directing the self.

Examiner trap 14: Writing that Berlin "supports negative liberty and rejects positive liberty" flattens a warning about misuse into a preference, and it makes his concession about incapacity unintelligible.

MCQ 15. The mechanism that makes positive liberty politically dangerous

On Berlin's diagnosis, which step converts an ideal of self-mastery into a licence for coercion?

- A. The claim that human goods are many and cannot always be harmonised into a single ordering.
- B. The claim that education, health and security are preconditions of any effective exercise of freedom.
- C. The split between a "real self" and an "empirical self", after which a ruler may claim to speak for the first.
- D. The claim that law is a subtraction from liberty which must be justified as the lesser of two evils.

Answer: C.

Option explanations:

- **A:** Incorrect: value pluralism is Berlin's own background commitment and part of his defence, not the dangerous step.
- **B:** Incorrect: enabling conditions are expressly distinguished from a doctrine authorising forced perfection.
- **C:** Correct: once the person is divided, no independent check remains on who speaks for the real self, and coercion of the empirical self can be redescribed as liberation.
- **D:** Incorrect: that is a feature of the negative conception's view of law, not the mechanism internal to positive liberty.

Examiner trap 15: Treating the two concepts as more and less of one quantity hides the fact that a person can rate high on one and low on the other, which is what makes the distinction useful.

MCQ 16. What the harm principle rules out

According to Mill's harm principle, which of the following is *not* by itself a sufficient ground for coercing a competent adult?

- A. Preventing a clearly identified injury that the agent's conduct will inflict upon other persons.
- B. Enforcing a contract the agent voluntarily entered into with another party who now relies on it.
- C. Preventing conduct that would directly endanger the physical safety of identifiable third parties.
- D. The fact that a majority finds the agent's opinion or conduct offensive, mistaken or morally distasteful.

Answer: D.

Option explanations:

- **A:** Incorrect: prevention of harm to others is precisely the ground the principle authorises.
- **B:** Incorrect: enforcing voluntary undertakings concerns effects on other parties and falls outside the protected self-regarding sphere.
- **C:** Incorrect: endangering identifiable third parties is a paradigm of other-regarding conduct.
- **D:** Correct: offence or disapproval is not harm, and heterodox opinion may not be suppressed merely because the majority finds it false or offensive.

Examiner trap 16: Treating offence as a species of harm in order to make the principle workable collapses the very distinction on which Mill's argument rests.

MCQ 17. Four thinkers, four enemies of freedom

Hobbes, Locke, Rousseau and Green specify liberty differently. Which set of pairings identifies what each treats as freedom's principal enemy?

- A. Hobbes: incapacity · Locke: disorder · Rousseau: arbitrary power · Green: dependence on another's will.
- B. Hobbes: arbitrary power · Locke: incapacity · Rousseau: disorder · Green: dependence on another's will.
- C. Hobbes: dependence on another's will · Locke: incapacity · Rousseau: disorder · Green: arbitrary power.
- D. Hobbes: disorder · Locke: arbitrary power · Rousseau: dependence on another's will · Green: incapacity.

Answer: D.

Option explanations:

- **A:** Incorrect: it assigns Green's enemy to Hobbes and Hobbes's to Locke, inverting the whole sequence.
- **B:** Incorrect: Locke's constitutionalism is directed against arbitrary power, not against incapacity, which is Green's target.
- **C:** Incorrect: dependence on another's private will is answered by Rousseau's self-legislation, not by Hobbes's sovereign.
- **D:** Correct: security against disorder, known law against arbitrary power, self-legislation against dependence, and enabling conditions against incapacity.

Examiner trap 17: Reading Locke's "freedom under law" as a restriction of freedom misses that known law is, for him, the instrument that prevents the actual enemy - arbitrary power.

MCQ 18. Green's positive freedom in its defensible form

Which formulation states Green's position in the form that survives the paternalism objection?

- A. Institutions should enlarge a person's effective capacity for worthwhile action, leaving the choice of ends with her.
- B. Institutions should identify the ends worth pursuing and require citizens to adopt them for their own good.
- C. Institutions should remove all legal obstacles and then withdraw, since further action necessarily coerces.
- D. Institutions should equalise outcomes directly, since freedom is meaningless without material equality.

Answer: A.

Option explanations:

- **A:** Correct: the enabling reading enlarges capacity while leaving the choice with the agent, which is why education is the safest illustration.
- **B:** Incorrect: that is the perfectionist reading, and it is precisely what attracts Berlin's objection.
- **C:** Incorrect: this is the negative conception, which Green is arguing against.
- **D:** Incorrect: direct outcome equalisation is a distributive claim, not Green's account of what liberty is.

Examiner trap 18: Defending positive liberty without distinguishing enabling from perfectionist versions hands the objection its easiest target.

MCQ 19. The threshold in the liberty-equality relation

Which statement expresses the relation between liberty and equality in the form that earns the degree-judgement marks?

- A. Liberty and equality are permanently opposed, so every gain in one is exactly a loss in the other.
- B. They reinforce each other at the level of basic liberties and equal civic standing, and compete only beyond that threshold.
- C. They never conflict, because every measure that promotes one necessarily promotes the other as well.
- D. Their relation is indeterminate, so no general statement about conflict or harmony can responsibly be made.

Answer: B.

Option explanations:

- **A:** Incorrect: freedom of speech for all is simultaneously a liberty and an equality of civic standing, which refutes permanent opposition at the base.
- **B:** Correct: this locates the conflict rather than asserting or denying it, which is what "how far" and "does liberty limit equality" stems demand.
- **C:** Incorrect: unrestricted contract and property accumulation, and aggressive equalisation, both generate real conflict beyond the threshold.
- **D:** Incorrect: refusing to commit forfeits the degree judgement that the directive requires.

Examiner trap 19: Deploying the trade-off as though it operated at every level ignores that a *basic* liberty is by definition held equally by all, so securing it is itself an act of equalisation.

MCQ 20. Liberty in a technological society

Which verdict on the realisability of liberty in modern technological society is best supported?

- A. Liberty has been abolished, since surveillance and algorithmic steering leave no space for autonomous choice.
- B. Liberty is unaffected, since technology adds options and no formal option has been removed from anyone.
- C. Liberty remains realisable, but the threat has migrated from law that forbids to architecture that steers.
- D. Liberty is a pre-technological concept and should be replaced by an account of efficient system design.

Answer: C.

Option explanations:

- **A:** Incorrect: this is not a graded verdict, and an "explain" directive is not answered by an apocalyptic assertion.
- **B:** Incorrect: counting formal options is exactly the test that behavioural steering evades, since it changes which option is taken without removing any.
- **C:** Correct: coercion may now be infrastructural and informational, which is why transparency, accountability and zones of non-domination become liberty demands.
- **D:** Incorrect: replacing the normative question with a design question abandons the stem rather than answering it.

Examiner trap 20: Filling the 2020 answer with a list of technologies, or with invented incidents and statistics, replaces a conceptual degree question with unverifiable reportage.

MCQ 21. Interference and domination

On the republican account, which statement is correct about the relation between interference and domination?

- A. Every act of interference constitutes domination, which is why law always reduces the freedom of those subject to it.
- B. Domination occurs only where interference has actually taken place and can be identified by an observer.
- C. Interference is an act, while domination is a standing capacity to interfere arbitrarily; the two can come apart.
- D. Domination and interference are two names for the same phenomenon described from different points of view.

Answer: C.

Option explanations:

- **A:** Incorrect: that is the negative conception's view of law; on the republican account non-arbitrary law can interfere without dominating.
- **B:** Incorrect: the central case is the kind master who dominates precisely without interfering, because he retains the capacity to do so.
- **C:** Correct: the act/standing distinction is what allows interference without domination and domination without interference.
- **D:** Incorrect: identifying them would remove the very case that motivates the third family of liberty.

Examiner trap 21: Presenting non-domination as a version of positive liberty misplaces it; it is a third family, and Berlin's pair does not contain it.

MCQ 22. The republican consequence for law

What follows, on the republican view, about the relation between law and liberty?

- A. Law is always a subtraction from liberty and can be justified only as a lesser evil in the circumstances.
- B. Law is irrelevant to liberty, which is settled entirely by the distribution of material resources in society.
- C. Law reduces liberty in the private sphere while increasing it in the political sphere, with no net effect.
- D. Non-arbitrary law is freedom-constituting, because it strips private persons of arbitrary power over others.

Answer: D.

Option explanations:

- **A:** Incorrect: this is the negative conception's consequence, and the contrast between the two views is the point of the section.
- **B:** Incorrect: institutional form is central to the republican account, which demands contestability, publicity, review and interest-tracking.
- **C:** Incorrect: no such sphere-by-sphere netting appears in the argument.
- **D:** Correct: law that tracks the avowable interests of the governed and remains open to effective contestation removes private arbitrary power and therefore constitutes freedom.

Examiner trap 22: Merging Pettit and Skinner into a single citation loses an easy attribution mark: Pettit (1997) supplies the normative theory, Skinner (1998) the historical recovery.

MCQ 23. Formal, procedural and substantive justice

Which statement distinguishes the three forms of justice correctly?

- A. Formal justice evaluates outcomes, procedural justice evaluates rules, and substantive justice evaluates consistency of application.
- B. Formal justice concerns consistent application, procedural justice the fairness of the deciding process, and substantive justice the standard itself.
- C. Formal and procedural justice are identical, and substantive justice adds only a preference about the desired distribution.
- D. Procedural justice concerns consistency, formal justice concerns outcomes, and substantive justice concerns the hearing given to parties.

Answer: B.

Option explanations:

- **A:** Incorrect: it redistributes all three functions, assigning outcome-evaluation to the form that evaluates application.
- **B:** Correct: application, process and standard are three distinct objects of evaluation, which is why an unjust principle can be applied with perfect consistency.
- **C:** Incorrect: an unjust principle applied consistently satisfies formal justice while failing procedural or substantive tests, so the two are not identical.
- **D:** Incorrect: hearing and publicity are procedural requirements, not substantive ones.

Examiner trap 23: Collapsing justice into legality or into fair procedure ignores that a law may be valid yet unjust, and that procedural regularity can coexist with substantive injustice.

MCQ 24. Aristotle's two equalities

Which pairing of Aristotle's two justices with their corresponding equalities is correct?

- A. Distributive justice embodies proportional equality; corrective justice embodies arithmetic equality.
- B. Distributive justice embodies arithmetic equality; corrective justice embodies proportional equality.
- C. Both distributive and corrective justice embody proportional equality, differing only in their scope.
- D. Both distributive and corrective justice embody arithmetic equality, differing only in their subject matter.

Answer: A.

Option explanations:

- **A:** Correct: shares track a relevant criterion in distribution, while correction restores an arithmetic balance without regard to the parties' merit.
- **B:** Incorrect: it inverts the pair, and the inversion makes compensation depend on the recipient's desert.
- **C:** Incorrect: correction deliberately ignores the parties' qualities, which is why it cannot be proportional.
- **D:** Incorrect: distribution by relevant desert is precisely not an equal-units operation.

Examiner trap 24: Merging the two justices into "Aristotle's theory of justice" surrenders the technical vocabulary that makes the answer identifiably philosophical.

MCQ 25. Remedial - Merit and desert

Candidates routinely treat merit and desert as one idea. Which statement separates them correctly?

- A. Desert is functional and forward-looking; merit is moralised and backward-looking, tracking effort and sacrifice.
- B. Desert is backward-looking and moralised; merit is forward-looking and functional, tracking competence for a role.
- C. Desert applies only to material goods, while merit applies only to honours, prizes and public recognition.
- D. Desert and merit differ only in usage, since both name the same entitlement generated by past achievement.

Answer: B.

Option explanations:

- **A:** Incorrect: it swaps the two definitions exactly, which is the error the drill targets.
- **B:** Correct: a candidate may have great desert and little merit, or great merit and no desert, which is why the distinction does real work.
- **C:** Incorrect: both criteria can bear on either kind of good; the difference is temporal and evaluative, not a division of subject matter.
- **D:** Incorrect: collapsing them produces the standard bad answer that "merit is a moral entitlement".

Examiner trap 25: Defending selection by measured merit as a moral entitlement conceals that measured merit encodes prior access to nutrition, language, coaching and networks.

MCQ 26. Remedial - The compensatory principle and its limits

Which statement gives the compensatory principle together with the concession an examiner expects?

- A. Compensation is owed indefinitely, since historical injustice can never be fully measured or repaired.
- B. Compensation is unjustified, because present individuals who committed no wrong would bear its cost.
- C. Compensation is demanded by equality where disadvantage is transmitted, and it lapses when that transmission ceases.
- D. Compensation is a policy question with no philosophical content, so a philosophy answer should not discuss it.

Answer: C.

Option explanations:

- **A:** Incorrect: an indefinite remedy abandons the terminus that the principle itself supplies.
- **B:** Incorrect: the reply on record is that present individuals are not alleged to be guilty but to be unjustly advantaged by a continuing distribution.
- **C:** Correct: the principle is generalised corrective justice, and it lapses when the transmitted disadvantage it targets no longer operates; over-inclusion remains a genuine residual difficulty.
- **D:** Incorrect: the general compensatory principle is owned here as a criterion of distribution, even though the policy debate is routed to the caste owner.

Examiner trap 26: Expanding the compensatory principle into a reservation-policy essay imports the caste owner's material and leaves the criterion itself undefended.

MCQ 27. Remedial - The order of Rawls's principles

Which statement reproduces Rawls's ordering correctly?

- A. The difference principle is prior to fair equality of opportunity, which is in turn prior to equal basic liberties.
- B. Fair equality of opportunity is lexically prior to equal basic liberties, with the difference principle applied last.
- C. All three requirements apply simultaneously, and any of them may be traded against the others as needed.
- D. Equal basic liberties are lexically prior; within the second principle, fair equality of opportunity precedes the difference principle.

Answer: D.

Option explanations:

- **A:** Incorrect: it exactly reverses the order and would permit basic liberties to be traded for distributive gains.
- **B:** Incorrect: opportunity is part of the second principle and cannot outrank the first.
- **C:** Incorrect: simultaneity abolishes the priority rules, which are the device protecting liberty from aggregation.
- **D:** Correct: liberty first, then fair equality of opportunity, then the difference principle - and the ordering is itself examinable.

Examiner trap 27: Writing Rawls as though equality were his first principle is the single commonest error on this clause; the first principle secures equal basic liberties.

MCQ 28. Remedial - The status of the original position

How should the original position be described?

- A. A device of representation that models a fair choice situation, not a historical or actual contract.
- B. A historical agreement that founded modern constitutional states and can be dated from surviving records.
- C. A psychological description of how citizens actually deliberate about principles in a democratic society.
- D. A legal procedure by which a constitutional court decides between competing distributive principles.

Answer: A.

Option explanations:

- **A:** Correct: the abstraction is methodological, filtering morally arbitrary facts, and Rawls is explicit that no actual contract is asserted.
- **B:** Incorrect: no historical claim is made, and treating the device as history invites an irrelevant empirical refutation.
- **C:** Incorrect: it is a normative construction, not a report of deliberative psychology.
- **D:** Incorrect: it is not an institutional procedure, and no court applies it.

Examiner trap 28: Attacking the original position as historically false answers a claim Rawls never made, and it wastes the space that the unencumbered-self objection deserves.

MCQ 29. Remedial - Nozick, patterns and rectification

Which statement about Nozick's theory is correct?

- A. He defends a patterned principle of justice in which holdings must match a distribution proportioned to need.
- B. He rejects rectification, holding that past injustice is irrelevant once holdings have changed hands voluntarily.
- C. He accepts patterned principles for political rights while rejecting them for the distribution of material goods.
- D. He rejects patterned principles and defends a historical theory whose third component is justice in rectification.

Answer: D.

Option explanations:

- **A:** Incorrect: he explicitly opposes patterned principles, and need-proportioning is among his named targets.
- **B:** Incorrect: rectification is the third component of the entitlement theory; the criticism is that he under-specifies it, not that he omits it.
- **C:** Incorrect: no such split between political and material spheres appears in the entitlement theory.
- **D:** Correct: acquisition, transfer and rectification form the historical account, and the Wilt Chamberlain argument shows that voluntary transfer dissolves any fixed pattern.

Examiner trap 29: Presenting the Wilt Chamberlain case as an argument that inequality is good mistakes its function; it is an argument that voluntary transfer dissolves patterns, and self-ownership does the normative work.

MCQ 30. Remedial - Nīti and nyāya

Which rendering of Sen's pair is accurate?

- A. Nīti is realised justice in people's lives, while nyāya is the correctness of rules and institutions.
- B. Nīti is the correctness of institutions, rules and procedures; nyāya is justice as realised in social life.
- C. Nīti and nyāya both name institutional correctness, differing only in the tradition that uses each term.
- D. Nīti is distributive justice and nyāya is corrective justice, corresponding to Aristotle's two categories.

Answer: B.

Option explanations:

- **A:** Incorrect: it reverses the pair, and the reversal destroys the argument that fine rules can coexist with grave injustice.
- **B:** Correct: the contrast is what licenses the move from ideal institutional design to comparative assessment of how people actually fare.
- **C:** Incorrect: identifying the two removes the distinction the argument depends on.
- **D:** Incorrect: no mapping onto Aristotle's distributive and corrective justice is asserted, and the transposition is anachronistic.

Examiner trap 30: Using either term without an English gloss violates the English-first rule and leaves an examiner unable to credit the concept behind the word.

MCQ 31. Remedial - Attribution and dating

Which set of attributions is correct throughout?

- A. Pettit supplies the historical recovery of republicanism; Skinner supplies the normative theory of non-domination.
- B. Berlin introduces non-domination as a third concept of liberty alongside the negative and positive concepts.
- C. Pettit (1997) supplies the normative theory; Skinner (1998) the historical recovery; Mill's *On Liberty* is 1859 and *The Subjection of Women* 1869.
- D. Rawls (1974) states the difference principle, and Nozick (1971) replies with the entitlement theory of holdings.

Answer: C.

Option explanations:

- **A:** Incorrect: the two roles are reversed; keeping them separate is an explicit requirement of this owner.
- **B:** Incorrect: non-domination is a third family developed after Berlin, and it must never be attributed to him.
- **C:** Correct: theory and history are separated, and Mill's two works are correctly dated nine years apart.
- **D:** Incorrect: the years are swapped - Rawls is **1971** and Nozick **1974**, and reversing them also reverses the direction of the reply.

Examiner trap 31: Inventing page numbers, chapters, editions or quotations for Pettit, Skinner, Rawls or Nozick converts a defensible citation into a fabrication that a specialist examiner will notice.

MCQ 32. Remedial - What this clause does not own

Which item should be routed away from an answer on social and political ideals?

- A. The competing justifications of reservation policy, the reverse-discrimination objection and the Indian judicial record.
- B. The distinction between formal, procedural and substantive justice as applied to a distribution of offices.
- C. The claim that political equality without social equality is unstable, used as a normative anchor.
- D. The contrast between equity and equality as it bears on distribution according to need and condition.

Answer: A.

Option explanations:

- **A:** Correct: this owner develops only the general compensatory principle; the affirmative-action debate and the Indian caste record belong to the caste owner.
- **B:** Incorrect: the three forms of justice are owned here and are required for composite justice stems.
- **C:** Incorrect: Ambedkar functions here as the normative foil for the instability of merely political equality.
- **D:** Incorrect: the equity/equality contrast is directly owned, and a previous-year part turns on it.

Examiner trap 32: Importing another owner's material - democratic institutional forms, Marxism as an ideology, or reservation policy - produces an off-target script that can read well and still score poorly.

PYQS AND ANSWER PRACTICE

Practice status and source discipline - read once, applies to every solution below

Every model answer here is independent learner practice and is **never** an official UPSC key; UPSC publishes no descriptive model answer for Philosophy Paper II. Question wording is reproduced exactly as printed in the official papers, including the spacing before question marks that the repository's verified ledger records for the 2018, 2021 and 2024 parts, and the printed spelling "Rawl's" in the 2021 twenty-marker. The 2018 to 2025 Paper II texts are held locally, and the English wording of every part below follows the repository's verified Socio-Political PYQ ledger. Provenance is treated as examinable: **Rawls 1971, Nozick 1974, Berlin 1958, Mill 1859** for *On Liberty* and **1869** for *The Subjection of Women*, **Pettit 1997** for the normative theory of non-domination and **Skinner 1998** for its historical recovery. Marx's need-based formula is cited to the *Critique of the Gotha Programme* and Sen's distinction to *The Idea of Justice*, in both cases without page, chapter or edition detail and without invented quotation. Interpretive disputes - whether justice can order the other two ideals without already presupposing them, whether "arbitrary" can be specified non-circularly, whether comparative justice can choose between rival improvements, and whether the compensatory principle has a statable terminus - are flagged as contested rather than settled.

Answer-length convention used throughout this package. UPSC Philosophy Paper II parts are written longer than General Studies answers. The working bands used here are **10 marks - about 150 to 220 words, 15 marks - about 250 to 330 words, and 20 marks - about 330 to 400 words**. Every solution below sits inside its declared band, and the demand decoding, the verdict heading and the "why this earns marks" notes are teaching apparatus that sit **outside** the timed word count.

Coverage. ANALYSIS: Corpus signal: this clause owns **14 of 112** Socio-Political question-parts in the 2018-2025 corpus - the largest single share in the paper - distributed **2018: 1, 2019: 2, 2020: 1, 2021: 3, 2022: 2, 2023: 1, 2024: 2, 2025: 2**. All fourteen are solved in full below, followed by **six original solved Mains models**, two each at 10, 15 and 20 marks. The internal distribution is worth knowing before the exam: **equality** carries four parts (2021 Q1(b), 2022 Q2(c), 2025 Q1(e), and jointly 2024 Q2(b)), **liberty** four (2019 Q4(b), 2020 Q1(a), 2022 Q1(d), 2024 Q2(b)), **justice** five (2019 Q1(a), 2021 Q1(a), 2021 Q2(a), 2023 Q1(a), 2024 Q1(a)), and two composite parts (2018 Q2(a), 2025 Q4(a)) require all three. **ANALYSIS: Ownership discipline:** democracy-form questions owned by **Forms of Government** and Marxism-as-ideology questions owned by **Political Ideologies** are not counted here, and the 2022 Q2(c) part is routed to this owner because the demanded concept is equity against equality, with Marx supplying only the frame.

Solved PYQ 1 · 2018 · Q2(a) · 20 marks

Question: How far can liberty and equality be considered as distinctive features of democracy ? Discuss.

Demand decoding

Element	Requirement
Directive	"How far" plus "discuss" - a degree judgement is compulsory, not a yes or no
Core issue	Whether liberty and equality are <i>distinctive</i> of democracy, and whether they are <i>sufficient</i> for it
Scope boundary	Twenty marks: both ideals, their relation, one supplement, one graded verdict - not a survey of democratic institutions
Ideal thesis	They are distinctive but not exhaustive; each is indeterminate until justice and fraternity fix which liberties and which equalities matter
Non-negotiables	Political and social equality distinguished; the threshold of complementarity; Ambedkar's supplement; the ownership fence around forms of government

Independent model answer

Thesis. ANALYSIS: Liberty and equality are **distinctive but not exhaustive** features of democracy: they constitute its normative core, yet each is indeterminate until justice supplies an ordering criterion and fraternity sustains it. "How far" therefore demands a degree judgement.

What "distinctive" must mean. ANALYSIS: A feature is distinctive of democracy if it is constitutive of that regime type rather than merely compatible with it. Monarchies and oligarchies can grant liberties as concessions and can equalise some burdens administratively; what they cannot do is derive their authority from the equal standing of the ruled. That is the test applied below.

Liberty as a democratic feature. FACT: Democracy institutionalises negative liberties - speech, association, dissent - and also a positive, self-ruling liberty: on Rousseau's account the citizen obeys a law he helps to author, so obedience and freedom cease to be opposites. ANALYSIS: Without protected liberty, elections become ratification rather than choice, because the alternatives that make choosing meaningful cannot be formulated, published or organised.

Equality as a democratic feature. FACT: Political equality - equal vote and equal eligibility for office - and social equality, understood as the absence of status hierarchy and stigma, together give democracy its non-oligarchic standing. FACT: One person, one vote is itself an equality of civic worth rather than a mere counting rule, since it declares that no citizen's judgement is presumptively worth more than another's.

Their relation - the mark-bearing move. ANALYSIS: At the level of **basic liberties** the two reinforce one another, since freedom of speech *for all* is simultaneously a liberty and an equality of standing. They compete only beyond that threshold, where market liberty breeds inequality or aggressive equalisation curbs choice. FACT: Rawls's **lexical priority** of equal basic liberties (1971) shows that liberty need not be traded for aggregate welfare, and it converts the relation from a slogan into an institutional ordering.

The limit. FACT: Neither ideal by itself prevents majority tyranny, manipulated opinion, or the hollowing of political equality by social hierarchy. ANALYSIS: On the republican reading, formal political equality can coexist with dependence, since a voter who lives at another's discretion is dominated whether or not she is interfered with. FACT: Ambedkar's warning is decisive: political democracy is unstable without **social democracy** resting on liberty, equality and fraternity.

Verdict. ANALYSIS: Liberty and equality are genuinely distinctive of democracy - no other regime type makes both constitutive of its authority - but they are **necessary rather than sufficient**, and their scope is fixed only when justice orders them.

Why this earns marks

Answer-writing focus: the stem contains a hidden second question. "Distinctive" is about what marks democracy off; "how far" is about sufficiency. Answer both, in that order.

Exam-length execution - 20 marks, about 330 to 400 words: thesis two lines; the meaning of "distinctive" three; liberty three; equality three; relation four; limit four; verdict two.

- **Structure:** thesis -> what "distinctive" requires -> liberty -> equality -> threshold relation -> limit -> graded verdict.
- **Doctrine:** negative and positive liberty; political and social equality; lexical priority.
- **Evidence:** Rousseau's self-authored law; free speech as liberty *and* equality; Rawls (1971); Ambedkar's social democracy.
- **Distinction:** distinctive against sufficient; complementarity at the base against rivalry beyond the threshold.
- **Criticism:** majority tyranny and social hierarchy as the limits neither ideal removes on its own.

Solved PYQ 2 · 2019 · Q1(a) · 10 marks

Question: How far do you think John Rawls is continuing with Plato's concept of justice?

Demand decoding

Element	Requirement
Directive	"How far do you think" - a degree judgement with a named axis of comparison
Core issue	What exactly could be continuous between an ancient theory of right-order and a modern contractarian theory
Scope boundary	Ten marks: one continuity, two breaks, one verdict - not an exposition of either theory
Ideal thesis	Rawls inherits Plato's <i>question</i> , not his answer
Non-negotiables	Name the axis before judging; functional harmony against fair terms of cooperation; method and citizenship as the breaks

Independent model answer

Thesis. ANALYSIS: Rawls continues Plato only in a broad architectonic sense - justice as the virtue that structures a well-ordered whole - and breaks with him radically on method, citizenship and equality. The axis of comparison must be stated before the judgement.

The continuity. FACT: For Plato, justice is right-order: each part of soul and city performs its own proper function without usurping another's. For Rawls, justice is the first virtue of the **basic structure** - the fair terms of cooperation among free and equal persons. Both make justice the *ordering* virtue of the social whole rather than one desirable quality among others.

Break one - method. FACT: Plato reaches justice through functional differentiation and a metaphysical account of the good; Rawls reaches it through a hypothetical device, the **original position** under a **veil of ignorance**, which he expressly calls a device of representation rather than a cosmology or a historical contract.

Break two - equality and citizenship. FACT: Plato's order is a fixed hierarchy of natural kinds, in which justice consists partly in not aspiring beyond one's class. Rawls builds in equal basic liberties and fair equality of opportunity for equal citizens, and rejects caste-like closure outright.

Verdict. ANALYSIS: The continuity is thin and formal; the discontinuity is deep and substantive. Rawls inherits Plato's **question** - what makes a social whole well-ordered - and rejects his **answer**.

Why this earns marks

Answer-writing focus: "how far" questions are lost by writing two summaries and adding "thus both are similar in some ways". Name the axis, then grade the continuity.

Exam-length execution - 10 marks, about 150 to 220 words: thesis two lines; continuity three; each break two; verdict two.

- **Structure:** axis named -> one continuity -> two breaks -> graded verdict.
- **Doctrine:** functional right-order; justice as the first virtue of the basic structure.
- **Evidence:** the three-class and three-part correspondence; the original position as a device of representation.
- **Distinction:** shared question against opposed answers.
- **Criticism:** implicit in the verdict, which refuses both "Rawls is a Platonist" and "there is no relation".

Solved PYQ 3 · 2019 · Q4(b) · 15 marks

Question: Does liberty put limitations to equality? Discuss.

Demand decoding

Element	Requirement
Directive	"Does... discuss" - a live tension must be exposed and then adjudicated
Core issue	Whether the limitation is general or holds only beyond a threshold
Scope boundary	Fifteen marks: one axis, both sides at full strength, one worked objection-reply, one conditional verdict
Ideal thesis	Liberty limits equality at the margin; at the level of basic liberties the two reinforce one another
Non-negotiables	The threshold; the republican reframing; a conditional rather than flat verdict

Independent model answer

Thesis. ANALYSIS: Liberty limits equality **at the margin** and supports it at the base. The question is therefore not whether a limitation exists but where it begins, and the answer must be conditional.

Where liberty does limit equality. FACT: Unrestricted freedom of contract, property accumulation and market power allow the strong to dominate the weak and generate durable material inequality - the process Rousseau describes when convention converts natural difference into dependence. FACT: Strong protection of the private domain can also block redistributive measures, so the limitation is real and not merely rhetorical.

Where it does not. FACT: Equal basic liberties **are** a form of equality: securing free speech, association and conscience for everyone is at once a liberty and an equality of civic standing. FACT: Rawls's priority rules (1971) permit inequality only under fair equality of opportunity and benefit to the least advantaged, so liberty on his account is not a licence to entrench privilege.

The reframing that carries the depth marks. ANALYSIS: On the republican view (Pettit, 1997; historical recovery, Skinner, 1998), material dependence is itself a form of **domination**: the un-interfered-with dependant is unfree precisely as a dependant. Certain equalising measures therefore *increase* freedom rather than trading against it, which shows that "liberty against equality" is not a zero-sum law but an artefact of one conception of liberty.

Objection and reply. CAUTION: It may be objected that any redistribution violates liberty by taking what persons were free to hold. ANALYSIS: The reply is that this assumes only state action can reduce freedom; where deprivation places persons under another's arbitrary power, redistribution protects freedom instead of negating it. The residual difficulty is that "arbitrary" remains partly indeterminate.

Verdict. ANALYSIS: Liberty limits equality where market advantage expands unchecked, and ceases to limit it at the level of basic liberties and equal standing - so the limitation is **conception-relative and threshold-bound**, not general.

Why this earns marks

Answer-writing focus: the examiner is testing whether you can locate a threshold. A script that argues only one side has not discussed anything.

Exam-length execution - 15 marks, about 250 to 330 words: thesis two lines; limitation four; non-limitation four; reframing four; objection three; verdict two.

- **Structure:** thesis -> conflict case -> complementarity case -> republican reframing -> objection and reply -> conditional verdict.
- **Doctrine:** basic liberties; priority rules; non-domination.
- **Evidence:** Rousseau on convention; Rawls (1971); Pettit (1997) with Skinner (1998).
- **Distinction:** interference against domination; base against margin.
- **Criticism:** the indeterminacy of "arbitrary", conceded rather than hidden.

Solved PYQ 4 · 2020 · Q1(a) · 10 marks

Question: Is the concept of liberty realizable in the modern technological society? Explain.

Demand decoding

Element	Requirement
Directive	"Is... explain" - internal logic first; a graded answer, not a lament
Core issue	Whether technological society removes liberty or changes the form of the threat to it
Scope boundary	Ten marks: one ledger, one conceptual shift, one distinction, one conditional verdict
Ideal thesis	Liberty remains realisable, but coercion has migrated from law that forbids to architecture that steers
Non-negotiables	Convenience against autonomy; why an interference-count fails here; no invented incidents or statistics

Independent model answer

Thesis. ANALYSIS: Liberty remains realisable in technological society, but only under vigilance: the threat has migrated from **law that forbids** to **architecture that steers**.

The two-sided ledger. ANALYSIS: Technology expands knowledge, mobility, communication and choice, while enabling surveillance, manipulation of choice and the concentration of informational power.

The conceptual shift. ANALYSIS: Coercion today may be **infrastructural and informational** rather than legal. The classical test looked for a rule that prohibits; behavioural steering prohibits nothing. Algorithmic nudging can leave every formal option open while shaping which option is actually taken, so a purely negative test - counting removed options - registers no loss of freedom at all.

The controlling distinction. ANALYSIS: *Convenience is not autonomy*. A person may hold more choices and less control over the terms on which she chooses. ANALYSIS: Here the republican test earns its place: what matters is that another party holds an unaccountable capacity to set those terms.

Objection and reply. CAUTION: It may be said that modern complexity requires pervasive management. ANALYSIS: Even so, liberty demands transparency, accountability and zones insulated from arbitrary informational power; the argument concerns how such systems are governed, not whether they exist.

Verdict. ANALYSIS: Realisable, conditionally. CAUTION: How far any given society has already crossed the line is an empirical question this answer does not settle.

Why this earns marks

Answer-writing focus: the fatal script here is a list of technologies. The stem is conceptual: what *kind* of unfreedom is at issue, and which test detects it.

Exam-length execution - 10 marks, about 150 to 220 words: thesis one line; ledger two; shift four; distinction three; objection two; verdict two.

- **Structure:** thesis -> ledger -> migration of coercion -> convenience against autonomy -> objection and reply -> conditional verdict.
- **Doctrine:** infrastructural coercion; non-domination as the detecting test.
- **Evidence:** algorithmic nudging as the standing example of preserved options and steered choice.
- **Distinction:** formal option against effective control of terms.
- **Criticism:** the complexity objection, answered by transparency and contestability rather than by abolition.

Solved PYQ 5 · 2021 · Q1(a) · 10 marks

Question: Discuss critically the distributive theory of justice as propounded by R. Nozick.

Demand decoding

Element	Requirement
Directive	"Discuss critically " - the objection and reply layer is the answer, not an appendix
Core issue	That Nozick's is an anti-distributive, historical theory, and where its historical premise fails
Scope boundary	Ten marks: three principles, the pattern contrast, one argument, one criticism, one verdict
Ideal thesis	The framework is coherent; its historical premise is unsatisfied and its own remedy under-specified
Non-negotiables	Acquisition, transfer, rectification; patterned against historical; Wilt Chamberlain reconstructed, not just named

Independent model answer

Thesis. ANALYSIS: Nozick's theory is **anti-distributive** in the usual sense: justice in holdings is settled by history, not by the shape of the final distribution. The framework is internally coherent; its historical premise is where it fails.

The three principles. FACT: Justice in **acquisition** governs how previously unowned things may justly be acquired; justice in **transfer** governs voluntary exchange, gift and transfer; justice in **rectification** governs the correction of past injustice.

Patterned against historical. FACT: A patterned principle asks whether the current distribution fits a preferred shape - equality, need or merit. A historical principle asks how each holding arose. **FACT:** In the **Wilt Chamberlain** argument, we begin from any distribution the reader accepts as just, allow many people to pay a small sum voluntarily to watch one performer, and find the pattern broken by voluntary acts alone. Either the new distribution is just, or liberty must be continuously restricted to preserve patterns.

The criticism. ANALYSIS: Actual acquisitions are rarely clean: conquest, exclusion, power asymmetry and coercive necessity undermine the voluntariness the theory requires. Nozick provides for rectification but leaves it substantially **under-specified**, so the principle that would repair the defect is the least developed part of the theory.

Verdict. ANALYSIS: A powerful warning against overreaching redistribution, and a defective account of real societies whose starting points were never innocent.

Why this earns marks

Answer-writing focus: "critically" is satisfied by an internal criticism - one drawn from the theory's own third principle - not by an external assertion that inequality is bad.

Exam-length execution - 10 marks, about 150 to 220 words: thesis two lines; principles three; contrast and argument four; criticism three; verdict one.

- **Structure:** thesis -> three principles -> pattern contrast with the argument -> internal criticism -> verdict.
- **Doctrine:** entitlement theory; self-ownership as side-constraint.
- **Evidence:** the Wilt Chamberlain reconstruction; the minimal state's limits.
- **Distinction:** end-state shape against process.
- **Criticism:** the unclear historical premise and the under-specified rectification principle.

Solved PYQ 6 · 2021 · Q1(b) · 10 marks

Question: How does Rousseau distinguish between natural and artificial inequality ? Explain.

Demand decoding

Element	Requirement
Directive	"How does he distinguish... explain" - exposition of the contrast, not an evaluation of Rousseau
Core issue	The two categories, the mechanism of conversion, and what the distinction does not claim
Scope boundary	Ten marks: definitions, mechanism, one example, one limit - no state-of-nature narrative
Ideal thesis	The distinction is diagnostic: the oppressive forms are socially produced and socially maintained
Non-negotiables	Both categories named exactly; property and comparison as mechanisms; the command example

Independent model answer

Thesis. FACT: Rousseau separates **natural or physical inequality** from **moral or political inequality**, often called artificial, and argues that only the second is politically decisive.

The two categories. FACT: Natural inequality covers differences of age, bodily strength, health and intelligence - differences established by nature. FACT: Moral or political inequality covers wealth, honour, power, dependence and social superiority - differences established by **convention** and maintained by institutions.

The mechanism of conversion. FACT: Natural differences become politically toxic when institutions convert them into durable domination and vanity. Rousseau names two mechanisms: **property**, which fixes advantage in transferable form, and **social comparison**, which turns difference into rivalry and esteem-seeking. Civil society therefore deepens dependence rather than merely recording pre-existing difference.

The example that settles it. FACT: One person being stronger than another is natural. One person **commanding** another because convention sanctifies property and status is moral or political inequality.

What the distinction does not claim. FACT: Rousseau is not asserting that all inequality is conventional, nor that natural difference is politically irrelevant. The thesis is narrower and stronger: the most oppressive forms are socially produced and socially maintained - and therefore socially remediable.

Verdict. ANALYSIS: The distinction is **diagnostic, not pastoral**. Its force is that institutions magnify and then legitimise inequalities far beyond anything natural difference could support, which shifts the burden of justification onto hierarchy itself.

Why this earns marks

Answer-writing focus: "explain" forbids importing criticism at the cost of exposition. The mechanism of conversion is the mark-bearing content.

Exam-length execution - 10 marks, about 150 to 220 words: thesis one line; categories three; mechanism four; example two; limit two; verdict two.

- **Structure:** thesis -> two categories -> conversion mechanism -> example -> limit -> diagnostic verdict.
- **Doctrine:** natural against moral or political inequality.
- **Evidence:** property and social comparison; the strength-against-command contrast.
- **Distinction:** difference established by nature against difference established by convention.
- **Criticism:** kept to the closing qualification, as an "explain" directive requires.

Solved PYQ 7 · 2021 · Q2(a) · 20 marks

Question: Discuss whether Amartya Sen's idea of justice is an improvement upon Rawl's theory of justice.

Demand decoding

Element	Requirement
Directive	"Is X an improvement upon Y" - the criterion of improvement must be named before the verdict
Core issue	Comparative against transcendental institutionalism; capability against primary goods
Scope boundary	Twenty marks: both positions at strength, two objection-reply chains, one criterion-relative verdict
Ideal thesis	Sen improves in reach and diagnosis; Rawls retains institutional determinacy - improvement is criterion-relative
Non-negotiables	Nīti and nyāya glossed in English; what Rawls still does better; the printed spelling "Rawl's" left unaltered in the question

Independent model answer

Thesis. ANALYSIS: "Improvement" is **criterion-relative**. Judged by reach into realised lives, Sen improves on Rawls; judged by institutional determinacy and the protection of basic liberties by rule, Rawls retains the advantage. The criterion must be stated before the verdict.

Rawls at full strength. FACT: Principles are chosen in the **original position** behind a **veil of ignorance**, yielding equal basic liberties with **lexical priority**, then fair equality of opportunity, then the **difference principle**. The construction answers the aggregation objection: no one may be sacrificed for a larger total, because no chooser can gamble on occupying someone else's position.

Sen's criticism. FACT: Sen distinguishes **nīti** - the correctness of institutions, rules and procedures - from **nyāya**, justice as actually realised in people's lives. A society may have fine rules on paper and produce grave injustice in practice. He therefore rejects **transcendental institutionalism**: we can identify manifest injustices and rank alternatives without first agreeing on a perfectly just basic structure.

The metric. FACT: Sen replaces primary goods with **capability** - what persons are actually able to do and to be - because disability, age, gender, climate, health and social position change how resources convert into functioning. Equal income does not yield equal mobility or voice.

First objection and reply. CAUTION: Comparative judgement without a benchmark may under-determine the choice between two rival improvements. **ANALYSIS:** Sen answers that public reasoning and manifest injustice supply enough orientation, and that demanding a complete ideal before acting is itself a source of paralysis.

Second objection and reply. CAUTION: Capability comparison is measurement-heavy and open-ended. **ANALYSIS:** Sen prefers reasoned public assessment to spurious exactness, deliberately declining a rigid final list - a defensible choice for plural societies that nonetheless costs determinacy.

What Rawls still does better. ANALYSIS: Institutions remain the indispensable precondition of any realised justice, and the lexical priority rule protects liberty by rule rather than by ongoing judgement.

Verdict. ANALYSIS: Sen improves on Rawls in diagnosis and reach and does not displace him in institutional design; the honest ruling is that the two are complementary, with priority decided by the criterion invoked.

Why this earns marks

Answer-writing focus: the single commonest failure is asserting improvement without a standard. Name the standard in the first two lines.

Exam-length execution - 20 marks, about 330 to 400 words: thesis two lines; Rawls four; criticism four; metric three; each objection three; concession two; verdict two.

- **Structure:** criterion named -> Rawls at strength -> Sen's criticism -> metric -> two objection-reply chains -> concession -> criterion-relative verdict.
- **Doctrine:** original position; lexical priority; nīti and nyāya; capability.
- **Evidence:** the conversion argument; the paper-rules-and-practice contrast.

- **Distinction:** comparative against transcendental institutionalism.
- **Criticism:** under-determination and measurement openness, both conceded and answered.

Solved PYQ 8 · 2022 · Q1(d) · 10 marks

Question: "Complete liberty may lead to inequality while order and restrictions imply a necessary loss of freedom." Critically discuss.

Demand decoding

Element	Requirement
Directive	" Critically discuss " a quoted statement - take the claim apart limb by limb, then adjudicate
Core issue	The statement contains two claims, and only the first survives intact
Scope boundary	Ten marks: both limbs, one reframing, one graded verdict - not a general essay on freedom
Ideal thesis	The first limb is broadly right; the second smuggles in a contested conception of liberty
Non-negotiables	Treat the two limbs separately; use the republican reframing on the second; do not simply agree

Independent model answer

Thesis. ANALYSIS: The statement joins a **defensible** claim to a **question-begging** one. Complete liberty does tend to generate inequality; that order and restriction imply a *necessary* loss of freedom is true on one conception of liberty and false on another.

Limb one - complete liberty and inequality. FACT: Unrestricted freedom of contract, property accumulation and market power let the strong dominate the weak, and Rousseau supplies the mechanism: convention converts difference into durable dependence.

Limb two - the hidden premise. ANALYSIS: "A necessary loss of freedom" presupposes the **negative** conception, on which every law is *prima facie* a subtraction from liberty. **ANALYSIS:** On the republican conception (**Pettit, 1997**), law that tracks the avowable interests of the governed and remains publicly contestable **constitutes** freedom, because it strips private persons of arbitrary power. "Necessary" is doing illegitimate work.

The reframing. ANALYSIS: The limbs are therefore in tension: if unregulated liberty produces dependence, and dependence is unfreedom, well-designed restriction can *increase* aggregate freedom.

The concession. FACT: Not every restriction is of the right kind. Arbitrary or perfectionist regulation does subtract freedom, and Berlin's warning about coercion imposed for a citizen's "real self" remains apposite.

Verdict. ANALYSIS: Accept the first limb, reject the necessity in the second, and locate the truth in a **threshold**: restriction that removes arbitrary power constitutes freedom; restriction that substitutes official judgement for personal choice destroys it.

Why this earns marks

Answer-writing focus: statement questions are lost by agreeing wholesale. Split the quotation, find the unargued premise, and rule on each limb separately.

Exam-length execution - 10 marks, about 150 to 220 words: thesis two lines; limb one two; limb two four; reframing two; concession two; verdict two.

- **Structure:** split the statement -> limb one accepted -> limb two's hidden premise exposed -> reframing -> concession -> threshold verdict.
- **Doctrine:** negative conception of law; republican freedom-constituting law.
- **Evidence:** Rousseau on convention; Pettit (1997); Berlin's real-self warning.
- **Distinction:** restriction that removes arbitrary power against restriction that replaces choice.
- **Criticism:** the concession that perfectionist regulation genuinely does subtract freedom.

Solved PYQ 9 · 2022 · Q2(c) · 15 marks

Question: Explain the difference between the notion of equity and equality with reference to Marxian philosophy.

Demand decoding

Element	Requirement
Directive	" Explain the difference" - exposition with a controlled contrast, not an evaluation of Marxism
Core issue	Equality as one common measure against equity as need-sensitive differentiation
Scope boundary	Fifteen marks: the contrast, the critique of formal equality, the formula, the stage-qualification
Ideal thesis	For Marx an equal right can be a right of inequality, so equity is the more demanding ideal
Non-negotiables	The Gotha formula; the two-stage indexing; ownership fence against the ideology owner

Independent model answer

Thesis. FACT: In the Marxian frame, **equality** names one common measure applied to all, while **equity** names differentiated treatment responsive to need and actual condition. The difference matters because a single measure applied to unequally placed persons produces unequal effect.

The critique of formal equality. FACT: Marx is suspicious of merely formal equality under capitalism because formally equal exchange can conceal material exploitation. The wage contract *appears* free and equal between legal equals, while class power shapes production and appropriation. Bourgeois equality therefore abstracts from class structure.

Why equal right can be a right of inequality. FACT: Equal right is measured by a common standard, but persons differ in need, burden, family condition and starting position. Applying the identical standard to them guarantees an unequal result - which is why the formal ideal, taken alone, ratifies rather than removes class domination.

The equity principle. FACT: The canonical formula from the *Critique of the Gotha Programme* is: "From each according to his ability, to each according to his need." **FACT:** Distribution by need is the distributive rule of the higher stage; unequal needs justify differentiated shares.

The illustration. ANALYSIS: Equal wages for equal hours may still be inequitable where one worker supports dependants and another does not - with the immediate qualification that Marx's deeper claim concerns the wage relation itself, which he holds to be structurally exploitative, not merely the scale of pay.

Objection and reply. CAUTION: Need-based distribution is vague and may weaken incentive. **ANALYSIS:** The reply is that the principle is indexed to a higher stage of social cooperation in which alienated labour and scarcity are transformed; it is not offered as a market-time salary rule, so the incentive objection misses its intended domain.

Verdict. ANALYSIS: Equity is the more demanding ideal because it evaluates shares against actual condition rather than against a single measure. **ANALYSIS:** The two-stage structure is nevertheless a normative projection, not a demonstrated historical law, and an accurate answer says so.

Why this earns marks

Answer-writing focus: the demanded concept is the contrast. Marx supplies the frame; Marxism as an ideology belongs to another owner and must not colonise the script.

Exam-length execution - 15 marks, about 250 to 330 words: thesis two lines; critique three; the right-of-inequality argument three; formula two; illustration three; objection three; verdict two.

- **Structure:** contrast stated -> critique of formal equality -> why equal right can be a right of inequality -> the formula -> illustration -> objection and reply -> qualified verdict.
- **Doctrine:** formal equality; equity as need-sensitivity; the two-stage distributive structure.
- **Evidence:** the Gotha formula; the dependants illustration; the appearance of freedom in the wage contract.
- **Distinction:** same measure for all against treatment answering to actual condition.
- **Criticism:** vagueness and incentive, answered by the stage-indexing and then qualified as a projection.

Solved PYQ 10 · 2023 · Q1(a) · 10 marks

Question: What is meant by justice as fairness? Explain Rawls' theory of justice.

Demand decoding

Element	Requirement
Directive	Two-part stem: define the phrase, then expound the theory - both parts must appear
Core issue	Why fairness is built into the <i>choice situation</i> rather than asserted about outcomes
Scope boundary	Ten marks: device, two principles, the priority order, one qualification
Ideal thesis	Fairness is procedural at the point of selection, which is what makes the resulting principles binding
Non-negotiables	Original position; veil of ignorance; the ordering; device of representation

Independent model answer

Definition. FACT: "Justice as fairness" names Rawls's claim that principles of justice are those that would be chosen under conditions which are themselves fair. Fairness is built into the **selection procedure**, not asserted about an outcome.

The device. FACT: Parties choose principles for the **basic structure** of society in an **original position** behind a **veil of ignorance**, ignorant of their class, gender, race, natural talents, religion and conception of the good. FACT: Because no one can identify her own position, no one can tailor principles to personal fortune. FACT: This is a **device of representation**, not a historical contract.

The two principles. FACT: First, each person has an equal claim to a fully adequate scheme of **equal basic liberties**, compatible with the same scheme for all. FACT: Second, inequalities must attach to offices open under **fair equality of opportunity**, and must work to the greatest benefit of the **least advantaged** - the difference principle.

The priority order. FACT: The first principle is **lexically prior**: basic liberties may not be reduced for greater social or economic advantage. Within the second, fair equality of opportunity precedes the difference principle.

Justification and qualification. FACT: Principles are tested in **reflective equilibrium**, by mutual adjustment between principles and considered judgements. ANALYSIS: Rawls does not abolish inequality; he civilises it. CAUTION: The objection that the chooser is unencumbered is met by noting that the abstraction is methodological.

Why this earns marks

Answer-writing focus: two-part stems are lost by answering only the second half. Define the phrase first, in one clean sentence.

Exam-length execution - 10 marks, about 150 to 220 words: definition two lines; device three; principles three; order two; justification and qualification three.

- **Structure:** definition -> device -> two principles -> priority order -> justification and qualification.
- **Doctrine:** justice as fairness; basic structure; reflective equilibrium.
- **Evidence:** the veil's information restriction; the lexical priority rule.
- **Distinction:** device of representation against historical contract.
- **Criticism:** the unencumbered-self objection, met by the methodological reading of abstraction.

Solved PYQ 11 · 2024 · Q1(a) · 10 marks

Question: Briefly discuss Plato's concept of justice.

Demand decoding

Element	Requirement
Directive	" Briefly discuss" - compression is part of the demand; one tension is still required
Core issue	Justice as right-order in soul and city, and the objection that it freezes hierarchy
Scope boundary	Ten marks: the correspondence, the definition, one objection with reply, one verdict
Ideal thesis	Justice is functional harmony, valuable as a norm of competence and vulnerable as a social order
Non-negotiables	The three-class and three-part correspondence; "each doing one's own work"; no modern distributive vocabulary

Independent model answer

Thesis. FACT: For Plato, justice is a principle of **order and harmony** in both soul and city: each part performs its own proper function without usurping another's role.

The correspondence. FACT: In the city, rulers rule, auxiliaries defend and producers provide. FACT: In the soul, reason governs, spirit supports and appetite obeys. Justice is the condition in which this ordering holds; injustice is the condition in which appetite rules reason, or a class intrudes into a function for which it is not suited.

What kind of concept this is. FACT: Justice here is not merely external distribution but **inner and civic right-order**. It presupposes natural functional differentiation in soul and polis, and treats justice as the virtue coordinating plurality into a harmonious whole rather than as a rule for allocating shares.

Objection. ANALYSIS: The standard criticism is that this subordinates individuality to a fixed hierarchy: justice comes to consist partly in not aspiring beyond one's class.

Reply. ANALYSIS: Defenders answer that the aim is not arbitrary privilege but a norm of **competence** and organic harmony - the claim is that functions should be discharged by those fitted for them.

Verdict. ANALYSIS: The idea survives the institution. "Competence should govern function" remains defensible; the further claim that classes are naturally fixed does not, and a modern reader may accept the first while rejecting the second.

Why this earns marks

Answer-writing focus: "briefly" does not mean "without a tension". One objection and one reply are still required, compressed to two lines each.

Exam-length execution - 10 marks, about 150 to 220 words: thesis one line; correspondence three; conceptual character three; objection one; reply one; verdict two.

- **Structure:** definition -> correspondence -> what kind of concept -> objection -> reply -> verdict separating idea from institution.
- **Doctrine:** justice as each doing one's own work; functional differentiation.
- **Evidence:** rulers-auxiliaries-producers; reason-spirit-appetite.
- **Distinction:** right-order against distribution of shares.
- **Criticism:** the hierarchy objection, answered by the competence reading and then bounded.

Solved PYQ 12 · 2024 · Q2(b) · 15 marks

Question: Critically evaluate the concepts of liberty and equality as political ideals.

Demand decoding

Element	Requirement
Directive	" Critically evaluate " both concepts - each needs a strength, an objection, a reply and a residual problem
Core issue	The internal indeterminacy of each ideal, and the relation between them
Scope boundary	Fifteen marks: two evaluations plus the relation; justice enters as the ordering criterion, briefly
Ideal thesis	Both are indispensable and internally under-specified; their evaluation converges on the need for an ordering criterion
Non-negotiables	Berlin's pair; the metric question; the threshold; one residual problem each

Independent model answer

Thesis. ANALYSIS: Liberty and equality are indispensable political ideals whose weakness is identical in form: each is a **family of demands** rather than a single demand, and neither can rank its own members.

Liberty evaluated. FACT: Its strength is the protection of a sphere of action and thought, without which a person acts only by another's permission. FACT: Berlin's distinction shows the family's internal division: freedom **from** interference against freedom **to** be one's own master. ANALYSIS: The objection to the negative pole is that it ignores poverty, illiteracy and dependency; the objection to the positive pole is that the real-self doctrine licenses coercion presented as liberation. ANALYSIS: The reply is that enabling conditions such as education expand freedom without dictating a life-plan. CAUTION: The residual problem is that no agreed test separates enablement from prescription.

Equality evaluated. FACT: Its strength is the demand that persons be treated with equal concern, so arbitrary hierarchy must justify itself. FACT: But "equality of what?" divides the family - status, rights, opportunity, welfare, resources or capability. ANALYSIS: The objection that equality means levelling is met by the threshold reply: floors of decent capability and ceilings on avoidable deprivation, not identical holdings. CAUTION: The residual problem is that the threshold remains under-specified.

The relation. ANALYSIS: At the level of basic liberties and equal civic standing the two reinforce one another - free speech for all is at once a liberty and an equality. They compete beyond that threshold, where market advantage expands or equalisation reaches into choice.

Verdict. ANALYSIS: Both ideals survive criticism and neither survives alone. The evaluation of each converges on the same conclusion: an **ordering criterion** is required, and supplying it is the work of justice.

Why this earns marks

Answer-writing focus: "critically evaluate" applied to two concepts means two complete evaluation cycles, not one long comparison.

Exam-length execution - 15 marks, about 250 to 330 words: thesis two lines; liberty six; equality six; relation three; verdict two.

- **Structure:** shared diagnosis -> liberty evaluated -> equality evaluated -> relation -> converging verdict.
- **Doctrine:** negative and positive liberty; the metric question; the threshold.
- **Evidence:** Berlin's pair; the capability floor; free speech as liberty and equality.
- **Distinction:** enablement against prescription; equal worth against identical holdings.
- **Criticism:** two residual problems stated explicitly rather than resolved by assertion.

Solved PYQ 13 · 2025 · Q1(e) · 10 marks

Question: Discuss the salient features of equality according to J.S. Mill.

Demand decoding

Element	Requirement
Directive	"Discuss the salient features " - an enumerated account with one live tension
Core issue	The six features, and the qualification that makes Mill a <i>qualified</i> egalitarian
Scope boundary	Ten marks: the features compressed, the gender argument developed, one objection
Ideal thesis	Equal status without uniformity: hierarchy is removed in order to release individuality
Non-negotiables	1859 and 1869 correctly assigned; the manufactured-nature argument; the limit on coercive equalisation

Independent model answer

Thesis. FACT: Mill is a liberal egalitarian **in a qualified sense**: he affirms equal moral standing, equal civic and legal status and the equality of women, while resisting levelling that would suppress individuality.

The salient features. FACT: (i) **Equal worth in moral accounting** - each person counts, and none is discounted for birth or station. FACT: (ii) **Equality before the law and equal citizenship** - privilege by status is indefensible. FACT: (iii) **Women's equality** - in *The Subjection of Women* (1869), the legal and social subordination of women is a relic of domination, not a dictate of nature. FACT: (iv) **Equality compatible with individuality** - the goal is free self-development, not sameness. FACT: (v) **Hostility to custom-made hierarchy** - inherited subordination blocks both utility and justice. ANALYSIS: (vi) **Qualified economic concern** - reform of property relations and labour conditions, but not extinction of all differences by coercive equalisation.

The argument that unifies them. FACT: A society that excludes half its members, or attaches rights to status, wastes human capacities and violates utility properly understood.

The gender argument, precisely. FACT: The appeal to women's "nature" is worthless as evidence, because that nature has been socially manufactured through subjection.

Objection and verdict. ANALYSIS: Mill remains too individualistic to reach structural economic inequality - a fair charge. ANALYSIS: Within liberalism, however, he carries equality beyond formal rights into social relations, and the verdict is **equal status without uniformity**.

Why this earns marks

Answer-writing focus: a features question still needs a tension. Feature six and the objection supply it without disturbing the enumeration.

Exam-length execution - 10 marks, about 150 to 220 words: thesis one line; six features five; unifying argument two; gender argument one; objection and verdict three.

- **Structure:** qualified thesis -> six features -> unifying argument -> the gender argument -> objection and verdict.
- **Doctrine:** equal status; individuality; custom-made hierarchy.
- **Evidence:** *On Liberty* (1859) and *The Subjection of Women* (1869); the wasted-capacities argument.
- **Distinction:** equality of status and chance against uniformity of life plan.
- **Criticism:** the structural-economics charge, conceded and bounded.

Solved PYQ 14 · 2025 · Q4(a) · 20 marks

Question: How are both equality and liberty inadequate as social and political ideals without justice? Discuss.

Demand decoding

Element	Requirement
Directive	" How are they inadequate... discuss" - the mechanism of inadequacy is the answer
Core issue	That each ideal is indeterminate about its own variants, so an external ordering criterion is required
Scope boundary	Twenty marks: both inadequacies, the criteria justice supplies, a composite evaluation, one dated Indian illustration
Ideal thesis	The inadequacy is structural, not practical: a family of demands cannot rank its own members
Non-negotiables	The two under-specification arguments; the list of justice criteria; a graded verdict conceding the objection

Independent model answer

Thesis. ANALYSIS: The inadequacy is **structural, not practical**. Liberty and equality are each a *family* of demands, and no member of a family is privileged from inside it - so the ordering criterion must range over both, and that criterion is what justice names.

Liberty is under-specified. FACT: "Liberty" does not say **whose** liberty, **to do what**, **against whom**, or **with what effect on others**. Berlin's two concepts divide the family at once, and the republican account adds a third specification, freedom as a secured standing. Nothing internal to liberty ranks these.

Equality is under-specified. FACT: "Equality" does not say equality of status, rights, opportunity, welfare, resources, capabilities or outcome. Sen's capability metric, Dworkin's equality of resources and the threshold view are rivals within the family, and again nothing internal to equality adjudicates between them.

What justice supplies. FACT: Justice furnishes the competing adjudicatory criteria - **desert, fairness, entitlement, need, capability, rectification and public reason** - and the sphere-sensitivity that assigns each criterion to its proper good: equal share for political rights, competence for offices, need for subsistence, compensation for transmitted disadvantage.

Composite evaluation. ANALYSIS: A liberty-first position protects self-ownership and resists paternalism, but background injustice hollows out real freedom, so it is insightful and incomplete. An equality-first levelling position exposes structural oppression, but may flatten choice, desert and pluralism, so it is a necessary warning rather than a sufficient ideal. Justice as the ordering ideal balances both by principle.

The Indian anchor. FACT: Articles 14 to 16 of the Constitution of India establish equality before the law, prohibition of discrimination and equality of opportunity in public employment, with enabling clauses in Articles 15 and 16 permitting special provision for specified classes. **ANALYSIS:** An enabling clause is a **permission**, not a philosophical justification: the argument for using it must still be made on one of the criteria above. **FACT:** Ambedkar's warning completes the point - political democracy is unstable without social democracy resting on liberty, equality and fraternity.

Objection and verdict. CAUTION: It may be objected that theories of justice themselves disagree, so calling justice the ordering ideal merely relocates the problem. **ANALYSIS:** Relocation is progress: it converts a clash of ideals into an argument about criteria, which can be conducted with reasons and public scrutiny. **ANALYSIS:** The verdict is therefore that liberty and equality are indispensable and jointly insufficient, and that any defensible arrangement must make its ordering criterion explicit.

Why this earns marks

Answer-writing focus: "how are they inadequate" asks for a mechanism. Two under-specification arguments, then the criteria justice supplies - in that order.

Exam-length execution - 20 marks, about 330 to 400 words: thesis two lines; liberty three; equality three; justice's criteria three; composite evaluation four; Indian anchor four; objection and verdict three.

- **Structure:** structural thesis -> liberty under-specified -> equality under-specified -> criteria supplied -> composite evaluation -> dated Indian illustration -> objection and graded verdict.
- **Doctrine:** indeterminacy of each ideal; sphere-sensitivity; social democracy.
- **Evidence:** Berlin's pair and the third family; Sen and Dworkin as rival metrics; Articles 14-16; Ambedkar.
- **Distinction:** constitutional permission against philosophical justification.
- **Criticism:** the relocation objection, answered without pretending the clash of criteria is settled.

Six original questions in the style of the paper - two each at 10, 15 and 20 marks - covering the parts of the clause that the 2018-2025 corpus has not yet examined directly: the three forms of justice, the criteria problem, republican non-domination, the compensatory principle, Berlin against Green, and the Mill-Marx comparison on the limits of formal equality. Every model answer is independent learner practice and is never an official key.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original 1 · 10 marks

Question: Distinguish formal, procedural and substantive justice, and explain why none of them is sufficient by itself.

Independent model answer

Thesis. FACT: The three name three different objects of evaluation - the **application** of a rule, the **process** that produces a decision, and the **standard** itself - and each fails alone because it is silent about what the other two evaluate.

Formal justice. FACT: It asks whether announced principles are applied impartially and consistently to like cases, and it demands generality and the absence of personal favour. ANALYSIS: Its failure is immediate: an unjust principle can be applied with perfect consistency, so consistency certifies nothing about the principle.

Procedural justice. FACT: It asks whether the decision was produced by fair rules, hearing, publicity, impartiality and non-cheating, and it demands a process that excludes arbitrary power. ANALYSIS: Its failure is subtler: a fair-looking procedure can operate on a grossly unequal background, converting inherited disadvantage into formally impeccable results.

Substantive justice. FACT: It asks whether the governing principle, the distribution and the social relations are themselves just, and it demands rights, fair life-chances and protection against deprivation and status subordination. ANALYSIS: Its failure is the mirror image: an outcome imposed without publicity, hearing and consistent limits becomes a second arbitrariness.

The conclusion. ANALYSIS: Justice therefore requires **fair procedure plus a defensible substantive criterion**, each disciplining the other. FACT: Equal legal punishment imposed for unequal wrongdoing illustrates the point exactly: it satisfies consistency and violates corrective fairness.

Why this earns marks

Answer-writing focus: three definitions earn little; three definitions each with its own failure earn the question.

- **Structure:** thesis -> three forms, each with its failure -> conclusion -> illustration.
- **Doctrine:** application, process and standard as distinct objects of evaluation.
- **Evidence:** the unequal-punishment case; the unequal-background case.
- **Distinction:** consistency against fairness of process against justice of the standard.
- **Criticism:** the mirror-image failure of substantive justice, which prevents a one-sided answer.

Original 2 · 10 marks

Question: "Merit is a moral entitlement." Examine this claim.

Independent model answer

Thesis. ANALYSIS: The claim conflates two criteria operating in opposite temporal directions, and it is false as stated.

The distinction. FACT: **Desert** is backward-looking and moralised: it tracks what a person has done, sacrificed or suffered, and governs honours, recognition, praise and blame. FACT: **Merit** is forward-looking and functional: it tracks who will discharge a role well, and governs offices and appointments. ANALYSIS: A candidate may have great desert

and little merit, or great merit and no desert.

Why the conflation matters. ANALYSIS: Treating merit as a moral entitlement converts a claim about *fitness for a task* into a claim about *what is owed*.

The strongest objection to merit itself. FACT: Measured merit encodes prior access to nutrition, language, coaching and networks, so a selection score is partly a record of others' investment. ANALYSIS: Rawls presses further: natural talent, family advantage and even the capacity for effort are **morally arbitrary**, since nobody deserves the starting position from which effort is exerted.

The reply. FACT: Rawls does not conclude that desert is meaningless. Legitimate expectations generated **within** just institutions remain valid, and honour and gratitude remain intelligible responses to effort. ANALYSIS: What collapses is desert's claim to be *foundational*.

Verdict. ANALYSIS: Merit justifies selection for a role, not the rewards attached to it. The claim survives only in the weakened form that within fair institutions, expectations built on merit deserve protection.

Why this earns marks

Answer-writing focus: "examine" invites you to find the equivocation. Name it in the second line.

- **Structure:** thesis -> the temporal distinction -> why the conflation matters -> objection -> reply -> weakened verdict.
- **Doctrine:** desert against merit; moral arbitrariness; legitimate expectations.
- **Evidence:** the encoded-advantage argument; Rawls's arbitrariness premise.
- **Distinction:** fitness for a task against what a person is owed.
- **Criticism:** the reply that rescues desert inside institutions while denying it foundational status.

Original 3 · 15 marks

Question: "An un-interfered-with dependant is nevertheless unfree." Critically discuss this claim and its consequences for the relation between law and liberty.

Independent model answer

Thesis. ANALYSIS: The claim is correct and it reverses the standard account of law: if freedom is a **secured standing** rather than an event-count, then non-arbitrary law constitutes freedom instead of subtracting from it.

The argument. ANALYSIS: The negative conception measures freedom by *actual* interference. Consider a person under a kind master, an indulgent husband or a benevolent ruler who happens not to interfere. She is not interfered with, so on the negative count she is free. Yet she must flatter, anticipate, self-censor and live at another's discretion, because the other retains the capacity to interfere **arbitrarily and with impunity**. That dependence is a real unfreedom an interference-count cannot register. Freedom is therefore best specified as **non-domination (Pettit, 1997; historical recovery, Skinner, 1998)**.

The controlling distinction. ANALYSIS: Interference is an **act**; domination is a **standing capacity** to interfere arbitrarily. Law that tracks the avowable interests of those it governs and remains publicly contestable can **interfere without dominating**; a master's forbearance can **dominate without interfering**.

The consequence for law. ANALYSIS: On the negative view, every law is *prima facie* a subtraction from liberty. On the republican view, law of the right kind is **freedom-constituting**, because it strips private persons of arbitrary power. FACT: The Bonded Labour System (Abolition) Act, **1976** illustrates the *form* of such a remedy by attacking a relation of personal dependence. ANALYSIS: Enactment is not implementation.

First objection and reply. CAUTION: Everything non-domination names could be redescribed as a high **probability** of future interference. ANALYSIS: But probability is contingent and can be low precisely where dependence is total; and the republican account additionally explains why the dependant's own conduct changes.

Second objection and reply. CAUTION: Who decides which interferences are arbitrary? ANALYSIS: Republicans answer procedurally: interference is non-arbitrary when it tracks the avowable interests of the governed and remains open to contestation. CAUTION: This reduces but does not remove the indeterminacy.

Verdict. ANALYSIS: The claim stands, the reversal of the law-liberty relation follows, and the residual indeterminacy of "arbitrary" is a genuine cost that should be conceded rather than concealed.

Why this earns marks

Answer-writing focus: the consequence for law is the second half of the stem and is where most scripts stop short.

- **Structure:** thesis -> six-step argument -> act against standing -> consequence for law with a dated illustration -> two objection-reply pairs -> qualified verdict.
- **Doctrine:** non-domination; freedom-constituting law.
- **Evidence:** the benevolent-master case; Pettit (1997) and Skinner (1998); the 1976 Act as a form of remedy.
- **Distinction:** interference as act against domination as capacity.
- **Criticism:** redundancy and indeterminacy, both answered and the second only partly.

Original 4 · 15 marks

Question: Compare Berlin and Green on the meaning of liberty, and assess whether their positions can be reconciled.

Independent model answer

Thesis. ANALYSIS: Berlin and Green fear different failures, and their positions are reconcilable at the level of institutional design while remaining opposed at the level of authorisation.

The axis of dispute. ANALYSIS: The question is not how much freedom each wants but **what destroys it**. Berlin's anxiety is coercion exercised in the name of a higher freedom; Green's is formal liberty accompanied by no power to use it.

Berlin at full strength. FACT: Negative liberty asks within what area a person is left alone; positive liberty asks who governs her and by what self she is directed. FACT: Berlin does not deny the appeal of self-mastery; he identifies the step that makes it dangerous - the split between a "real self" and an "empirical self", after which a ruler may claim to speak for the first and present coercion as liberation. FACT: His background commitment is **value pluralism**: human goods are many and not always harmonisable.

Green at full strength. FACT: Liberty is the **positive power** to do or enjoy something worth doing or enjoying, tied to self-realisation. FACT: Mere non-interference is hollow where persons are crippled by ignorance, addiction, destitution or social subordination, so coercion is not freedom's only enemy: disabling conditions also matter. ANALYSIS: Education is the standing example, because it equips agency rather than merely leaving persons alone.

The reconciliation. ANALYSIS: The two are compatible if positive freedom is read as **enabling** rather than **perfectionist**: institutions may enlarge a person's effective capacity while leaving the choice of ends with her. On that reading Green supplies what Berlin's negative pole omits, and Berlin supplies the constraint Green's programme needs.

Where reconciliation fails. CAUTION: It fails at authorisation. If any agency is empowered to identify what is "worth doing", the real-self structure reappears, and no agreed test separates enablement from prescription in contested cases.

Verdict. ANALYSIS: Reconcilable in policy and irreconcilable in principle: keep the enabling programme and refuse the authorisation, accepting that the boundary must be policed by contestability and reversibility rather than by definition.

Why this earns marks

Answer-writing focus: "compare and assess" needs shared axes, not two portraits. Fix the axis - what destroys freedom - in the second line.

- **Structure:** thesis -> axis -> Berlin at strength -> Green at strength -> reconciliation -> its failure point -> verdict.
- **Doctrine:** negative and positive liberty; enabling against perfectionist freedom.
- **Evidence:** the real-self split; value pluralism; the education case.
- **Distinction:** enlarging capacity against prescribing ends.
- **Criticism:** the authorisation problem, which blocks a complete reconciliation.

Original 5 · 20 marks

Question: Examine the claim that compensatory measures for historically disadvantaged groups are required by equality rather than being exceptions to it.

Independent model answer

Thesis. ANALYSIS: The claim is defensible once equality is read as equality of **prospects** rather than of rules, but it carries two burdens its defenders often ignore: a factual premise about transmission, and a statable terminus.

The starting point. FACT: Aristotle's corrective justice is **transactional**: it restores an arithmetic balance between two parties after a wrongful gain or loss, without regard to their merit. It presupposes an identifiable wrongdoer, an identifiable victim and a discrete transaction.

The extension problem. ANALYSIS: Structural disadvantage satisfies none of the three cleanly. The harm is cumulative, the beneficiaries diffuse, and the wrong embedded in institutions rather than in a single act. The compensatory principle is therefore an **extension** of corrective justice, not an application of it.

The reconstructed argument. ANALYSIS: (i) A group has suffered systematic, historically identifiable and legally sanctioned exclusion from land, education, office and honour. (ii) That exclusion continues to depress present **capability**, transmitting through wealth, networks, schooling, health and social confidence. (iii) Formal equality applied from today onward therefore **ratifies** an unequal starting line rather than correcting it. (iv) Corrective justice, generalised from transactions to structures, requires positive measures offsetting the transmitted disadvantage. (v) Compensatory measures are consequently demanded **by** equality, not as an exception to it.

The Indian frame, accurately classified. FACT: Articles 14 to 16 establish equality before the law, prohibition of discrimination and equality of opportunity in public employment, and Articles 15 and 16 contain **enabling clauses** permitting special provision for specified disadvantaged classes. **ANALYSIS:** An enabling clause is a **permission**, not a justification. **ANALYSIS:** The affirmative-action policy debate belongs to another owner and is deliberately not developed here.

First objection and reply. CAUTION: Compensation imposes a cost on present individuals who committed no wrong, and treats persons as group-members. **ANALYSIS:** The reply is that they are not alleged to be guilty but to be **unjustly advantaged** by a continuing distribution; and where disadvantage was inflicted group-wise, an individualised remedy cannot reach it.

Second objection and reply. CAUTION: Compensation has no natural terminus. **ANALYSIS:** The principle supplies its own: it lapses when the transmitted disadvantage it targets no longer operates. Refusal to measure that condition is a policy failure, not a defect of the principle.

Residual difficulty. CAUTION: Over-inclusion of the already-advantaged within a beneficiary group is real, and the transmission premise is factual and must be argued.

Verdict. ANALYSIS: Required by equality, on the prospects reading, and only while the transmission it targets can be shown to operate.

Why this earns marks

Answer-writing focus: "examine" rewards finding the hidden premises. Name the factual premise and the terminus problem before the objections arrive.

- **Structure:** thesis -> transactional starting point -> extension problem -> five-step reconstruction -> Indian frame with classification -> two objection-reply pairs -> residual difficulty -> bounded verdict.
- **Doctrine:** corrective justice generalised; equality of prospects.
- **Evidence:** transmission through wealth, networks, schooling, health and confidence; Articles 14-16 and the enabling clauses.
- **Distinction:** constitutional permission against philosophical justification; guilt against unjust advantage.
- **Criticism:** over-inclusion and the unargued transmission premise, both conceded.

Original 6 · 20 marks

Question: "Formal equality is either empty or ideological." Assess this claim with reference to Mill and Marx.

Independent model answer

Thesis. ANALYSIS: The claim is half right. Formal equality is neither empty nor merely ideological, but it is **insufficient**, and Mill and Marx diagnose its insufficiency at two different depths.

What formal equality actually secures. FACT: Equality before the law and equal protection of the laws establish the rule against legal privilege by status, and this is a genuine achievement rather than a decorative one: without it, substantive measures lose the standard by which they can themselves be criticised. **ANALYSIS:** Its weakness is that it can be perfectly satisfied in a society that remains radically unequal - the objection that it can become **paper equality**.

Mill's diagnosis - the social depth. FACT: Mill affirms equal moral standing and equality before the law, and then carries equality beyond formal rights into social relations. **FACT:** His central case is *The Subjection of Women (1869)*, where the legal and social subordination of women is treated as a relic of domination; the appeal to women's "nature" is disqualified as evidence because that nature has been socially manufactured through subjection. **ANALYSIS:** But his remedy stops at reform of property and labour conditions and refuses coercive equalisation, because the aim of removing hierarchy is to release **individuality**, not to impose uniformity.

Marx's diagnosis - the material depth. FACT: Marx holds that formally equal exchange can conceal material exploitation: the wage contract appears free and equal between legal equals while class power shapes production and appropriation. **FACT:** Hence an **equal right can be a right of inequality**, because a common standard applied to persons differing in need, burden and starting position guarantees unequal effect. **FACT:** The corrective is **equity** - differentiated treatment answering to actual condition - expressed in the *Critique of the Gotha Programme* formula, "from each according to his ability, to each according to his need". **ANALYSIS:** The formula is indexed to a higher stage of social cooperation and is not a market-time salary rule.

Adjudication. ANALYSIS: Mill shows that formal equality is socially incomplete; Marx shows that it may be structurally complicit. The second is the stronger charge and the more speculative, since the two-stage structure is a normative projection rather than a demonstrated law. **ANALYSIS:** Neither thinker establishes that formal equality is **empty**: both rely on it when identifying the subordination and the exploitation they condemn.

Verdict. ANALYSIS: Formal equality is a necessary and insufficient condition of equality proper - indispensable as a constraint, misleading as a completed ideal, and ideological only when presented as the whole of what equality demands.

Why this earns marks

Answer-writing focus: the quoted claim contains two accusations. Separate "empty" from "ideological" and rule on each.

- **Structure:** split the claim -> what formal equality secures -> Mill's diagnosis -> Marx's diagnosis -> adjudication -> verdict.
- **Doctrine:** formal equality; social subordination; equity as need-sensitivity.
- **Evidence:** *The Subjection of Women (1869)*; the manufactured-nature argument; the Gotha formula; the appearance of freedom in the wage contract.
- **Distinction:** socially incomplete against structurally complicit.
- **Criticism:** the speculative status of the two-stage projection, and the fact that both critics themselves rely on formal equality.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Prerequisite check. Do not open this block until Sessions 1-20 can be reproduced without notes. Every one of the fourteen owned previous-year parts is answerable from the Basic block alone. What follows supplies **one** added debate, **one** sharper objection-reply, or **one** controlled comparison for a 15- or 20-marker - and nothing here repairs a gap in the core.

A1. "Equality of what?" as a full metric dispute ANALYSIS:

The Basic block establishes the question and three answers. The optional depth is the fourth position and the shape of the disagreement as a whole.

Position	Metric proposed	What it is designed to capture
Resource egalitarianism	Equality of resources	Responsibility-sensitivity: neutralise brute luck, respect option luck
Capability view	Capabilities	Conversion differences between persons with identical holdings
Welfarist views	Equal satisfaction or welfare	The subjective standing of a life, not its inputs
Relational equality	Equal social standing	The absence of hierarchy, humiliation and second-class status

ANALYSIS: **Why it stays optional:** the core already covers equality, equity, liberty and justice without requiring a complete metric-of-equality dispute, and no part in the 2018-2025 corpus asks for the fourth position by name.

ANALYSIS: **Promotion trigger:** if a future part asks "equality of what?" directly, this module moves into Core.

A2. Luck egalitarianism against relational equality CAUTION:

ANALYSIS: **The disagreement.** A luck-egalitarian view corrects for brute luck and holds a person responsible for the foreseeable results of her own choices. A relational view gives priority to ending hierarchy, humiliation and domination, and objects that the luck view licenses humiliating tests of who deserves help. ANALYSIS: **Why it is useful.** It supplies a second axis for evaluating any redistributive proposal: does it correct unchosen disadvantage, and does it do so without stigmatising the recipient? WRONG: **Why it must stay optional.** It is not needed to answer the held corpus safely, and it tends to displace Rawls, Nozick, Sen, Mill, Rousseau and Marx from a script that has limited space.

A3. Is non-domination a third concept, or a demanding specification of the negative one? CAUTION:

ANALYSIS: The Basic block treats non-domination as a **third family**, which is the safest exam position. The live residue is whether it is genuinely a third concept or a strengthened version of the negative concept, since both are concerned with what other agents may do to you rather than with the character of your own will. ANALYSIS: The strongest case for "third concept" is that its freedom-destroying variable is a *capacity* rather than an *act*, and that it reverses the negative view's account of law. CAUTION: The strongest case for "specification" is that a sufficiently modalised negative account - counting what others *could* do - appears to capture the same cases. ANALYSIS: For the exam, state the third-family reading and flag the dispute in one line.

A4. The sharper objection and reply on the capability metric ANALYSIS:

- **Objection:** capability language can become under-specified, because it lacks one determinate distributive metric and therefore cannot rank two policies precisely.
- **Reply:** its strength is exactly comparative public reasoning - it shows which freedoms people are actually able to convert into lives they can lead, instead of treating formal holdings as self-explanatory. ANALYSIS: Precision purchased by a false metric is worse than openness disciplined by public argument.

A5. Safe Indian deployment in a 15- or 20-marker ANALYSIS:

Use the metric dispute to distinguish four things that ordinary political language runs together: **equal rules on paper**, **equal access to schooling and health**, **equal capability to convert access into a life**, and **equal civic standing free of humiliation**. Contexts where the four visibly diverge include reservation, welfare delivery and urban exclusion. WRONG: Keep the example concept-led: the point is the difference between equal rule, equal resources, equal capability and equal status - not policy enumeration, and not a claim about any government's record.

A6. What the promotion record shows ANALYSIS:

FACT: Two items formerly held in this optional layer were promoted into Core on **15 August 2026** and are now examinable Basic content: the **capability metric** and **republican non-domination**. They appear in Sessions 7 and 13 respectively, and they are no longer optional extras. ANALYSIS: Three items remain optional and would be promoted only if a part asked them directly: "equality of what?" as a full metric dispute, luck egalitarianism, and relational equality.

A7. Source trail for this block

Rawls, *A Theory of Justice*; Nozick, *Anarchy, State, and Utopia*; Sen, *The Idea of Justice*; Dworkin, *Sovereign Virtue*; G. A. Cohen, *Rescuing Justice and Equality*; Elizabeth Anderson, "What Is the Point of Equality?". WRONG: Cited by author and title only, with no page, chapter, edition or quotation.

CONSOLIDATED REGISTER NOTES

Compressed recall for revision. These notes assume the teaching has been read once; they are not a second exposition. The Basic/Optional-Advanced boundary is preserved throughout, and part **N** is the ASCII master flow diagram.

A. The clause, what it owns, and what it must route away

- **Printed syllabus, verbatim:** *Social and Political Ideals : Equality, Justice, Liberty*. Paper II, Section A, item 1. Three ideals, and only three.
- **Owned here:** equality (four forms; opportunity, outcome, equity; Rousseau, Mill, Marx; the metric question); liberty (Berlin, Mill, Hobbes, Locke, Rousseau, Green, technological society, non-domination); justice (formal, procedural, substantive; four dimensions; Plato, Aristotle, criteria, compensation, utilitarian justice, Rawls, Nozick, Sen, Ambedkar); the debates, criticisms and traps.
- **Routed away:** institutional forms of democracy -> Forms of Government · rights-duties architecture and political obligation -> Individual and State · sovereign authority -> Sovereignty · development and welfare programmes -> Development and Social Progress · recognition theory (Taylor, Fraser, Honneth) -> Humanism, Secularism and Multiculturalism · reservation policy and the Indian caste record -> Caste Discrimination: Gandhi and Ambedkar.
- **Corpus share:** **14 of 112** parts, 2018-2025 - 2018: 1 · 2019: 2 · 2020: 1 · 2021: 3 · 2022: 2 · 2023: 1 · 2024: 2 · 2025: 2.

B. Order of the positions - anachronism control

- Plato and Aristotle (ancient) -> Hobbes, Locke, Rousseau (early modern) -> Mill **1859** *On Liberty*, Mill **1869** *The Subjection of Women*, Marx *Critique of the Gotha Programme*, Green (nineteenth century) -> Berlin **1958**, Rawls **1971**, Nozick **1974**, Sen *The Idea of Justice*, Pettit **1997**, Skinner **1998**; Ambedkar on social democracy.
- Three anachronism traps: no "Platonic difference principle"; Rousseau's natural inequality is about bodies, not standing; non-domination is post-Berlin and belongs to Pettit as theory and Skinner as history.

C. Equality - foundation and the four forms

- **Foundation:** equal moral worth and equal concern; arbitrary hierarchy must justify itself. Worth ≠ identity of talent, desire, capacity or outcome.
- **Formal/legal:** equality before the law; secures the rule against legal privilege; fails as *paper equality*.
- **Political:** equal citizenship, vote, eligibility; secures non-oligarchic standing; wealth may still distort influence.
- **Social:** absence of status hierarchy and stigma; secures equal civic respect; law alone insufficient.
- **Economic ANALYSIS:** reduction of unjust disparities; secures fair background conditions; incentive and coercion objections.

D. Opportunity, outcome, equity

- **Opportunity:** offices open on fair terms; objection - a starting line drawn across unequal ground; reply - move from *formal* to **fair** equality of opportunity.
- **Outcome:** no large or unjust final disparities; objection - levelling and paternalism; reply - ceilings on avoidable deprivation and floors of decent capability.
- **Equity (Marx):** differentiated treatment answering to need and actual condition, against equality as one common measure.
- One-line test: *open competition for an office is not fully fair where only one class can realistically prepare for it.*

E. Rousseau, Mill, Marx

- **Rousseau:** natural/physical inequality (age, strength, health, intelligence) against moral/political or artificial inequality (wealth, honour, power, dependence, social superiority), established by **convention**. Mechanisms of conversion: **property** and **social comparison**. Diagnostic, not pastoral. Does not claim all inequality is conventional. -> 2021 Q1(b).
- **Mill - six salient features:** equal worth in moral accounting; equality before law and citizenship; women's equality (1869); equality compatible with individuality; hostility to custom-made hierarchy; qualified economic concern. Gender argument: the appealed-to "nature" is manufactured by subjection. Verdict: equal status without uniformity. -> 2025 Q1(e).
- **Marx:** formal equality conceals exploitation; an **equal right can be a right of inequality**; equity = need-sensitivity; formula "from each according to his ability, to each according to his need" (*Gotha*), indexed to the higher stage. -> 2022 Q2(c).

F. Equality of what - the metric question

- **Sen:** capability - what persons are actually able to do and be; conversion varies with disability, age, gender, climate, health, social position; resources ≠ capabilities.
- **Cohen:** welfare, opportunity for advantage or access to advantage; institutional justice can be undermined by an anti-egalitarian **ethos**; incentives demanded by the talented may be moral bargaining power.
- **Dworkin:** equality of **resources**, not welfare; **brute luck** against **option luck**; auction and insurance devices.
- **Interim verdict:** equality is strongest as equal status, fair opportunity and protection against arbitrary domination, while remaining alert to need, capability and historical oppression.

G. Liberty - Berlin, Mill, and the two poles

- **Berlin:** negative - "within what area am I left alone?"; positive - "who governs me, by what self am I directed?". Danger: the **real self / empirical self** split lets coercion be redescribed as liberation. Background: value pluralism. He does not deny positive liberty's appeal.
- **Mill 1859:** the harm principle - coercion of a competent adult is legitimate only to prevent harm to others; self-regarding against other-regarding acts; **offence ≠ harm**. Best defence: a **burden-of-proof** rule, not a clean boundary.
- Liberty ≠ power. "No one is ever wholly unconstrained" is irrelevant: the theory concerns justified and unjustified constraints.

H. Liberty - four specifications by the enemy each fears

- **Hobbes:** enemy = disorder; free where the law is silent; risk - liberty as a residual gap.
- **Locke:** enemy = arbitrary power; freedom under known law; risk - property-centred liberty masking inequality.
- **Rousseau:** enemy = dependence on another's private will; obedience to a self-prescribed law through the general will; risk - majoritarian or authoritarian misreading of "forced to be free".
- **Green:** enemy = incapacity; liberty as the positive power to do something worth doing; risk - perfectionist paternalism; safe reading - **enabling**, with education as the example.

I. Liberty - threshold, technology, non-domination

- **Threshold:** complementary at basic liberties and equal civic standing (free speech for all is a liberty *and* an equality); rivalrous beyond it (unchecked contract and accumulation; aggressive equalisation). Rawls's **priority rules** institutionalise the ordering. -> 2019 Q4(b), 2022 Q1(d), 2024 Q2(b), 2018 Q2(a).
- **Technology:** coercion migrates from law that forbids to architecture that steers; algorithmic nudging preserves options and shapes choices; **convenience ≠ autonomy**; verdict: realisable under transparency, accountability and zones of non-domination. -> 2020 Q1(a).
- **Non-domination (Pettit 1997; Skinner 1998, history):** freedom as a **secured standing**; the kind master dominates without interfering; non-arbitrary contestable law interferes without dominating and is **freedom-constituting**. Objections: redundancy; indeterminacy of "arbitrary" - the second only partly answered. India, as *form* of remedy only: Bonded Labour System (Abolition) Act **1976**; Sexual Harassment of Women at Workplace Act **2013**; Code on Wages **2019** commenced by S.O. **5322(E)**, **21 November 2025**. Enactment ≠ implementation.

J. Justice - three forms, four dimensions

- **Formal:** consistent, impartial application; fails because an unjust principle can be applied consistently.
- **Procedural:** fair rules, hearing, publicity, impartiality; fails on a grossly unequal background.
- **Substantive:** justice of the standard, distribution and social relations; fails if imposed without due process.
- **Conclusion:** fair procedure **plus** a defensible substantive criterion.
- **Dimensions:** legal · political · socio-economic · recognition/status.
- **Legality ≠ legitimacy.** Source control: Gauba pp. 442-445; *Socio-Political Philosophy* pp. 40, 47-54; *Cambridge Dictionary of Philosophy* pp. 489-490.

K. Justice - Plato, Aristotle, criteria, compensation

- **Plato:** each part doing its own work; rulers-auxiliaries-producers, reason-spirit-appetite; inner and civic right-order. Objection - frozen hierarchy; reply - a norm of competence and organic harmony. -> 2024 Q1(a).
- **Aristotle:** distributive justice = **proportional equality**; corrective justice = **arithmetic equality**. Treat equals equally and unequals unequally *only where the basis is relevant*.
- **Criteria grid:** need · desert · merit · contribution/entitlement · equal share · compensation. Justice is criterion-plural and **sphere-sensitive**; injustice = a criterion escaping its sphere. **Desert** backward-looking and moralised; **merit** forward-looking and functional.
- **Compensatory principle:** corrective justice generalised from transactions to structures; transmitted disadvantage; demanded *by* equality; terminus = when transmission ceases; residual problem = over-inclusion. Articles 14-16 with enabling clauses in 15 and 16 are a **permission**, not a justification.

L. Justice - utilitarian, Rawls, Nozick, Sen, Ambedkar

- **Utilitarian:** maximise aggregate welfare; **aggregation objection** - individuals and minorities may be sacrificed; rule- and indirect-utilitarian replies leave rights **contingent**.
- **Rawls 1971:** original position; veil of ignorance; **device of representation**. First principle - equal basic liberties, **lexically prior**; second (a) fair equality of opportunity, prior to (b) the difference principle. **Reflective equilibrium**. One line: deontological liberal egalitarianism. -> 2023 Q1(a), 2019 Q1(a).
- **Nozick 1974:** acquisition, transfer, rectification; **historical** against **patterned**; Wilt Chamberlain; minimal state; criticism - unclear starting points and under-specified rectification. -> 2021 Q1(a).
- **Sen:** **nīti** (correctness of institutions and rules) against **nyāya** (justice as realised); comparative against transcendental institutionalism; capability and public reasoning; objection - under-determination between rival improvements. -> 2021 Q2(a).
- **Ambedkar:** political democracy unstable without **social democracy** - liberty, equality, **fraternity**; constitutional form ≠ lived social democracy; one vote each can coexist with civic humiliation. -> 2018 Q2(a), 2025 Q4(a).

M. Debates, traps, verdict formulas and the answer spine

- **Six debates:** Hobbes/Locke/Rousseau · Berlin vs Green · Rawls vs Nozick · Rawls vs Sen · Mill vs Marx · procedure vs substance. Rawls continues Plato's **question**, not his **answer**.
- **Ten recurring traps:** equality as sameness · Berlin as anti-positive · Mill as licence · Rousseau's natural inequality as rightlessness · Rawls with equality first · Nozick as patterned · Sen as welfare economics · Ambedkar as name-drop · justice collapsed into law or procedure · one-sided evaluation.
- **Directive decoder:** discuss -> doctrine, distinction, one objection, verdict · explain -> statement, premises, distinction, example · critically -> objection-reply-residual-graded verdict · how far -> conditions of holding and failing · compare -> shared axes then adjudication · improvement -> name the criterion first.
- **Methods:** 10 marks ≈ 150 words, four moves · 15 marks ≈ 220 words, six moves · 20 marks ≈ 300 words, eight moves. Written practice bands in this package: 10 marks 150-220 words · 15 marks 250-330 · 20 marks 330-400.
- **Evidence bank E1-E13:** Rousseau's conversion · Aristotle's two equalities · the criteria grid · Berlin's poles · non-domination · the harm principle · justice as fairness · entitlement · realised justice · equity as need · social democracy · the compensatory principle · procedure and substance. One unit at 10 marks, two at 15, four or five at 20.
- **Verdict formulas:** conditional · asymmetric · improvement · ordering · reconstruction.
- **The ordering verdict, one sentence:** liberty and equality are indispensable but each is indeterminate about which liberties and which equalities matter; justice is the criterion that orders their competing claims.

N. COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

Twelve authored panels covering the complete examinable spine. This text is saved unchanged as the standalone ASCII master artifact beside the graphical flowchart package, and the two copies are byte-identical.

ASCII MASTER FLOW - PANEL 1/12: The printed clause, the ideals triad and the ordering problem

SYLLABUS (verbatim) -> "Social and Political Ideals : Equality, Justice, Liberty."

|
three ideals are printed, and only three

v

CENTRAL QUESTION -> institutions distribute STATUS, CHOICE, BURDENS and BENEFITS.
Equality and liberty each raise a claim. Who ranks the claims?

+-----+-----+-----+-----+

v

EQUALITY

"in what respect must
persons count as
equals?"

pivot: equal moral
worth, equal concern

danger: mechanical
levelling, loss of
individuality

|

v

THE INDETERMINACY PREMISE

liberty is silent about WHICH liberties are basic

equality is silent about WHICH equality is owed

|

v

ORDERING / ARCHITECTONIC CLAIM -> the ranking must range over BOTH families,
therefore it is supplied from outside either one -> that criterion is JUSTICE

|

v

OWNERSHIP FENCE democracy forms -> Forms of Government | rights, duties and
political obligation -> Individual and State | sovereign authority -> Sovereignty
welfare programmes -> Development | recognition theory -> Multiculturalism
reservation policy -> Caste: Gandhi and Ambedkar
CORPUS SHARE -> 14 of 112 parts (2018:1 2019:2 2020:1 2021:3 2022:2 2023:1 2024:2 2025:2)

ASCII MASTER FLOW - PANEL 2/12: Equality - equal moral worth and the four forms

FOUNDATION -> EQUAL MORAL WORTH / EQUAL CONCERN

arbitrary hierarchy of birth, caste, race, sex or inherited privilege must
JUSTIFY itself rather than be presumed

WARNING -> equal worth != identity of talent, desire, capacity or outcome

|

v

FORM

SECURES

FAILS ALONE BECAUSE

FORMAL / LEGAL

the rule against legal
privilege

it can be mere PAPER equality in a
deeply unequal society

the law

POLITICAL
equal vote,
eligibility

a non-oligarchic public
standing

wealth can still distort actual
influence

SOCIAL

equal civic respect

law alone cannot deliver it; it
needs reform, education, fraternity

no stigma or
status hierarchy

ECONOMIC

fair background conditions

incentive loss; may require
coercive redistribution

fewer unjust
disparities

|

v

REPLY RAIL -> formal needs substantive support | political needs curbs on domination
social needs fraternity | economic defenders argue redistribution protects freedom

|

v

INDIA (dated, classified) -> Articles 14-16: equality before law; prohibition of
discrimination; equality of opportunity in public employment
ENABLING CLAUSES in Articles 15 and 16 -> a PERMISSION, not a justification

ASCII MASTER FLOW - PANEL 3/12: Equality - a fair starting line or a fair finishing line

START

RACE

FINISH

|
EQUALITY OF OPPORTUNITY
offices and advantages
open on fair terms

|
(effort, choice, talent,
luck)

|
EQUALITY OF OUTCOME
no large or unjust final
disparity

|
moral focus: a fair starting point
liberal appeal: respects effort and choice

|
moral focus: a fair social result
appeal: corrects structural
disadvantage and inherited power

OBJECTION: "starting-line" fairness is illusory where background inequality is severe BEST REPLY: move from MERELY FORMAL to FAIR equality of opportunity (Rawls ranks it BEFORE the difference principle)	OBJECTION: levelling, paternalism, reduced autonomy BEST REPLY: limit the demand to THRESHOLDS -- ceilings on avoidable deprivation, floors of decent capability		
v			
TEST SENTENCE -> "open competition for an office is not fully fair where only one class can realistically prepare for it"			
v			
EQUITY (Marxian) -> differentiated treatment answering to NEED and ACTUAL CONDITION against EQUALITY understood as ONE COMMON MEASURE APPLIED TO ALL RESIDUAL -> the threshold is under-specified; name your own floor in the answer			
ASCII MASTER FLOW - PANEL 4/12: Equality - Rousseau, Mill and Marx			
ROUSSEAU	<table border="0"> <tr> <td style="vertical-align: top;"> NATURAL / PHYSICAL age, strength, health, intelligence [by nature] CONVERSION MECHANISMS -> PROPERTY + SOCIAL COMPARISON EXAMPLE -> being stronger is NATURAL; COMMANDING another because convention sanctifies property and status is MORAL/POLITICAL LIMIT -> not all inequality is conventional; the OPPRESSIVE forms are socially produced and socially maintained, hence remediable "diagnostic, not pastoral" </td> <td style="vertical-align: top;"> MORAL / POLITICAL (ARTIFICIAL) wealth, honour, power, dependence, social superiority [by convention] -> 2021 Q1(b) </td> </tr> </table>	NATURAL / PHYSICAL age, strength, health, intelligence [by nature] CONVERSION MECHANISMS -> PROPERTY + SOCIAL COMPARISON EXAMPLE -> being stronger is NATURAL; COMMANDING another because convention sanctifies property and status is MORAL/POLITICAL LIMIT -> not all inequality is conventional; the OPPRESSIVE forms are socially produced and socially maintained, hence remediable "diagnostic, not pastoral"	MORAL / POLITICAL (ARTIFICIAL) wealth, honour, power, dependence, social superiority [by convention] -> 2021 Q1(b)
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v			
MILL	SIX SALIENT FEATURES OF EQUALITY 1 equal worth in moral accounting 2 equality before law and equal citizenship 3 women's equality -- 'The Subjection of Women' (1869) 4 equality COMPATIBLE WITH INDIVIDUALITY 5 hostility to custom-made hierarchy 6 QUALIFIED economic concern -- reform, not coercive equalisation GENDER ARGUMENT -> the appealed-to "nature" is MANUFACTURED by subjection, so the evidence is disqualified VERDICT -> equal status WITHOUT uniformity -> 2025 Q1(e)		
v			
MARX	formal equality can CONCEAL exploitation; the wage contract APPEARS free and equal while class power shapes production and appropriation "AN EQUAL RIGHT CAN BE A RIGHT OF INEQUALITY" one common standard + unequal need, burden and starting position = unequal effect FORMULA (Critique of the Gotha Programme) -> "from each according to his ability, to each according to his need" INDEXED TO THE HIGHER STAGE -- not a market-time salary rule DEMANDED CONCEPT -> EQUITY vs EQUALITY -> 2022 Q2(c)		

ASCII MASTER FLOW - PANEL 5/12: Equality of what - Sen, Cohen and Dworkin

THE MODERN QUESTION -> not WHETHER to value equality, but EQUALITY OF WHAT

+-----+-----+-----+-----+-----+		
v	v	v
SEN -- CAPABILITY what persons are actually ABLE TO DO AND TO BE same resources -> different real freedoms, because disability, age, gender, climate, health and social position change CONVERSION resources != capabilities possession != effective freedom OBJ: lists are indeterminate REPLY: public reasoning rather than a rigid	COHEN -- METRIC + ETHOS welfare? opportunity for advantage? access to advantage? if the talented DEMAND extra reward to contribute, is the resulting inequality justice, or MORAL BARGAINING POWER? institutional justice can be undermined by an anti-egalitarian ETHOS OBJ: too demanding of personal virtue REPLY: it exposes what institutions alone cannot	DWORKIN -- RESOURCES equality of RESOURCES, not of welfare neutralise BRUTE LUCK (unchosen misfortune); respect OPTION LUCK (the result of a chosen risk) device: auction and insurance thought-experiments OBJ: luck and choice are hard to separate REPLY: even imperfect, it shows equality need not

final list	fix	equalise every preference
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SHARED WEAKNESS -> indeterminacy exactly where policy must act
INTERIM VERDICT -> equality is strongest as EQUAL STATUS + FAIR OPPORTUNITY +
PROTECTION AGAINST ARBITRARY DOMINATION, while alert to need, capability and
historical oppression -> 2021 Q2(a)

ASCII MASTER FLOW - PANEL 6/12: Liberty - Berlin's two concepts and Mill's harm principle

BASIC MEANING -> a protected sphere of action and thought; in richer accounts the power of self-direction. LIBERTY $\neq$ POWER: a tyrant has power, not liberty.

"no one is ever wholly unconstrained" is irrelevant: the theory concerns

JUSTIFIED and UNJUSTIFIED constraints

BERLIN (1958)	NEGATIVE	POSITIVE
	"within what area am I left alone?"	"who governs me? by what self am I directed?"
	freedom FROM interference	freedom TO be one's own master
	Hobbes, Locke, Mill	Rousseau, Kant, Hegel, Green
	value: protection from coercion and paternalism	value: self-mastery, rational agency, self-realisation

THE DANGER MECHANISM -> split the REAL SELF from the EMPIRICAL SELF

-> a ruler may claim to speak for the real self -> coercion is redescribed as

LIBERATION. Background commitment: VALUE PLURALISM

BERLIN DOES NOT -> deny the appeal of self-mastery, nor deny social preconditions

MILL ('On Liberty', 1859) -- THE HARM PRINCIPLE

coercion of a competent adult is legitimate ONLY to prevent HARM TO OTHERS

SELF-REGARDING acts -> generally not coercible

OTHER-REGARDING acts -> may be regulated or punished

OFFENCE / DISAPPROVAL $\neq$ HARM; heterodox opinion may not be suppressed

OBJECTIONS -> few acts are cleanly self-regarding; "harm" is itself contested

BEST DEFENCE -> a BURDEN-OF-PROOF rule: coercion must show injury, not distaste, and paternalism stays exceptional

ASCII MASTER FLOW - PANEL 7/12: Liberty - four specifications, sorted by the enemy each fears

THINKER	ENEMY OF FREEDOM	DEFINITION	RISK / OBJECTION
HOBBS	disorder	absence of external impediments; under law one is free WHERE THE LAW IS SILENT	liberty becomes a residual gap left by power
LOCKE	arbitrary power	liberty is not licence: it is freedom UNDER KNOWN LAW preserving life, liberty and property	property-centred liberty may mask inequality
ROUSSEAU	dependence on another's private will	obedience to a law one PRESCRIBES TO ONESELF as part of the GENERAL WILL	"forced to be free" invites an authoritarian reading
GREEN	incapacity	the POSITIVE POWER to do or enjoy something worth doing; tied to self-realisation	the state may impose preferred conception of the good

PRESUPPOSITIONS -> Hobbes: security is primary | Locke: natural rights pre-exist government | Rousseau: freedom requires participation and moral autonomy | Green: the self has higher capacities that conditions foster or deform

Green: the self has higher capacities that conditions foster or deform

GREEN'S SAFE READING -> ENABLING, not perfectionist: enlarge effective capacity and
LEAVE THE CHOICE OF ENDS WITH THE AGENT. EXAMPLE -> education equips agency

BERLIN vs GREEN -> coercion in the name of a higher freedom, against formal liberty with no power to use it. SYNTHESIS: keep the protected sphere, add enabling conditions, refuse the authorisation to prescribe ends -> 2024 02(b)

ASCII MASTER FLOW - PANEL 8/12: Liberty - the threshold, technology and non-domination
THRESHOLD OF COMPLEMENTARITY

AT / BELOW -> equal basic liberties ARE a form of equality; free speech for all
is at once a liberty and an equality of civic standing; Rawls's PRIORITY RULES
block trading liberty for aggregate welfare

BEYOND -> unrestricted contract and accumulation breed inequality; aggressive

equalisation curbs choice, association and property
 -> the mark-bearing move in 2018 Q2(a), 2019 Q4(b), 2022 Q1(d), 2024 Q2(b)

|
 v

TECHNOLOGICAL SOCIETY
 EXPANDS knowledge, mobility, communication, range of choice
 THREATENS through surveillance, manipulation and concentrated informational power
 SHIFT -> coercion becomes INFRASTRUCTURAL and INFORMATIONAL, not only legal
 ALGORITHMIC NUDGING -> every formal option stays open; the option taken is shaped
 CONVENIENCE != AUTONOMY
 VERDICT -> realisable UNDER transparency, accountability and zones of
 non-domination -> 2020 Q1(a)

|
 v

NON-DOMINATION PETTIT 1997 = the normative THEORY
 SKINNER 1998 = the historical RECOVERY (never merge the two)
 CASE -> a kind master or benevolent ruler who does not interfere; the dependant
 still flatters, anticipates and self-censors
 DISTINCTION -> INTERFERENCE is an ACT; DOMINATION is a STANDING CAPACITY to
 interfere arbitrarily and with impunity
 CONSEQUENCE -> non-arbitrary, contestable, interest-tracking law is
 FREEDOM-CONSTITUTING, not a subtraction from liberty
 OBJECTIONS -> (1) redundancy: high probability of interference would do the work
 (2) indeterminacy of "arbitrary" -- answered procedurally, with a
 residual problem that must be CONCEDED
 INDIA (form of remedy only) -> Bonded Labour System (Abolition) Act 1976;
 Sexual Harassment of Women at Workplace Act 2013; Code on Wages 2019 commenced
 by S.O. 5322(E), 21 November 2025 -> ENACTMENT IS NOT IMPLEMENTATION

ASCII MASTER FLOW - PANEL 9/12: Justice - three forms, four dimensions, legality and legitimacy
 MEANING -> what is due to each, and the principles governing distribution,
 rectification, rights and the moral structure of institutions
 social cooperation creates benefits and burdens; justice fixes their terms
 persons are owed REASONS, not merely outcomes
 LEGALITY != JUSTICE -> a law may be valid yet unjust

|
 v

FORM	EXACT QUESTION	FAILS ALONE BECAUSE
FORMAL	are announced principles applied impartially and consistently to like cases?	an unjust principle can be applied with perfect consistency
PROCEDURAL	was the decision produced by fair rules, hearing, publicity, impartiality and non-cheating?	a fair-looking procedure can run on a grossly unequal background
SUBSTANTIVE	are the governing principle, the distribution and the social relations themselves just?	an outcome imposed without due process becomes a second arbitrariness

|
 v

CONCLUSION -> FAIR PROCEDURE *PLUS* A DEFENSIBLE SUBSTANTIVE CRITERION
 EXAMPLE -> equal legal punishment for unequal wrongdoing satisfies consistency and violates corrective fairness

|
 v

FOUR DIMENSIONS -> LEGAL (impartial administration AND whether law answers to justice) | POLITICAL (equal citizenship, voice, non-arbitrary public power) | SOCIO-ECONOMIC (benefits, burdens, real opportunities) | RECOGNITION-STATUS (whether institutions reproduce stigma, humiliation, second-class standing)
 BRIDGE -> LEGALITY = a rule's valid place in a legal system; LEGITIMACY = morally justified authority to those subject to it. SOURCE CONTROL -> Gauba pp. 442-445; Socio-Political Philosophy pp. 40, 47-54; Cambridge Dictionary pp. 489-490

ASCII MASTER FLOW - PANEL 10/12: Justice - Plato, Aristotle, the criteria problem, compensation

PLATO CITY: rulers rule | auxiliaries defend | producers provide
 SOUL: reason governs | spirit supports | appetite obeys
 JUSTICE = each part doing its OWN work without usurping another's role
 -> inner AND civic RIGHT-ORDER, not merely external distribution
 OBJ frozen hierarchy | REPLY a norm of competence and organic harmony
 VERDICT -> the idea survives the institution -> 2024 Q1(a)

ARISTOTLE DISTRIBUTIVE -> shares track RELEVANT desert -> PROPORTIONAL equality (offices, honours)
 CORRECTIVE -> restore the balance after a wrong -> ARITHMETIC equality (compensation, restitution, punishment)
 RULE -> treat equals equally and unequals unequally ONLY where the basis of comparison is RELEVANT. GAP -> "relevant" is left unspecified

CRITERIA GRID

NEED -> subsistence, health care, basic education, disability

DESERT -> honours; backward-looking and moralised

MERIT -> offices; forward-looking and functional

CONTRIBUTION / ENTITLEMENT -> wages, exchange, property titles

EQUAL SHARE -> civil and political rights, one person one vote

COMPENSATION -> rectification of unjustified prior loss

THESIS -> justice is CRITERION-PLURAL but NOT ARBITRARY: each good has an internal logic fixing its proper basis. MERIT $\neq$ DESERT -> collapsing them yields the bad answer that "merit is a moral entitlement"

INJUSTICE -> a criterion ESCAPING ITS SPHERE: wealth buying political influence; caste rank governing access to office

v

COMPENSATORY PRINCIPLE -> corrective justice generalised from transactions

1 systematic, legally sanctioned exclusion from land, education, office, honour

2 exclusion TRANSMITS through wealth, networks, schooling, health, confidence

3 formal equality from today RATIFIES the unequal starting line

4 positive measures offset the transmitted disadvantage

5 therefore compensation is demanded BY equality, not as an exception to it

TERMINUS -> it lapses when the targeted transmission no longer operates

RESIDUAL -> over-inclusion; the transmission premise is FACTUAL and must be argued

ROUTING -> the affirmative-action policy debate belongs to the CASTE owner

ASCII MASTER FLOW - PANEL 11/12: Justice - utilitarian aggregation, Rawls, Nozick, Sen, Ambedkar

UTILITARIAN institutions are just if they MAXIMISE aggregate welfare; rightness is consequence-based, not prior-rights-based

AGGREGATION OBJECTION -> individuals, minorities and the least advantaged may be sacrificed if the total rises

rule / indirect replies -> rights are protected only CONTINGENTLY

v

RAWLS (1971) ORIGINAL POSITION + VEIL OF IGNORANCE

[a DEVICE OF REPRESENTATION, not a historical contract]

P1 equal BASIC LIBERTIES LEXICALLY PRIOR

P2a FAIR EQUALITY OF OPPORTUNITY prior to P2b

P2b DIFFERENCE PRINCIPLE benefit the LEAST ADVANTAGED

method -> REFLECTIVE EQUILIBRIUM

one line -> DEONTOLOGICAL LIBERAL EGALITARIANISM

-> 2023 Q1(a), 2019 Q1(a)

v

NOZICK (1974) acquisition | transfer | RECTIFICATION

HISTORICAL principles against PATTERNED principles

WILT CHAMBERLAIN -> start from any just distribution, allow only voluntary transfers, and the pattern breaks

MINIMAL STATE -> force, theft, fraud and contract enforcement only

CRITICISM -> starting points are never clean, and rectification is UNDER-SPECIFIED -> 2021 Q1(a)

v

SEN NITI = correctness of institutions, rules and procedures

NYAYA = justice AS REALISED in people's lives

COMPARATIVE, not TRANSCENDENTAL institutionalism

CAPABILITY + PUBLIC REASONING

OBJECTION -> under-determination between rival improvements -> 2021 Q2(a)

AMBEDKAR political democracy is UNSTABLE without SOCIAL DEMOCRACY rooted in LIBERTY, EQUALITY and FRATERNITY; constitutional FORM $\neq$ lived social democracy; one vote each can coexist with civic humiliation -> 2018 Q2(a), 2025 Q4(a)

ASCII MASTER FLOW - PANEL 12/12: Debates, traps, PYQ anchors, answer spine, qualified verdict

SIX DEBATES Hobbes / Locke / Rousseau -- order, rights, or collective autonomy?

Berlin vs Green -- coercion for a higher freedom, or hollow liberty?

Rawls vs Nozick -- fair agreement, or self-ownership?

Rawls vs Sen -- ideal structure, or remediable injustice?

Mill vs Marx -- individuality, or the material limits of formal equality?

Procedure vs Substance -- was a fair rule followed, or is the rule just?

PLATO -> RAWLS: the QUESTION is inherited, the ANSWER is rejected

TEN TRAPS equality as sameness | Berlin as anti-positive | Mill as licence | Rousseau's natural inequality as rightlessness | Rawls with equality first | Nozick as patterned | Sen as welfare economics | Ambedkar as a name-drop | justice collapsed into law or procedure | one-sided answers

PYQ ANCHORS 2018 Q2(a) 20 liberty and equality distinctive of democracy?

2019 Q1(a) 10 is Rawls continuing Plato? 2019 Q4(b) 15 does liberty limit equality? 2020 Q1(a) 10 liberty in technological society?

2021 Q1(a) 10 Nozick's distributive theory 2021 Q1(b) 10 Rousseau on natural against artificial inequality 2021 Q2(a) 20 is Sen an improvement upon Rawls? 2022 Q1(d) 10 complete liberty / order and restriction 2022 Q2(c) 15 equity against equality in Marxian philosophy

2023 Q1(a) 10 justice as fairness 2024 Q1(a) 10 Plato on justice
2024 Q2(b) 15 critically evaluate liberty and equality 2025 Q1(e) 10
Mill's salient features of equality 2025 Q4(a) 20 equality and liberty
inadequate without justice

ANSWER SPINE 10m ~150w -> doctrine -> argument spine -> ONE evidence unit, its limit,
and a graded verdict

15m ~220w -> axis of dispute -> side A -> side B -> ONE worked
objection-reply -> two evidence units -> conditional verdict

20m ~300w -> thesis -> concept map and criterion -> strongest case ->
strongest rival -> two objection-reply chains with RESIDUAL problems ->
comparative adjudication -> one dated Indian illustration -> a graded
verdict that concedes something to the losing side

QUALIFIED VERDICT -> liberty and equality are indispensable but each is INDETERMINATE
about which liberties and equalities matter; JUSTICE supplies the ordering criterion,
and because rival theories order them differently it must be EXPLICIT and DEFENSIBLE.